



Council

An Ordinary Meeting of Lismore City Council will be held at the Council Chambers on Tuesday 10 May 2022 at 6.00pm

Members of Council are requested to attend.

Lismore City Council acknowledges the people of the Bundjalung nation, traditional custodians of the land on which we meet.

John Walker
General Manager

3 May 2022



ETHICAL DECISION MAKING AND CONFLICTS OF INTEREST

A guiding checklist for councillors, staff and community committees

Ethical decision making

- Is the decision or conduct legal?
- Is it consistent with Government policy, Council's objectives and Code of Conduct?
- What will the outcome be for you, your colleagues, the Council, anyone else?
- Does it raise a conflict of interest?
- Do you stand to gain personally at public expense?
- Can the decision be justified in terms of public interest?
- Would it withstand public scrutiny?

Conflict of interest

A conflict of interest is a clash between private interest and public duty. There are two types of conflict:

- Pecuniary – an interest that you have in a matter because of a reasonable likelihood or expectation of appreciable financial gain or loss to yourself or another person or entity defined in part 4 of the Lismore City Council Code of Conduct with whom you are associated.
- Non-pecuniary – a private or personal interest that you have that does not amount to a pecuniary interest as defined in the Lismore City Council Code of Conduct. These commonly arise out of family or personal relationships, or out of involvement in sporting, social, religious or other cultural groups and associations, and may include an interest of a financial nature.

The test for conflict of interest

- Is it likely I could be influenced by personal interest in carrying out my public duty?
- Would a fair and reasonable person believe I could be so influenced?
- Conflict of interest is closely tied to the layperson's definition of "corruption" – using public office for private gain.
- Important to consider public perceptions of whether you have a conflict of interest.

Identifying problems

- Do I have private interests affected by a matter I am officially involved in?
- Is my official role one of influence or perceived influence over the matter?
- Do my private interests' conflict with my official role?

Disclosure and participation in meetings

- A Councillor or a member of a Council Committee who has a pecuniary interest in any matter with which the Council is concerned and who is present at a meeting of the Council or Committee at which the matter is being considered must disclose the nature of the interest to the meeting as soon as practicable.
- The Councillor or member must not be present at, or in sight of, the meeting of the Council or Committee:
 - a. at any time during which the matter is being considered or discussed by the Council or Committee, or
 - b. at any time during which the Council or Committee is voting on any question in relation to the matter.

No Knowledge - a person does not breach this clause if the person did not know and could not reasonably be expected to have known that the matter under consideration at the meeting was a matter in which he or she had a pecuniary interest.

Non-pecuniary Interests - Must be disclosed in meetings.

There are a broad range of options available for managing conflicts & the option chosen will depend on an assessment of the circumstances of the matter, the nature of the interest and the significance of the issue being dealt with. Non-pecuniary conflicts of interests must be dealt with in at least one of the following ways:

- It may be appropriate that no action be taken where the potential for conflict is minimal. However, Councillors should consider providing an explanation of why they consider a conflict does not exist.
- Limit involvement if practical (eg. Participate in discussion but not in decision making or vice versa). Care needs to be taken when exercising this option.
- Remove the source of the conflict (eg. Relinquishing or divesting the personal interest that creates the conflict)
- Have no involvement by absenting yourself from and not taking part in any debate or voting on the issue as of the provisions in the Code of Conduct (particularly if you have a significant non-pecuniary interest)

Whilst seeking advice is generally useful, the ultimate decision rests with the person concerned.

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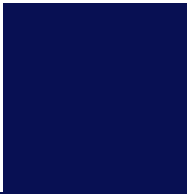
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Notice of Motions



Notice of Motion

Councillor Big Rob has given notice of intention to move:

That Council alter the first line of point 5 of resolution number 95/22 from the Ordinary Meeting on 12 April 2022 to read 'Rous County Council be requested to provide information relating to:'

Councillor Comment

Outcome Sought

The requested change to the Notice of Motion as printed was done on the run and adopted during the council meeting.

The original wording in the first paragraph applying to Lismore City Council and all points originally listed reads 'The update should include information relating to:'

When the original points from point 5 onwards were redirected to Rous County Council, the intent was to ask them to do exactly what we were originally asking Lismore City Council to do.

This alteration is required in order to better reflect the intent of the resolution.

Cost of Implementing

Nil

Funding Source

Not required

Staff Consulted

Governance & Customer Service Manager

Staff Comment

Not required

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/275:EF19/25-4

Notice of Motion

Councillor Vanessa Ekins has given notice of intention to move:

That Council prepare a draft policy and guidelines to allow multiple temporary dwellings on rural property in times of disaster.

Councillor Comment

Outcome Sought

Due to the significant homelessness experienced after the recent floods and the urgency to provide accommodation, there may be opportunity to allow temporary housing on some rural properties, providing adequate infrastructure is provided. With an understanding of the issues and assessment process, Council may decide to progress this opportunity.

Issues for consideration in developing such guidelines would include:

- Site suitability (ie is it flood prone, or in a high bushfire risk area)
- Provision of water and suitable waste water management (a Section 68 approval would be required for any new water or wastewater services)
- Suitable amenities (toilets and showers)
- Maximum number of temporary dwellings
- Maximum period temporary dwelling could remain on site
- Whether a site plan is required from landowner and a letter indicating compliance provided by Council, OR whether it was self-regulated (as is the case with the single moveable dwelling)
- Vehicle access
- Setback from boundaries / impact on adjoining properties
- Whether registration with DCJ or other agencies was required
- Setback from bushfire vegetation
- Whether any vegetation was required to be cleared

Cost of Implementing

Staff time

Funding Source

Disaster Recovery Grants

Staff Consulted

Director Partnerships Planning & Engagement

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/276:EF19/25-4

Notice of Motion

Councillor Adam Guise has given notice of intention to move:

That Council writes to the Premier and relevant NSW State Government Ministers, requesting they pay for the rates and water charges of Lismore LGA ratepayers impacted by the 2022 floods for the FY2022-23.

Councillor Comment

Outcome Sought

It is estimated that the 2022 floods have rendered nearly 3000 homes uninhabitable and some 3500 businesses unable to operate.

Following the 2019-20 bushfires, the NSW State Government paid the rates for those impacted by the bushfires. The Deputy Premier said at the time “The last thing our communities need right now is more financial stress, which is why the NSW Government is doing everything to ease the burden by funding the rates and picking up the bill for the clean-up, at no cost to owners” The NSW Local Government Minister noted there was a loss of more than 2400 homes and said “It is simply unfair to expect somebody to go through the heartbreak of losing their home and then expect them to pay rates on a property they can no longer live in.”

Cost of Implementing

Nil

Funding Source

NSW Government

Staff Consulted

Executive during briefings

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/277:EF19/25-4

Notice of Motion

Councillor Big Rob has given notice of intention to move:

That:

1. Council creates a Debt Management Policy to ensure options relating to the writing off, waiving or reducing of debts are consistent with provisions contained in the Local Government Act and Regulation and
2. section 567 (Writing off of accrued interest), section 607 (Writing off of rates, charges and accrued interest), and Section 610E (Council may waive or reduce fees), of the *Local Government Act 1993*, and regulation 131 (Procedures for writing off rates and charges), and regulation 213 (Restrictions on writing off debts to a council), of *the Local Government (General) Regulation 2021*, be considered for inclusion in the Policy

Councillor Comment

Outcome Sought

Nil

Cost of Implementing

Nil

Funding Source

Not required

Staff Consulted

Nil

Staff Comment

General Manager

Councillor Rob's notice of motion suggests the creation of a debt management policy to ensure consistency with the *Local Government Act*. Whilst understanding his intent, the reality is the Act is the source of power for debt management and a policy that mirrors it is not considered necessary.

Similarly the inclusion of the various sections of the Act and Regulation quoted by Councillor Rob are also not considered necessary as the General Manager is required to follow all the mentioned provisions irrespective of policy.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/278:EF19/25-4

Notice of Motion

Councillor Big Rob has given notice of intention to move:

That Council:

1. provide a letter of support to Rous County Council regarding the Future Water Project 2060, recognising its role in the region's recovery and resilience building
2. seek out and apply for any available funding options to ensure the Future Water Project 2060 is delivered successfully as part of the region's recovery and resilience building.

Councillor Comment

Outcome Sought

A letter of support from Lismore City Council can be used by Rous County Council as part of ongoing funding and other project representations.

The Future Water Project 2060 is more than a water security project. It is a key component of the region's economic recovery.

Cost of Implementing

Nil

Funding Source

Not required

Staff Consulted

Nil

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/279:EF19/25-4

Notice of Motion

Councillor Big Rob has given notice of intention to move:

That:	
1.	Council prepare Terms of Reference establishing a Disaster Management Committee
2.	the Committee consist of councillors and relevant staff, with relevant experts invited to attend Committee meetings as required
3.	the Committee be tasked with creating, reviewing, maintaining and/or updating emergency management, disaster and/or recovery plans relating to any part of the Lismore City Council local government area
4.	except when considering sensitive or personal information during closed sessions, Committee meetings be open to the public and live streamed to allow the Committee to receive input from local residents both in attendance and viewing remotely as part the planning process
5.	the Committee be empowered to create sub committees and working groups as required
6.	the Chair of the Committee be a councillor, other than the Mayor, elected by councillor members of the Committee, who can call meetings as required.

Councillor Comment

Outcome Sought

The establishment of a Disaster Management Committee who will meet regularly prior to and following a disaster, to collate, update and keep current all planning material required to help better prepare for, manage and recover from disasters in our local government area.

Cost of Implementing

Unknown

Funding Source

Unknown

Staff Consulted

Nil

Staff Comment

Manager Assets

Council has membership of the Local Emergency Management Committee (LEMC) which undertakes many of the functions outlined in the Notice of Motion. The LEMC is a statutory committee constituted under the *State Emergency and Rescue Management Act* (SERM Act).

Lismore City Council is a member of the Northern Rivers Local Emergency Management Committee which includes Richmond Valley and Kyogle Councils.

As required by the legislation, Council membership of the LEMC is the General Manager, or appointed delegate and the Local Emergency Management Officer (LEMO).

One of the tasks of the LEMC is to prepare an Emergency Management Plan (EMPLAN) and various sub-plans that support preparedness, response and recovery from disasters.

Notice of Motion

Council has also undertaken significant work within our community following the 2017 flood and 2019/20 bushfires to improve resilience and preparedness for disasters. This has led to the establishment of the Local Emergency Recovery Network (LERN) and preparation of recovery/resilience plans for communities in the Nimbin area.

Any proposed committee would therefore need to be focused on matters not already within the remit of the LEMC to avoid duplication and potential inconsistency or conflict with the processes and plans of the LEMC.

As such the suggested Committee is not supported in the form outlined as it is not considered necessary.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/280:EF19/25-4

Questions with Notice



Questions with Notice

Councillor Big Rob has put the following question with notice:

Can the General Manager confirm whether or not we can stop charging businesses the Special Business Rate Variation Levy (SBRVL), if so, could we terminate the SBRVL effective immediately, if not, are there any plans to apply to continue the SBRVL beyond 30 June 2023?

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/269:EF19/25-4

Questions with Notice

Councillor Big Rob has put the following question with notice:

Following ongoing speculation from many members of our community, can the General Manager please confirm the official number of lives lost in the Lismore local government area during the 28 February 2022 catastrophic flood event?

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/272:EF19/25-4

Questions with Notice

Councillor Big Rob has put the following question with notice:

Considering the impact of the 2022 floods, and the extended delays expected before we see the Lismore Memorial Baths operating again, what allowances have been made to provide access to the Goonellabah Sports & Aquatic Centre pool to Lismore Memorial Baths swimming club and other users until the Lismore Memorial Baths reopens to the public?

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/273:EF19/25-4

Questions with Notice

Councillor Big Rob has put the following question with notice:

Considering subdivision 22 of *SEPP (Exempt and Complying Development Codes) 2008*, can the General Manager please outline options available to business owners adversely impacted by the recent floods to operate their businesses from home without requiring consent, additional options available where consent may still be required, and whether a moratorium relating to compliance action is currently in place while businesses try to recover?

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/281:EF19/25-4

Matters Arising



Matters Arising

Subject	Airport Annualised Landing Fees
TRIM Record No	BP22/233:EF12/282-02
Prepared by	Business Manager - Commercial Services
Reason	Reporting results of community consultation process.
Strategic Theme	A prosperous and vibrant city
Strategy	Our community is connected and convenient.
Action	Maintain and develop airport and aviation services.

Executive Summary

At Council's ordinary meeting of 8 February 2022 it was resolved that Council amend the airport fees to:

1. Annual subscriptions as prior to landing fee increases on 1 July 2021
2. Current fee structure remain for the weekend/ recreational pilots.

For the adopted Fees and Charges to be amended, the proposed changes are required to be advertised for a period of 28 days.

Following public exhibition of the proposed fee amendment via the *Your Say Lismore* page on Council's web site all submissions received were supportive of the proposed change.

This report recommends the 2021/22 Fees and Charges be amended to include the proposed changes.

Recommendation

That:

1. Council reintroduce annualised landing subscriptions for the Lismore Regional Airport effective 10 May 2022 and be listed in Council's Fees and Charges.
2. The fees for 2021/22 be as follows:
 - a) Resident aircraft per annum – general aircraft: \$356.25
 - b) Resident aircraft per annum – ultralight: \$240.88
 - c) Commercial Operations – unlimited movements: \$707.50

Background

At the February 2022 Council meeting it was resolved to amend the airport fees to include annualised subscriptions as per the 2020/21 financial year and that pay-as-you-go fees remain for weekend and recreational pilots.

Following the Council meeting the proposal for the reintroduction of the annualised landing subscriptions was advertised on the *Your Say Lismore* web platform for a period of at least 28 days, with nine submissions being received.

All submissions received were supportive of the reintroduction of the annualised landing subscription.

Annualised landing fees are an annual fee subscription option that aircraft operators (commercial or private) can enter into via written request to Council's General Manager; allowing a flat fee per aircraft per year (or on a pro rata basis) regardless of landing and/or touch and go events.

The pay-as-you-use option will remain unchanged.

The proposed annualised landing fee subscription for 2021/22 is provided below. This proposal is the 2020/21 fee plus CPI of 1.8%.

Fee Description	Adopted Fee 2020/21	Proposed Fee 2021/22
Resident aircraft per annum – general aircraft	\$350.00	\$356.00
Resident aircraft per annum – ultralight	\$235.00	\$241.00
Commercial Operations – unlimited movements	\$690.20	\$708.00

It is proposed to implement the annualised landing fee subscription from the date of the May 2022 Council meeting if resolved by Council. Any airport user making a request for an annualised landing fee subscription from this date will receive pro-rata fees up until 30 June 2022.

Council staff are supportive of the annualised fee as a mechanism to promote growth and stability in the aviation community, particularly during a significant rebuild phase in Lismore. The annualised landing fee makes local aircraft operations easier and helps encourage use of the airport.

Council should note there will be a budget impact due to the reintroduction of the annualised landing subscription. The annualised landing fee has been included in the fees and charges for the draft budget for 2022/23, and if adopted, general aviation fee income for the airport will need to be reduced by \$20,000. It should also be acknowledged that if any other current commercial operators at the airport increase air operations and seek the annualised subscription, additional revenue opportunities to cover the cost of airport operations will not be realised.

To the end of March 2022 the general aviation landing fee income for 2021/22 was \$28,293.74, which is on track to achieve the annual budget of \$39,500.00. This income however consists of 100% pay-as-you-go usage fees.

The Airport Masterplan project currently underway will help identify future options for the airport in order to reduce the operating deficit. The Airport Masterplan and development plan will include options for revenue generation.

Council uses the Avdata third party billing system to record, transcribe landing fees, send invoices and accept payments. Council receives a monthly payment from Avdata for the previous month. During the flood the Lismore Avdata ground unit was damaged when the terminal building flooded. Avdata sourced the radio transcription data from Casino and Ballina airports to continue to bill landing fees at Lismore. This was possible due to Lismore, Ballina and Casino operating on the same radio frequency.

Airport users have continued to be invoiced for their landing fees since the flood. However, there was a period of time for both floods where an emergency radio frequency was used at the airport and aircraft using the airport during this time were not charged. There has been some enquiry from airport users about the charging of users while the airport facilities were compromised. However, the runway facilities have been fully operational during daylight hours and the pay-as-you-go landing fees have been in place.

Comments

Finance

Not required.

Other staff comments

Not required.

Public consultation

Public consultation was undertaken on the *Your Say Lismore* page of Council's web site for 28 days and nine submissions were received.

Conclusion

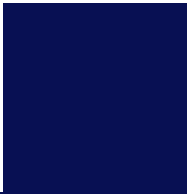
At Council's ordinary meeting of 8 February 2022 it was resolved that Council amend the airport fees to reintroduce annual subscriptions as prior to landing fee increases on 1 July 2021 and that the current fee structure remain for weekend/ recreational pilots.

The proposal was advertised on *Your Say Lismore* with only positive submissions received. It is recommended the amendments be adopted as proposed.

Attachment/s

1. Lismore Regional Airport Usage and Charges until 30 March 2022 - *This matter is considered to be confidential under Section 10A(2) (d iii) of the Local Government Act, as it deals with commercial information of a confidential nature that would, if disclosed reveal a trade secret*

Reports of the General Manager



Report

Subject	DA5.2021.562.1 Erection of a Dwelling at 6 Belvedere Drive, East Lismore
TRIM Record No	BP22/227:DA21/562
Prepared by	Building Surveyor Coordinator
Reason	As variation of height exceeds 10% of Development Standard Council is to determine the application.
Strategic Theme	Our built environment
Strategy	Our built environment is managed and enhanced to meet the needs of our growing community.
Action	Ensure new buildings and infrastructure meets relevant standards.

Executive Summary

Council has received a Development Application (DA21/562) for the construction of a Dwelling, Carport and Retaining wall on the property at **6 Belvedere Drive, East Lismore**. The application is inclusive of a variation to *Lismore Local Environmental Plan 2012* Clause 4.3(2).

This clause enables Council to consider the approval of a height of a building within specified zones. The variation sought is to the standard that specifies:

- *The height of a building on any land is not to exceed the maximum height shown for the land on the Height of Buildings Map.*

A circular from the Department of Planning, Industry and Environment dated 15 December 2017 notified Council's, where a Local Environmental Plan numerical standard is varied by greater than 10% only the Council can assume the Secretary's concurrence to determine the application. Therefore, as the variation sought in this instance is a 34.6% variation to the development standard, it requires the determination by Council.

This report provides an assessment of the application and recommends Council approve the proposed variation to Clause 4.3(2) of the *Lismore Local Environmental Plan 2012*.

Draft conditions of consent are included as Attachment 1 to this report.

Recommendation

That:

1. Pursuant to Clause 55 of the *Environmental Planning and Assessment Regulation 2021*, Council assumes the concurrence of the Secretary of the Department of Planning, Industry and Environment for a *Lismore Local Environmental Plan 2012* Clause 4.6 variation to the development standard in Clause 4.3(2) that the height of a building on any land to consider the exceedance of the maximum height shown for the land on the Height of Buildings Map.
2. Pursuant to Section 4.16 of the *Environmental Planning and Assessment Act 1979*, Council grant consent to Development Application 5.2021.562.1 for a dwelling with a height variation, carport with a building line variation, removal of 4 trees and a retaining wall at 6 Belvedere Drive, East Lismore, subject to the draft conditions attached to this report.

Background

Council has received a Development Application for the construction of a dwelling, carport and retaining wall on the property at 6 Belvedere Drive, East Lismore.

The application seeks a Clause 4.6 variation to the Lismore *Local Environmental Plan 2012* Clause 4.3(2), which enables Council to review the height of a building on any land, is not to exceed the maximum height shown for the land on the Height of Buildings Map and specifically that:

- *Maximum height of building is not to exceed 8.5metres vertically above existing ground level.*

The variation is supported by Council's Development Assessment Staff, having principal regard historically noting that on steeply sloping sites compliance cannot be readily achieved & is consistent with the objectives of the planning instruments to build to the contours of the land.

Clause 55 of the *Environmental Planning and Assessment Regulation 2021* authorises Council to assume the Secretary's concurrence for variations to development standards made under Clause 4.6. Accordingly, as the variation sought in this application is 34.6% to the development standard, it requires the referral of the matter for Determination by Council.



Figure 1 View of allotment looking north



Figure 2 View of allotment looking west



Figure 3 Architectural impression of dwelling

Locality Plan



Figure 4 Locality – 6 Belvedere Drive East Lismore

Description of the Proposal

The applicant seeks to construct a dwelling on a steeply sloping allotment of land. The proposed development includes the following components:

- The new dwelling is an elevated single storey building comprising of two (2) bedrooms, a study, an open plan living/dining/kitchen area, a bathroom, covered deck attached to the north elevation.
- A double carport is attached to the southern elevation of the dwelling.
- The new dwelling is proposed to have external walls clad with grey corrugated steel sheeting and a grey colorbond roof.
- Access to the dwelling is proposed from Belvedere Drive to the carport with a new driveway.
- The application seeks a variation to the building line from Belvedere Drive to the carport and retaining wall to 0 metres. The statutory building line is 6.0 metres.
- Removal of three trees
- The siting of the dwelling on the allotment complies with statutory side boundaries setbacks.

Site Plan

ARCHITECTURAL DRAWINGS

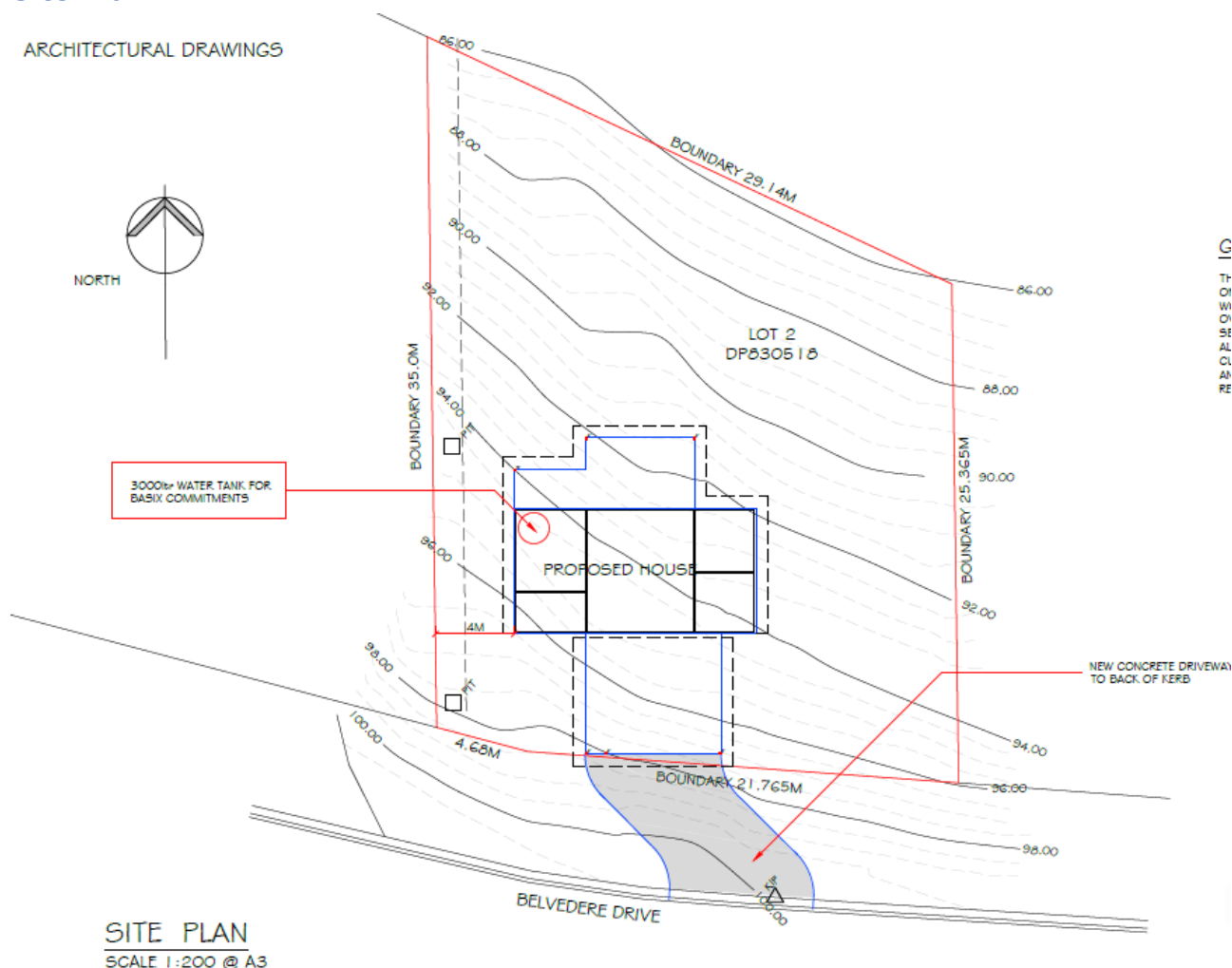


Figure 5: Site Plan

Description of the Locality

The subject site is located in East Lismore. The site comprises a total area of approximately 800m² with access proposed to the dwelling from Belvedere Drive.

Adjoining development comprises of residential dwellings.

Assessment of Development Application

Statutory Controls

Lismore LEP 2012

Zoning – R1 – General Residential

Item of Heritage – No

S7.11 Contributions Plan

Environmental Planning & Assessment Act 1979

Biodiversity Conservation Act 2016

SEPP (Biodiversity and Conservation) 2021

SEPP (Resilience and Hazards) 2021

SEPP (BASIX) 2004

Policy Controls

Lismore Development Control Plan

Contaminated Land policy

Lismore City Council

Meeting held 10 May 2022 - DA5.2021.562.1 Erection of a Dwelling at 6 Belvedere Drive, East Lismore

Referral Officer's comments

Engineering/Traffic

The application has been reviewed and comments provided by specialist staff, with no objections raised subject to the imposition of appropriate conditions which have been included in the draft conditions attached to this report.

Tree Preservation Officer

The application has been reviewed and comments provided by specialist staff, with no objections raised subject to the imposition of appropriate conditions which have been included in the draft conditions attached to this report.

External Agency Referrals

CASA

The application has been reviewed and comments provided by Council's Airport Coordinator, who raised no objection to the proposed development.

Notification / Submissions

The development application was notified to adjoining landowners in accordance with Council's Community Engagement Strategy and Participation Plan. One submission was received.

Name of Submitter	Issues Raised	Comments
L De Pra	1. The impact of building and associated earthworks in destabilizing the large surface rocks and rock embankment behind my house. I am extremely concerned about the impact of vibration and similar building works causing movement and dislodgement of rocks. Being located on a very steep slope, there is a high risk that rocks will roll down into my backyard and cause damage to my retaining wall and house.	Structural engineering plans submitted with the application show that earthworks will involve the construction of piers and a footing for a retaining wall adjacent to the front boundary of the allotment. This type of construction will limit the amount of vibration and the dislodgement of rock materials.
	2. I am also concerned about the impact of vibration from the general works and specifically damage to my house due to possible drilling and piling. In regard to drilling and piling, there is also a concern about the effect of the pylons on possible redirection of underground springs and water table towards my property.	The Geotechnical report submitted with the application did not encounter any groundwater during the investigative work on the allotment. The submitters dwelling is sited approximately 28metres from the proposed dwelling. Due to the slope of the allotment only small machinery will be used for the drilling of the pier holes. Due to the type of machinery to be used and the distance between buildings it is considered unlikely that there will be any adverse impacts upon the adjoining property.
	3. Privacy in terms of the building view, it will be overlooking my house, backyard and in particular the side of the house where the bedrooms and their windows are located. I would be satisfied with the existing native trees as well as other trees/shrubs which are 'native wildlife friendly' for an environmental buffer.	The subject dwelling is located in a northwest direction from the submitters dwelling. The siting of the proposed dwelling on the land complies with the requirements of Clause A5.4 of Chapter 1 of the DCP for setback

Name of Submitter	Issues Raised	Comments
	It is also in keeping with the aesthetic of the requirements of the Community Association Strata Plan – DP 270567, noting the property will be overlooking my house which is part of a strata development. In saying this, I have worked at the back of the property for many years, planting a range of native trees to provide shelter and food for wildlife in particular birds and butterflies. My strong preference is not for a colour-bond fence or similar. Rather, I would very much prefer an environmental buffer as I outlined earlier.	distances to ensure visual privacy is maintained. The application does not propose to remove any of the existing native vegetation located between the subject dwelling and the submitters dwelling. This has also been conditioned. The application does not propose any fencing to be erected. The erection of a dividing fence between the two properties is regulated by the Dividing Fences Act 1991 and is a private matter between the owners of the properties.
	4. Drainage is another point of concern. Request that drainage for this site is managed appropriately in order that there is no impact on my property and house. Under no condition is drainage/water to be diverted onto my property as a result of this construction.	Stormwater from dwelling is to be connected to Council stormwater drainage system. Paved areas around dwelling to be directed to the dwelling's drainage system. Condition is to be imposed on Consent.
	5. Ask that building works do not commence before 7.00am and if possible no building works to occur on weekends.	Condition is placed on Consent stating that building works are to commence from 7.00am through to 5.00pm Monday to Friday, 8.00am to 1.00pm on Saturday and no work on Sunday.

Matters for Consideration

The relevant matters for consideration under Section 4.15 of the *Environmental Planning and Assessment Act 1979*, are assessed under the following headings:

Lismore LEP 2012

Zone, Definition and Permissibility

The proposed development is permissible, subject to consent, as a “Dwelling and Carport” within the R1 – General Residential zone under the provisions of the Lismore LEP 2012.

Definition:

dwelling means a room or suite of rooms occupied or used or so constructed or adapted as to be capable of being occupied or used as a separate domicile.

dwelling house means a building containing only one dwelling.

Note— Dwelling houses are a type of **residential accommodation**—see the definition of that term in this Dictionary.

Zone Objectives and Land Use Table

The proposed dwelling is a permitted use, subject to consent, within the R1 General Residential zone.

Having regard to the provisions of Lismore LEP 2012, it is considered that:

- The development is in accordance with clause 2.3 and promotes the specific aims of the plan, the objectives of the zone and the objectives of the controls; and
- The development is in accordance with and promotes the character of the neighborhood within which the development is carried out.

As such, consent to the development may be granted.

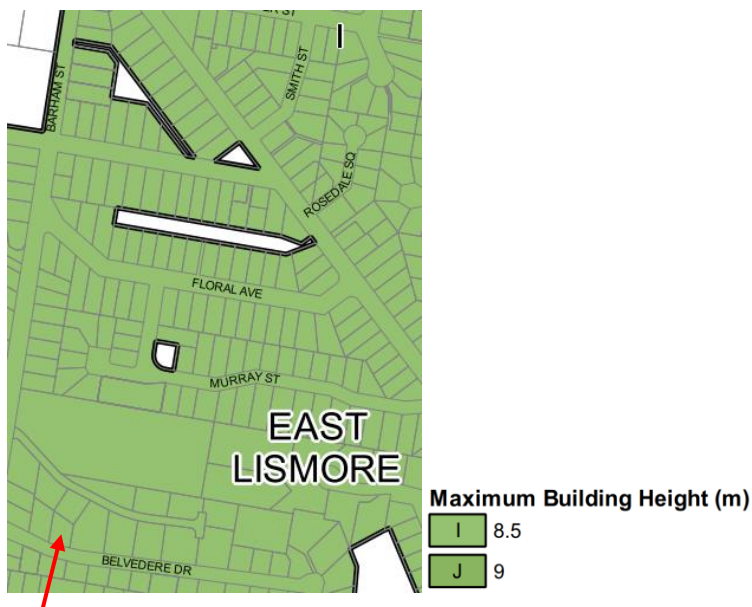
Part 4 – Principal Development Standards

1. Height of buildings (clause 4.3)

(1) The objectives of this clause are as follows—

- (a) to establish a maximum height for buildings,
- (b) to provide for taller buildings in the city centre and to enable a transition in building height in response to varying urban character and function,
- (c) to protect the amenity of neighbouring properties and public places, with particular regard to visual bulk, scale, overshadowing, privacy and views.

(2) The height of a building on any land is not to exceed the maximum height shown for the land on the [Height of Buildings Map](#).



Subject site

Figure 6: Copy of Height of Buildings Map Sheet HOB_006AB

Comment

The height limit for the site is 8.5 metres.

The DA proposes the height of the dwelling to 11.445 metres which exceeds the height limit for the address by 2.945 metres.

2. Exceptions to development standards (clause 4.6)

The DA includes a clause 4.6 request to vary the building height development standard.

The objects of this clause are;

- (a) *to provide an appropriate degree of flexibility in applying certain development standards to particular development,*
- (b) *to achieve better outcomes for and from development by allowing flexibility in particular circumstances.*

Development consent may be granted under Clause 4.6(3) for a development that would otherwise contravene a development standard imposed by an environmental planning instrument where the applicant has provided a written request demonstrating:

- (a) *that compliance with the development standard is unreasonable or unnecessary in the circumstances of the case, and*

(b) that there are sufficient environmental planning grounds to justify contravening the development standard.

The variation being sought is not prohibited by Clause 4.6(6) or 4.6(8).

The Clause sought to be varied is 4.3(2) being that:

- The height of a building on any land is not to exceed the maximum height shown for the land on the [Height of Buildings Map](#).
- The land is within Area 'I' of the height of LLEP 2012 Buildings Map HOB_006AB. The maximum building height in Area 'I' is 8.5metres. The proposed height of the dwelling is approximately 11.445 metres above ground level, a difference of 2.945 metres.

The following table addresses the considerations in Appendix 3 of the Department of Planning and Environment's guide on varying development standards by the applicant:

Considerations	Planner's comments
1. What is the name of the environmental planning instrument that applies to the land?	Lismore Local Environmental Plan 2012 (LLEP2012)
2. What is the zoning of the land?	R1 – General residential
3. What are the objectives of the zone?	• To provide for the housing needs of the community. • To provide for a variety of housing types and densities. • To enable other land uses that provide facilities or services to meet the day to day needs of residents. • To ensure that new development is compatible with the character, and preserves the amenity, of each residential area.
4. What is the development standard being varied?	The height of a building on any land is not to exceed the maximum height shown for the land on the Height of Buildings Map. The land is within Area 'I' of the height of LLEP 2012 Buildings Map HOB_006AB. The maximum building height in Area 'I' is 8.5metres.
5. Under what clause is the development standard listed in the environmental planning instrument?	Clause 4.3(2) of the Lismore LEP 2012
6. What are the objectives of the development standard?	a) to establish a maximum height for buildings, b) to provide for taller buildings in the city centre and to enable a transition in building height in response to varying urban character and function, c) to protect the amenity of neighbouring properties and public places, with particular regard to visual bulk, scale, overshadowing, privacy and views.
7. What is the numeric value of the development standard in the environmental planning instrument?	8.5 metres.
8. What is the proposed numeric value of the development standard in your development application?	11.445 metres

Considerations	Planner's comments
9. What is the percentage variation (between the proposal and the environmental planning instrument)?	34.6%
10. How is strict compliance with the development standard unreasonable or unnecessary in this particular case?	The subject allotment is steeply sloping in a downwards direction from the southern front boundary to the rear northern boundary. The slope has been calculated at approximately 37.5% or 20.5°. Strict compliance would require the dwelling to be located further down the allotment to reduce the height which would then make access from the street more difficult for the owners who are approaching retirement age and have mobility issues which requires them to have a house design on one level. The driveway gradients for safe vehicular and pedestrian passage would also be difficult to achieve. The height will only be exceeded along the northern elevation as the land slopes steeply away at this point. At the southern elevation of the building the height complies with the height limit. The dwelling when viewed from the Belvedere Streetscape will generally be observed as a single storey only. The proposed dwelling is consistent with the objectives of clause 4.3(1), is unlikely to have an adverse impact upon the amenity of the adjoining neighbours and is unlikely to affect the views of properties on the southern side of Belvedere Drive.
11. How would strict compliance hinder the attainment of the objects specified in Section 5(a)(i) and (ii) of the Act? <i>NB: Objectives are now Section 1.3 of the Act.</i>	Strict compliance would hinder the attainment of the following objectives: (c) to promote the orderly and economic use and development of land, (h) to promote the proper construction and maintenance of buildings, including the protection of the health and safety of their occupants, The proposed works will involve the construction of an elevated dwelling on a steeply sloping allotment of land. The proposed works will enable a dwelling to be constructed on the allotment and which also provides off-street parking for two (2) motor vehicles. This development promotes a valuable economic use of a vacant allotment of land.

Considerations	Planner's comments
12. <i>Would strict compliance with the standard, in your particular case, be unreasonable or unnecessary? Why?</i>	The applicant has satisfactorily demonstrated that strict compliance is unreasonable or unnecessary in this case as discussed at item 10. Minimal adverse impacts have been identified and the proposal is consistent with the objectives of the clause.
13. <i>Are there sufficient environmental planning grounds to justify contravening the development standard? Give details.</i>	• The proposed development is consistent with the approved and permissible use of the land. • The proposed development will not result in land use conflict. • The proposed development generally meets all the objectives of Clause 4.3. • There is no loss of amenity and no apparent adverse social, environmental or economic impacts.

It is considered, in the circumstances of this development application, the applicant has sufficiently met the requirements of Clause 4.6(3).

In accordance with Clause 4.6(4)(ii), the consent authority can be satisfied, the proposed development will be in the public interest because it is consistent with the objectives of the identified standard and the objectives for development within the zone in which the development is proposed to be carried out.

Clause 55 of the *Environmental Planning and Assessment Regulation 2021* authorises Council to assume and or act for the Secretary, to grant concurrence for exemptions to development standards made under Clause 4.6.

Part 5 – Miscellaneous Provisions

3. Heritage conservation (cl 5.10)

The proposed development is identified as not being in a heritage conservation zone.

4. Bushfire hazard reduction (cl 5.11)

The subject allotment is not located within a bushfire buffer zone. No hazard reduction is proposed to occur.

5. Flood planning (cl 5.21)

The proposed development is identified as not being in a flood area

Part 6 – Additional Local Provisions

6. Earthworks (cl 6.2)

Minor earthworks are to occur which will involve the excavation for piers and a footing for a retaining wall.

7. Drinking water catchments (cl 6.4)

The property is outside the drinking water catchment for the Wilson's River.

8. Airspace operations (cl 6.5)

The application was referred to CASA. Council's Airport Coordinator has reviewed the application on behalf of CASA and advised no objection is raised to this proposed development.

9. Development in areas subject to aircraft noise (cl 6.6)

Not applicable

10. Essential services (cl 6.9)

Essential utility services are provided to the site

Schedule 5 – Environmental Heritage

Not applicable

Biodiversity Conservation Act 2016

The proposed development requires development consent from Council under Part 4 of the *Environmental Planning and Assessment Act 1979*.

The proposed development is not on land included on the Biodiversity Values Map (see below).

The proposed development does not involve clearing of native vegetation or habitat in excess of the area clearing threshold.

The proposed development is unlikely to cause a fragmentation of the existing habitat.

The proposed development is unlikely to significantly affect threatened species or ecological communities, or their habitats, and is not in a declared area of outstanding biodiversity value.

A Biodiversity Development Assessment Report is therefore not required to be submitted.

The test under section 7.3 of the *Biodiversity Conservation Act 2016* has been conducted and the proposal does not trigger the offset scheme threshold.

Subject site

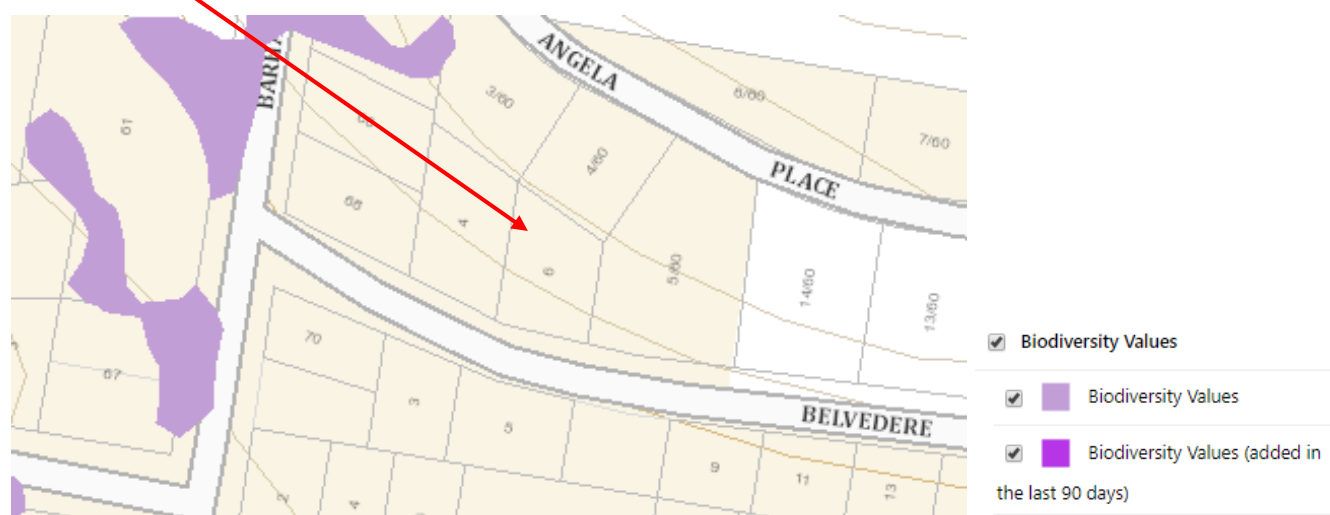


Figure 7: Copy of NSW Biodiversity Values Map

SEPP – (Biodiversity and Conservation) - 2021

The site is under 1ha in area and is not identified as having any koala habitat on the site.

The proposed dwelling is to be located clear of the majority of the existing vegetation on the site, but however will involve the removal of 4 trees, inclusive of an exempt fruit tree, weed species and two other poor specimens.

On this basis it was concluded that further investigation into core koala habitat, or an individual koala plan of management, is not required for this development under the terms of the SEPP. The site is over 1ha in area, and there may be potential koala habitat on the site.

Lismore City Council has adopted a Comprehensive Koala Plan of Management for south-east Lismore – 2013. A review of this Plan in relation to the proposed development is to be undertaken.

Lismore City Council

Meeting held 10 May 2022 - DA5.2021.562.1 Erection of a Dwelling at 6 Belvedere Drive, East Lismore

Lismore City Council – Comprehensive Koala Plan of Management for south-east Lismore 2013

The site is under 1ha in area and is not identified as having any koala habitat on the site.
The plan of management is not applicable to the subject property.

Bushfire

EP&A Act - Section 4.14 Consultation and development consent—certain bush fire prone land

Council's planning layer shows the tip of the southwest corner to be located within the Bushfire Buffer Zone as shown on the image below. This area consists of mown grass which is maintained and is unlikely to pose a hazard to the subject dwelling.



Figure 8: Copy of Map of Bushfire Prone Land

SEPP (Resilience and Hazards) 2021

Following a review of available information, Council is unaware of any contamination affecting the site. The subject site has been considered in the context of Clause 7 of State Environmental Planning Policy 55 and the Contaminated Lands Management Act and is considered unlikely the subject site presents contamination issues such that remediation would be required for the development to proceed.

SEPP (BASIX) 2004

The proposed development has been accompanied by a compliant BASIX Certificate and the plans submitted reflect these commitments.

Lismore Development Control Plan

The application has been assessed against the relevant controls in the Lismore DCP as indicated in the following compliance table, and comments are provided where the proposal does not strictly comply with the applicable provisions or conditions are required to address certain matters. Additional more detailed comments with regard to the major issues are provided after the table.

1. Development Control Plan Compliance Table

LISMORE DEVELOPMENT CONTROL PLAN		
	Complies Yes/No	Comments
Residential Development		
4.1 - Element – Setbacks, Design, Density and Height	No Variation required for the building line Variation required for the height	The dwelling will be setback approximately 6.0metres from the front boundary. However, due to the steeply sloping nature of the allotment the proposed carport & retaining wall is to be sited between the dwelling and the street and observe a zero (0) metre setback. DCP Chapter 1 – Element 4.1 states the siting of a building (building lines) must be in accordance with Acceptable Solution A1.1 which states: Buildings are setback 6m from the boundary fronting the street in zones R1, R3 and RU5. A Variation to this Requirement can be assessed by addressing Performance Criteria P1 as follows: Setbacks Topography of the land – the existing land steeply slopes downwards from the southern front boundary to the northern rear boundary. The slope has been calculated at approximately 37.5% or 20.5°. Relationship to adjoining properties – The proposed carport will observe a setback of approximately 7.5 m from the western boundary and 12.0 m from the eastern boundary. There is also a vegetative buffer along the side boundaries which will assist in minimising the visual impact of the carport upon the adjoining properties. Locality that establishes the overall setting of the site Within the localised residential area existing dwellings have reduced building lines to Belvedere Drive. Character and scale of surrounding development –The surrounding development consists on the western side, of a excavated single storey dwelling which has been set down from the street level, whilst on the eastern side, is the rear yard of the dwelling that has frontage to Angela Place. The subject carport is considered will not have an adverse impact upon the existing streetscape. Existing landscaping along the side property boundaries is to be retained which will assist in minimising the impression of the carport from the street and adjoining properties. Solar Access – The carport observes a setback of 4.0metres from the western boundary. It is considered

LISMORE DEVELOPMENT CONTROL PLAN		
	Complies Yes/No	Comments
		solar access and privacy to the adjoining properties is not likely to be impacted by the proposed development. Compatibility of carport with the dwelling – The location of the carport will enable level access from the street. The owners who are approaching retirement age and have mobility issues requires them to have the carport and dwelling on one level. Notwithstanding current circumstances, the longevity of affording user friendly off-street carparking is maintained in perpetuity with the proposed construction and situ. Summary It is therefore considered that the Performance Criteria P1 has been satisfied and it is recommended that the building line be varied to permit the erection of a carport with a reduced building line to 0.0metres to Belvedere Drive. Eave projection of Carport onto the Road Reserve The architectural plans show that due to the curvature of the southern boundary part of the eave of the carport will encroach over this boundary onto Council's Road Reserve. Accordingly, a condition has been proposed to be applied to the Development Consent requiring the eave projection to be reduced, so as not to extend out over the road reserve. Prior to the issue of any Construction Certificate revised plans are to be submitted to Council demonstrating compliance with this requirement. Building Height, Bulk and Scale Element 4.1 states the height of a building must be in accordance with Acceptable Solution A4.1 which states: - Buildings comply with the building height controls specified in the Lismore Local Environmental Plan 2012. Refer to Section under LLEP assessment for a variation to the building height of the proposed dwelling. It is recommended that the request to vary the Development Standard for the change to the building height be supported. In the light of this recommendation, the criteria under Performance P4 are addressed as follows: The development is of a height that will ensure: Consistency with the prevailing height of other buildings in the vicinity. The dwelling when viewed from the street is of a single storey dwelling, but due to the steeply sloping nature of the allotment to maintain a level floor area, the height of

LISMORE DEVELOPMENT CONTROL PLAN

	Complies Yes/No	Comments
		the dwelling above natural ground increases as shown in the sketch below  • Adequate daylight for habitable rooms and open space areas. The siting of the proposed dwelling on the allotment provides for an adequate level of lighting to the dwelling, with the living area, main and second bedrooms all having windows that face north. There is adequate open space on the allotment that faces north. • Minimal overshadowing and overlooking of adjoining premises. The siting of the dwelling will have minimal overshadowing of adjoining premises due to the setbacks of 4.0 metres to the west and 12.0 metres to the eastern boundaries. Due to the slope of the allotment and the elevated nature of the dwelling there will be some overlooking of adjoining premises. The existing vegetation adjacent to the side and rear property boundaries being maintained will assist in minimising this aspect of the dwelling and maintain a level of privacy to adjoining dwellings. • Compatibility with the local streetscape and character of the area; When viewed from Belvedere Drive the dwelling is of a single storey, which is considered compatible with other dwellings in the street which consist of both single and two storey dwellings. The walls of the dwelling are to be clad in grey corrugated steel sheeting and the roof will be grey colorbond sheeting. • The height is consistent with the height of adjoining residences, thereby reducing bulk and loss of residential amenity.

LISMORE DEVELOPMENT CONTROL PLAN		
	Complies Yes/No	Comments
		The proposed dwelling consists of a single storey, but due to the steeply sloping land the dwelling is elevated at the rear. Due to the increased setbacks from the side boundaries the height and bulk of the dwelling is unlikely to have an adverse impact upon the residential amenity of the adjoining properties. Summary It is therefore considered that the Performance Criteria P4 has been satisfied and it is recommended that the building height be varied to permit the erection of the dwelling.
4.2 - Element – Visual Privacy		The proposed dwelling is elevated above existing ground level and the setbacks of the dwelling and decks to the side and rear boundaries complies with the requirements of Clause A5.4 for ensuring visual privacy is maintained. However, as the elevation of the deck may be looking down onto adjoining premises, it may have an impact upon the amenity and privacy to the occupants of this property. To ameliorate any likely impacts, it is considered appropriate for privacy screens to be constructed along both the western & eastern elevations elevation of the deck. A specific condition is to be imposed on the Development Consent.
4.3 – Element - Acoustic Privacy	Complies	
4.4 – Element - Open Space and Landscaping	Complies	To assist in minimising possible visual impact of the subfloor area of the elevated dwelling, it is considered appropriate to require the following: • Provide a screen consisting of either lattice or vertical or horizontal boards to the section of the western elevation adjacent to the rainwater storage tank. This screen should have a height of 2.0metres. • Provide a suitable a biological visual / landscape buffer to be planted along the eastern and western elevations of the dwelling to assist in minimising any visual impacts upon adjoining properties and when viewed from the street. The buffer is to consist of native trees and shrubs chosen from the native species list contained in Part 3 of Council's Tree Preservation Order. Specific conditions are to be imposed on the Development Consent.
4.5 – Element Earthworks, Retaining Walls and Erosion Controls	Complies	
4.6 – Element – Off street Car Parking, Carports, Garages, Outbuildings and Driveways	Complies	

LISMORE DEVELOPMENT CONTROL PLAN																																	
	Complies Yes/No	Comments																															
4.7 – Element - Fences and Walls	Complies																																
4.8 – Element - Service Areas	Complies																																
4.9 – Element Orientation, Glazing and Shade Control	Complies																																
4.10 – Element – Onsite Sewage and Waste Water Management System	Not applicable																																
Flood Prone Lands																																	
Development Controls (Floodway, High Flood Risk, Flood Fringe and Low Flood Risk).	Not applicable																																
Buffers																																	
Conflicts in Land Uses	Not applicable	In accordance with this clause, the proposed development has demonstrated it is compatible with specified land uses in the locality and with surrounding established development.																															
Heritage Conservation																																	
Heritage Principles	Not applicable																																
Tree Preservation Order																																	
Land to which the TPO Order applies	Yes																																
Tree Removal requiring Consent from Council		Council's Tree Preservation Officer has given approval for the removal of the following trees, subject to a minimum of 4 trees being planted within 6 months of removal to compensate for loss of amenity. A condition has been imposed on the Development Consent. <table border="1"> <thead> <tr> <th>Tree #</th> <th>Name: Botanical / Common</th> <th>Size</th> <th>Not suitable</th> <th>Suitable</th> </tr> </thead> <tbody> <tr> <td>1</td> <td>Guava / Psidium guajava</td> <td>S</td> <td>1N</td> <td></td> </tr> <tr> <td>2</td> <td>Chinese celtis / Celtis sinensis</td> <td>S</td> <td>1K</td> <td></td> </tr> <tr> <td>3</td> <td>Macaranga / Macaranga tanarius – (clumping)</td> <td>S</td> <td>1I</td> <td></td> </tr> <tr> <td>4</td> <td>Macaranga / Macaranga tanarius - (clumping)</td> <td>S</td> <td>1L</td> <td></td> </tr> </tbody> </table> <table border="1"> <thead> <tr> <th>Tree #</th> <th>Comments</th> </tr> </thead> <tbody> <tr> <td>1</td> <td>Fruit tree (exempt from Vegetation Protection (VP) on eastern side.</td> </tr> </tbody> </table>			Tree #	Name: Botanical / Common	Size	Not suitable	Suitable	1	Guava / Psidium guajava	S	1N		2	Chinese celtis / Celtis sinensis	S	1K		3	Macaranga / Macaranga tanarius – (clumping)	S	1I		4	Macaranga / Macaranga tanarius - (clumping)	S	1L		Tree #	Comments	1	Fruit tree (exempt from Vegetation Protection (VP) on eastern side.
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LISMORE DEVELOPMENT CONTROL PLAN				
	Complies Yes/No	Comments		
		2	Weed species (exempt from VP) between trees 3 & 4.	
		3	Poor condition / dying and dead, sections have been removed. Towards front of property	
		4	Only small at present and readily replaceable. (known as a pioneer species – meaning they are generally not long-lived species)	
<u>Waste Minimisation</u>				
Relationship with Legislation	Yes			
Handling Waste	Complies	A condition has been imposed to ensure any waste materials are disposed of at a licensed waste facility.		

Section 7.11 Contributions Plan

Not Relevant to this application.

Applicable Regulations

The application was lodged and assessed in accordance with the Regulations.

The *Environmental Planning and Assessment Regulation 2021* Clause 61(1) requires that Council take into consideration AS 2601-1991: the demolition of structures, as in force at 1 July 1993. No demolition is proposed to occur on the site.

Relevant Council Policies

The proposal has been assessed against the relevant Council policies and is considered to comply with these provisions.

Design

The design is generally deemed to be of a character that is compatible with the surrounding residential area.

Materials

The materials proposed to be used will commonly be compatible with the surrounding residential area.

Amenity

The proposal is appropriate for the locality and will be of minimal detrimental impact upon the adjoining land uses or the amenity of the area.

Roads Act Approvals

The proposal requires works within the public road reserve, and as such, a permit under the provisions of Section 138 of the *Roads Act 1993* must be obtained prior to those works being undertaken. This requirement is addressed in relevant draft conditions of consent.

Local Government Act Approvals

The proposal requires approval under the provisions of s.68 of the *Local Government Act 1993* for the disposal of stormwater, the supply of water and sewerage, which must be obtained prior to those works being undertaken. This requirement is addressed in relevant conditions of consent.

All Likely Impacts of the Development

All likely impacts of the proposed development have been considered within the context of this report.

ENVIRONMENTAL APPRAISAL

CONSIDERED

1. Statutory Controls	Yes
2. Policy Controls	Yes
3. Design in relation to existing building and natural environment	Yes
4. Landscaping/Open Space Provision	Yes
5. Traffic generation and Carparking provision	Yes
6. Loading and Servicing facilities	Yes
7. Physical relationship to and impact upon adjoining development (Views, privacy, overshadowing, etc.)	Yes
8. Site Management Issues	Yes
9. ESD Principles and Climate Change	Yes
10. All relevant 4.15 considerations of <i>Environmental Planning and Assessment (Amendment) Act 1979</i> .	Yes

Comments

Finance

Not required for this matter.

Other staff comments

Relevant professional staff including NSW Rural Fire Service have been consulted and their comments incorporated into this assessment report.

Public consultation

The development application was notified to adjoining landowners in accordance with Council's Community Engagement Strategy and Participation Plan. One (1) submission was received (see Attachment 3). The matters raised in submission has been addressed in the body of this report.

Alternative Determination Options

As detailed in the conclusion of this report, the proposed development proposal is recommended to be approved subject to the draft conditions of approval. However, Councillors may form a different view of the impacts of the proposed application and what is considered as 'in the public interest'. Should the Councillors form a different perspective, the following alternative option has been provided for consideration.

The Council may determine to refuse the application, of which the reasons for the refusal may be:

1. Council is not satisfied that the proposed cl 4.6 variation demonstrates that the development standard is properly satisfied, because:
 - a) The application has not demonstrated that strict compliance with the provisions of clause 4.3(2) of the Lismore Local Environmental Plan 2012 is unreasonable or unnecessary.
 - b) The application has not demonstrated there are sufficient environmental planning grounds to justify contravening the development standard
 - c) The application has not demonstrated that the objectives of the standard have been met.
 - d) The application has not demonstrated that the Local Environmental planning objectives for the zone have been met.
 - e) The granting of consent would not be in the public interest in accordance with the provisions of s4.15(1)(e) of the *Environmental Planning & Assessment Act 1979*.

Conclusion

The proposal for a two (2) bedroom dwelling seeks a variation to the Lismore Local Environmental Plan 2012 of more than 10% to Clause 4.3(2) being the height of the dwelling will exceed the height on the Height of Buildings Map. The bulk and scale of the premises is somewhat reduced with a smaller footprint that the average house, which reduces the impact of variance in this merit-based assessment.

In accordance with Clause 4.6, the applicant has demonstrated that in these circumstances, compliance with the development standard is *“unreasonable or unnecessary”* and that *“there is sufficient environmental planning grounds to justify contravening the development standard”*.

The Lismore Local Environmental Plan variation is supported with a recommendation of approval, having consideration to the numerous articulated supporting factors, including it is not conducive to require the dwelling to be repositioned further down the allotment as this would prevent level access being provided to the dwelling from the street.

The design is an environmentally conscious outcome to reduce the disturbance of the existing slope and concurrently embellish the land management of what is currently an unmaintained vacant non developed site, which can now be better controlled.

The proposed dwelling is generally compliant and is considered to meet all relevant planning controls and is in the public interest.

Draft conditions have been included as an attachment to this report.

Attachment/s

1. [↓](#) Draft Conditions of Consent
2. [↓](#) Architectural Plans
3. [↓](#) Public Submission

Attachment 1 – Draft Conditions of Consent

CONDITIONS THAT IDENTIFY APPROVED DEVELOPMENT

1. Development in accordance with plans

The development being carried out shall be substantially in accordance with following as endorsed with Council's approval stamp, and the supporting documents submitted with the application, except where amended by the following conditions.

Plan Description	Drawn by	Drawing No.	Date
Cover Sheet & Index	Northern Rivers Drafting & Building Design	21/0823 Sheet AO-B	17/11/2021
Site Plan	Northern Rivers Drafting & Building Design	21/0823 Sheet A1-B	17/11/2021
Floor Plan	Northern Rivers Drafting & Building Design	21/0823 Sheet A2-B	17/11/2021
East Elevation	Northern Rivers Drafting & Building Design	21/0823 Sheet A3-B	17/11/2021
North Elevation	Northern Rivers Drafting & Building Design	21/0823 Sheet A4-B	17/11/2021
South Elevation	Northern Rivers Drafting & Building Design	21/0823 Sheet A5-B	17/11/2021
West Elevation	Northern Rivers Drafting & Building Design	21/0823 Sheet A6-B	17/11/2021
Sub-floor Framing Plan	Northern Rivers Drafting & Building Design	21/0823 Sheet A7-B	17/11/2021
Roof Framing Plan	Northern Rivers Drafting & Building Design	21/0823 Sheet A8-B	17/11/2021
Structural Section A	Northern Rivers Drafting & Building Design	21/0823 Sheet A9-B	17/11/2021
Detail Section B	Northern Rivers Drafting & Building Design	21/0823 Sheet A10-B	17/11/2021
Roof Plan & Notes	Northern Rivers Drafting & Building Design	21/0823 Sheet A11-B	17/11/2021
General Notes	Northern Rivers Drafting & Building Design	21/0823 Sheet A12-B	17/11/2021

In the event of any inconsistency between conditions of this approval and the drawings/documents submitted as part of the application, the conditions of this approval prevail.

Reason: To ensure that the form of the development undertaken is in accordance with the determination of Council, Public Information.

2. In granting this development consent, Council requires:

- All proposed buildings be constructed in accordance with any amendment or modification outlined in these conditions
 - All proposed works be carried out in accordance with any amendment or modification outlined in these conditions
 - Any proposed use of buildings or land be in accordance with any amendment or modification outlined in these conditions,
- and be substantially in accordance with the stamped approved plan(s) 1 dated 1 and supporting documents submitted with the application. A copy of the approved plan is attached to this consent.

Reason: To correctly describe what has been approved. (EPA Act Sec 4.15)

B. CONDITIONS THAT REQUIRE MATTERS TO BE COMPLETED PRIOR TO THE ISSUE OF A CONSTRUCTION CERTIFICATE

Dilapidation Survey

- 3 The proponent shall bear the cost of all restoration works to the road reserve that is damaged during the course of this development. A dilapidation survey of the road reserve along the frontage of the property and extending to the neighbouring properties, must be submitted to the principal certifying authority **prior to the issue of any Construction Certificate.**

Note: This documentation will be used to resolve any dispute over damage to infrastructure. It is in the proponent's interest for it to be as full and detailed as possible.

Reason: *To ensure the protection of the road reserve and infrastructure.*

Building

- 4 The erection of the building under the terms and conditions of this Development Consent must not be commenced until:
- (a) Detailed plans and specifications of the building have been endorsed with a Construction Certificate by:
 - (i) *The Council; or*
 - (ii) *An accredited certifier*

Before work is commenced Council must be informed in writing of the name and accreditation number of the Principal Certifying Authority who has been appointed to do the work.

Reason: *Required by the Environmental Planning and Assessment Act, 1979.*

- 5 **Prior to the issue of any Construction Certificate**, revised architectural plans are to be submitted to Council showing the eave projection attached to the southern elevation of the carport is located wholly within the property and does not encroach into the Belvedere Drive Road Reserve.

Reason: *To ensure the carport is erected wholly within the boundaries of the allotment.*

C. CONDITIONS THAT MUST BE COMPLIED PRIOR TO COMMENCEMENT

Site Sign

- 6 (1) A sign must be erected in a prominent position on any work site on which work involved in the erection or demolition of a building is being carried out:
- (a) stating that unauthorised entry to the work site is prohibited;
 - (b) showing the name of the principal contractor (or person in charge of the work site), and a telephone number at which that person may be contacted at any time for business purposes and outside working hours; and
 - (c) showing the name, address and telephone number of the Principal Certifying Authority for the work.
- (2) Any such sign must be maintained while to building work or demolition work is being carried out but must be removed when the work has been completed.
- (3) This condition does not apply to building works being carried out inside an existing building.

Reason: *Prescribed – Statutory.*

7. Structural engineers plans and details for the footings, slab(s), driveway, whole of dwelling framework, subfloor, wall and roof bracing & balustrading, designed and certified by a practising qualified engineer experienced in soil mechanics shall be submitted to the Principal Certifying Authority prior to the commencement of work.

Reason: *To ensure the building is structurally adequate & designed accordingly to avoid the effects of subsidence and/or slip.*

Road Reserve Works

- 7 **Prior to commencement of works within the Road Reserve** the proponent shall complete and return a Notice to Commence Works to Lismore City Council.

Reason: To ensure works within the road reserve are completed to Council's satisfaction.

- 8 **Prior to commencement of works within the Road Reserve**, the proponent must implement a traffic control plan prepared by an TfNSW (formerly RMS) accredited person for the proposed works.

Reason: To ensure works within the road reserve are completed to Council's satisfaction.

Plumbing

- 9 All plumbing works shall be subject to a 'Notice of Work' issued by the licensed plumber **prior to plumbing works commencing**. Inspection fees apply. Fees are in accordance with Council's schedule of fees and charges and are required to be paid prior to any inspection/s. It is the licensed plumber's responsibility to monitor the requirements for inspection and payment of inspection fees.

Reason: Required by Clauses 12 and 13 of the Plumbing and Drainage Act 2011.

D. CONDITIONS THAT MUST BE COMPLIED WITH DURING DEMOLITION AND BUILDING WORK**General**

- 10 All works, services, facilities and / or public utility alterations required by this approval or stated conditions whether carried out by Council or otherwise, shall be at the proponent's expense and at no cost to Council.

Reason: To provide adequate services for the development (EPA Act Sec 4.15(c))

Road Reserve Works

- 11 **The applicant is responsible** for managing the safety of the nominated work zone within the Road Reserve. The applicant must comply with all relevant work health and safety Legislation, Regulations, Codes of Practice, and Standards applicable to the nominated works and ensure all hazards relating to the works are appropriately controlled to protect all employees, contractors, public and Council staff from any unnecessary risk and potential harm.

Reason: To ensure works within the road reserve are completed to Council's satisfaction

Noise

- 12 Noise emissions and vibration must be minimised where possible and work is to be carried out in accordance with Environment Protection Authority guidelines for noise emissions from construction/demolition works and must also comply with the provisions of the Protection of the Environment Operations Act 1997.

Reason: To ensure residential amenity is maintained in the immediate vicinity.

Construction Hours

- 13 Building, Civil and/or Excavation works/construction shall be restricted to within the hours of 7.00 am to 5.00 pm Monday to Friday and on Saturday to within the hours of 8.00 am to 1.00 pm inclusive, with no work on Sundays and Public Holidays.

Demolition and excavation works shall be restricted to within the hours of 8.00 am to 5.00 pm Monday to Friday only.

Notes:

For the purposes of this condition:

"Building construction" means any physical activity on the site involved in the erection of a structure, cladding, external finish, formwork, fixture, fitting of service installation and the unloading of plant, machinery, materials or the like.

"Demolition works" means any physical activity to tear down or break up a structure (or part

thereof) or surface, or the like, and includes the loading of demolition waste and the unloading of plant or machinery.

“Civil/Excavation work” means the use of any excavation machinery and the use of jackhammers, rock breakers, excavators, loaders, or the like, regardless of whether the activities disturb or alter the natural state of the existing ground stratum or are breaking up/removing materials from the site and includes the unloading of plant or machinery associated with excavation work.

The builder and excavator shall display, on-site, their twenty-four (24) hour contact telephone number, which is to be clearly visible and legible from any public place adjoining the site.

Reason: *To ensure that works do not interfere with reasonable amenity expectations of residents and the community.*

Installation and Maintenance of Sediment Control

- 14 Techniques used for erosion and sediment control on building sites shall be adequately maintained at all times and must be installed in accordance with the “Lismore City Council Guidelines on Sediment and Erosion Control”. All techniques shall remain in proper operation until all development activities have been completed and the site fully stabilised.

Reason: *To protect the environment from the effects of sedimentation and erosion from development sites.*

Prohibition on Use of Pavements

- 15 Building materials shall not be placed on Council's footpaths, roadways, parks or grass verges, (unless a permit is obtained from Council beforehand) and a suitable sign to this effect shall be erected adjacent to the street alignment.

Reason: *To ensure public safety and amenity on public land.*

On-site Sanitary Facilities

- 16 Temporary toilet facilities must be provided on the site, prior to commencement of building work and must be maintained until permanent facilities are provided. Pit or pan toilets are not permitted without the prior consent of Council.

Reason: *To ensure the provision of minimum amenities to the site.*

Roof Reflectivity

- 17 Roofing materials shall be factory pre-finished with low glare and reflectivity properties to be compatible with the colours of neighbouring buildings. The selected roofing material must not cause a glare nuisance or excessive reflectivity to adjoining or nearby properties. In the event that a glare nuisance does arise from the use of a material, Council reserves the right to require materials to be treated to address the glare nuisance.

Reason: *To ensure that excessive glare or reflectivity nuisance from roofing materials does not occur as a result of the development.*

Stormwater Disposal

- 18 Downpipes must be connected to an approved stormwater drainage system as soon as the roof is sheeted and guttering fixed.

Reason: *To reduce site erosion.*

Fill Over Stormwater Easement

- 19 No filling material is to be placed within the stormwater easement located on the allotment.

Reason: *To advise that filling is not permitted, without Council's approval, over or near any Council easement.*

Cut and Fill

- 20 All cut and fill on the property must be battered at an angle not greater than 45 degrees within the property boundary, stabilised to the satisfaction of the Principal Certifying Authority and provided with a dish drain at the base.

Reason: To ensure stability of the site.

Building

- 21 The balustrade to the northern deck and carport must consist of vertical solid finished (non-transparent) baluster members spaced as per the legislation and or solid blocking where the height above finished ground level is greater than 4.0 metres. The carport balustrade shall be designed to absorb general vehicular impact in the event of collision.

Reason: To ensure compliance with the requirements of the National Construction Code Vol.2 – Building Code of Australia 2019 & ensure the barriers are capable of withstanding vehicular interaction and not place the occupants and or general public at risk.

Tree Removal

- 22 The following trees are approved to be removed:

- a) Guava / *Psidium guajava*
- b) Chinese celtis / *Celtis sinensis*
- c) Two (2) *Macaranga* / *Macaranga tanarius* – (clumping).

The removal must be completed by an Arborist (AQF level 3 qualifications) in such a way to ensure no damage is caused to any surrounding vegetation or structures on the same or adjoining lots, including any boundary fence. It is recommended that all insurances are checked before works commences.

Reason: To ensure that no damage is caused to any surrounding vegetation or structures on the same or adjoining lots, including any boundary fence.

E. OPERATIONAL CONDITIONS IMPOSED UNDER EP&A ACT AND REGULATIONS AND OTHER RELEVANT LEGISLATION

Building Code of Australia

- 23 All building work must be carried out in accordance with the provisions of the *National Construction Code Vol. 2 Building Code of Australia 2019*.

Note:

The above reference to the *Building Code of Australia* is a reference to that Code as in force on the date the application is made for the relevant:

- (a) development consent, in the case of a temporary structure that is an entertainment venue, or
- (b) construction certificate, in every other case.

Reason: Prescribed – Statutory.

Home Building Act

- 24 Building work that involves residential building work (within the meaning and exemptions provided in the Home Building Act) must not be carried out unless the Principal Certifying Authority for the development to which the work relates:

- (a) in the case of work to be done by a licensee under that Act:
 - (i) has been informed in writing of the licensee's name and contractor licence number, and
 - (ii) is satisfied that the licensee has complied with the requirements of the Home Building Act, or
- (b) in the case of work to be done by any other person:
 - (i) has been informed in writing of the person's name and owner-builder permit number, or
 - (ii) has been given a declaration, signed by the owner of the land, that states that the reasonable market cost of the labour and materials involved in the work is less than

the amount prescribed for the purposes of the definition of owner-builder work in section 29 of that Act, and is given appropriate information and declarations under paragraphs (a) and (b) whenever arrangements for the doing of the work are changed in such a manner as to render out of date any information or declaration previously given under either of those paragraphs.

Note: The amount referred to in paragraph (b)(ii) is prescribed by regulations under the Home Building Act 1989. As at 1 January 2017, that amount was \$3,000. As those regulations are amended from time to time, that amount may vary.

- (c) A certificate purporting to be issued by an approved insurer under Part 6 of the Home Building Act 1989 that states that a person is the holder of an insurance policy issued for the purposes of that Part is, for the purposes of this clause, sufficient evidence that the person has complied with the requirements of that Part.
- (d) If arrangements for doing residential building work are changed while the work is in progress so that the information submitted to Council is out of date, further work must not be carried out unless the Principal Certifying Authority for the development to which the work relates (not being the Council), has given the Council written notice of the updated information.

Reason: *Prescribed – Statutory.*

Water supply and sewerage work

- 25 All water supply and sewerage work carried out in accordance with this development consent notice must comply with the requirement of the *Plumbing & Drainage Act 2011*, the Plumbing Code of Australia and AS/NZS 3500 – Plumbing & Drainage and any applicable standards established by the *Environmental Planning and Assessment Act 1979*, *Local Government Act 1993* and Regulations thereunder.

Reason: *Generally, in accordance with the Local Government Act and by Clause 13 of Local Government (General) Regulation 2021.*

F. CONDITIONS WHICH MUST BE COMPLIED WITH PRIOR TO ISSUE OF ANY OCCUPATION CERTIFICATE

Vehicle Access

- 26 **Prior to the issue of any Occupation Certificate**, the construction of the vehicular access associated with this development must:
- (a) be constructed so that any surface water is disposed of without causing a nuisance to adjoining owners;
 - (b) meet the requirements of this consent and Council's Design and Construction Specification for Vehicular Access;
 - (c) Submit, upon completion of the driveway works, a certificate of compliance with the above requirements from an appropriately qualified and experienced person **prior to the issue of any Occupation Certificate.**

Reason: *To ensure compliance with applicable construction standards and adequate access to and from the development.*

Geotechnical Certification

- 27 **Prior to issue of any Occupation Certificate** certification from a practising qualified engineer experienced in soil mechanics shall be submitted to the Certifying Authority and Lismore City Council verifying the earthworks undertaken within the road reserve will not be affected by subsidence or landslip either above or below the works.

Reason: *To ensure protection from the effects of subsidence and/or slip.*

Plumbing

- 28 Within two (2) days of commissioning works the licensed plumber shall submit to Council a Certificate of Compliance and a "sewerage service diagram" using a NSW Fair Trading pre-formatted Service Plan template.

Reason: *Required by Clauses 15 and 16 of the Plumbing and Drainage Act, 2011.*

- 29 **Prior to the issue of any Occupation Certificate**, a tempering valve shall be installed so as to deliver hot water at the outlet of all sanitary fixtures, such as baths, basins and showers, at a temperature not exceeding 50°C.

Reason: *To reduce the likelihood of scalding.*

Building

- 30 **Prior to the issue of any Occupation Certificate**, the window openings to bedrooms which are located more than 2 metres or more above the finished ground surface beneath must comply with the following requirements of Clause 3.9.2.5 of the Building Code of Australia:

- (a) The openable portion of the window must be protected with—
 - (i) a device capable of restricting the window opening; or
 - (ii) a screen with secure fittings; and
- (b) A device or screen required by (i) must—
 - (i) not permit a 125 mm sphere to pass through the window opening or screen; and
 - (ii) resist an outward horizontal action of 250 N against the—
 - window restrained by a device; or
 - screen protecting the opening; and
 - (iii) have a child resistant release mechanism if the screen or device is able to be removed, unlocked or overridden.

Reason: *To minimise the risk of a person accidentally falling through an openable window*

Tree Replacement

- 31 **Prior to the issue of any Occupation Certificate**, a minimum of 4 trees must be planted within six (6) months of the removal of the trees identified in Condition 22, in a suitable location, which will afford screening to the dwelling subfloor under croft & infrastructure. Species chosen to be local native species, preferably chosen from the native species list contained in Part 3 of Council's Tree Preservation Order.

Reason: *To comply with the requirements of Council's Tree Preservation Order to replace removed trees with an appropriate number of new trees and to ensure a reasonable level of amenity for the locality, together with the screening of the dwelling supporting sub-floor infrastructure.*

Road Reserve Final Inspection

- 32 **Prior to the issue of any Occupation Certificate**, it is the proponent's responsibility to arrange an inspection with Lismore City Council to assess the condition of the road reserve along the frontage of the property and the construction of the vehicular access. Any damage to the road reserve because of construction activities **will need to be rectified** prior to final acceptance by Council and **the issue of any Occupation Certificate**.

Reason: *To ensure works within the road reserve are completed to Lismore City Council's satisfaction.*

Privacy Screen

- 33 **Prior to the issue of any Occupation Certificate**, permanent fixed privacy or visual screening shall be provided to the following locations:

- a) to the **eastern** & western elevations of the rear timber covered deck. The privacy screen(s) shall be designed to obscure direct views into the rear yard area of the adjacent properties using directional louvers or of a similar design.
- b) to the sub floor area of the western elevations of the dwelling to act as a screen for the rainwater storage tank. The visual impairment screens can be constructed of lattice, vertical or horizontal boards or similar approved finishes and must be a minimum of 3.0 metres in height.

All screening must be maintained in perpetuity.

***Reason:** To minimise any visual impacts of development from adjoining properties and assist in maintaining privacy to adjoining properties.*

Landscaping

- 34 **Prior to the issue of any Occupation Certificate**, a biological visual / landscape buffer shall be planted along the length of the eastern and western elevations of the dwelling with a plant/tree/scrub maturity height to at least the underside of the windows to minimise visual & amenity impacts upon adjoining properties and the streetscape.
The buffer is to consist of native trees and shrubs chosen from the native species list contained in Part 3 of Council's Tree Preservation Order.

All screening must be maintained in perpetuity.

***Reason:** To minimise any visual impacts from the development upon adjoining properties and/or streetscape*

G. ON-GOING CONDITIONS THAT MUST BE COMPLIED WITH AT ALL TIMES

Building

- 35 External lighting must be adjusted or hooded to prevent any nuisance to neighbouring property.

***Reason:** To ensure a reasonable level of amenity for adjoining properties.*

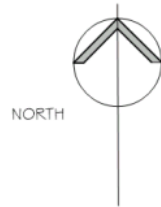
- 36 The use of the building must not unreasonably interfere with the amenity of the neighbourhood.

***Reason:** To ensure that reasonable levels of amenity for neighbouring properties are maintained.*

37. The existing landscaping on the allotment including the mature trees and scrubs below the northern elevation and or adjacent to the eastern and western elevations of the dwelling, other than any specimens approved to be removed under condition 22, shall not be removed and or pruned without the Consent Authority's approval and shall be always maintained in perpetuity.

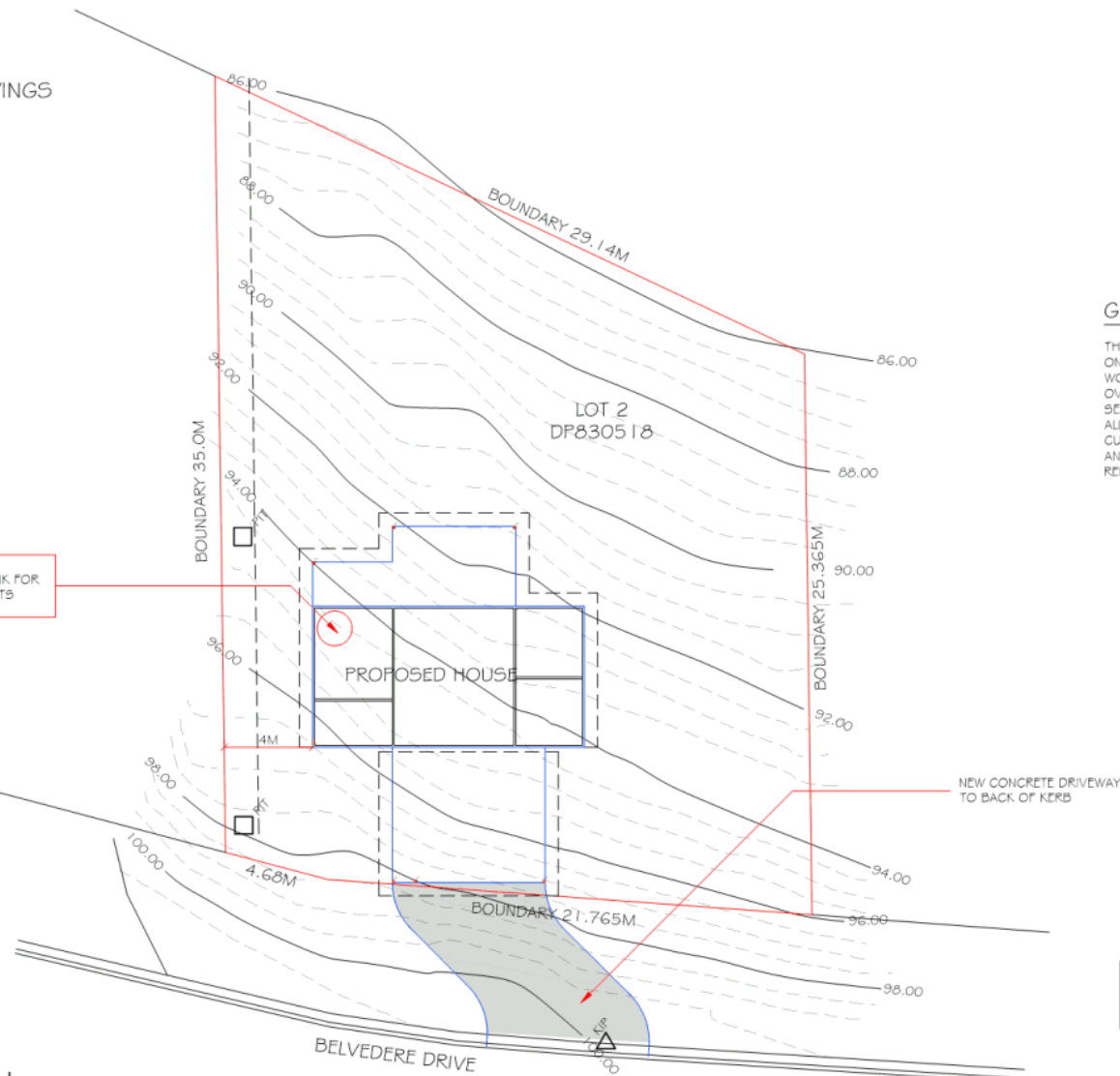
***Reason:** To minimise any visual impacts from the development upon the adjoining properties and/or streetscape from the existing foliage & Flora & ensure the dwelling sub-structure is screened at all times.*

ARCHITECTURAL DRAWINGS



3000lt+ WATER TANK FOR
BASIX COMMITMENTS

SITE PLAN
SCALE 1:200 @ A3



GENERAL NOTE:

THE CONTRACTOR IS TO VERIFY ALL DIMENSIONS ON SITE PRIOR TO THE COMMENCEMENT OF ANY WORKS. FIGURED DIMENSIONS TAKE PRECEDENCE OVER SCALING. VERIFY LOCATION OF EXISTING SERVICES PRIOR TO COMMENCEMENT OF WORK. ALL WORK IS TO BE IN ACCORDANCE WITH THE CURRENT AUSTRALIAN STANDARDS AND CODES. ANY REVISIONS OF CHANGES IN PLAN MUST BE REPORTED BACK TO THE DESIGNER.



NORTHERN RIVERS DRAFTING
& BUILDING DESIGN

MOB 0490 175 927
EMAIL northernriversdhd@gmail.com

CLIENT
JOSEPH GERSTEN
PROJECT
PROPOSED DWELLING AT
6 BELVEDERE DRIVE, LISMORE
TITLE

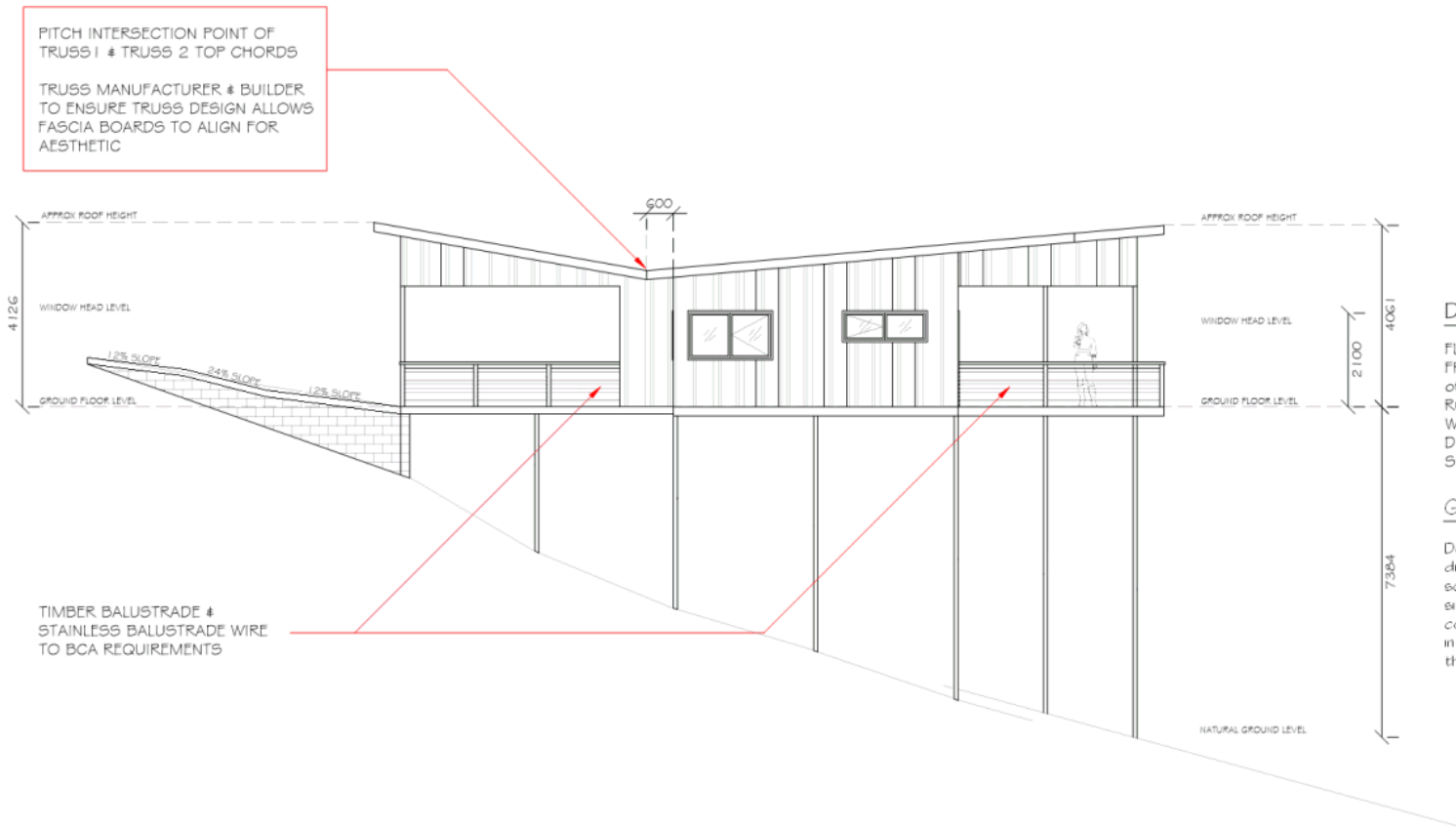
SITE PLAN

JOB No.
21/0823

DRAWING No.
A1 of 12

REVISED
21/08/2021 (P1)
22/08/2021 (P1) &
24/11/2021 (P1) &
15/11/2021 (P1) &
17/11/2021 (P1) &

ARCHITECTURAL DRAWINGS

Details:

FLOOR: Timber Framed
 FRAME: 90mm Timber Frame unless otherwise indicated
 ROOF: Colorbond Sheetting
 WINDOWS: Aluminium frames
 DECK POSTS: Hardwood Timber/ Gal Steel

General Notes

Do not scale from the drawings. Written dimensions shall take precedence over scale. Builder to verify dimensions on site prior to the commencement of construction. Any revisions of changes in the plans must be reported back to the designer.

EAST ELEVATION

SCALE 1:100 @ A3



NORTHERN RIVERS DRAFTING
 & BUILDING DESIGN

MOB 0490 175 927
 EMAIL northernriversdhd@gmail.com

CLIENT
 JOSEPH GERSTEN
 PROJECT
 PROPOSED DWELLING AT
 6 BELVEDERE DRIVE, LISMORE
 TITLE

ELEVATIONS

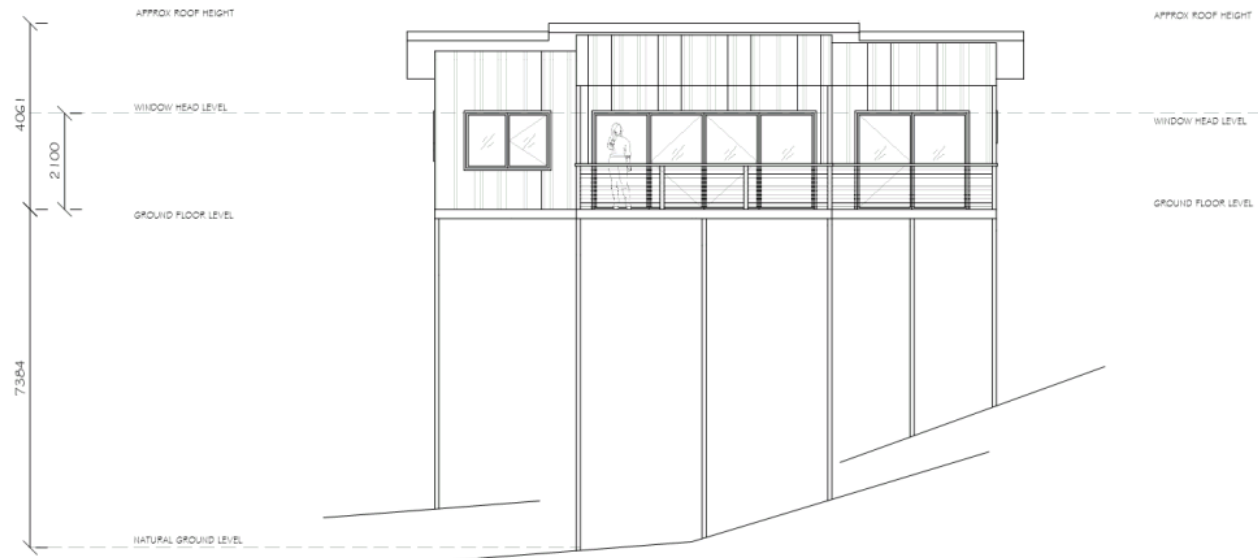
JOB No.
 21/0823

DRAWING No.
 A3 of 12

REVISED
 2021/08/23: DRAFT #1
 2021/08/23: DRAFT #2
 2021/08/23: Final SET #1
 2021/08/23: Final SET #2

General Notes

Do not scale from the drawings. Written dimensions shall take precedence over scale. Builder to verify dimensions on site prior to the commencement of construction. Any revisions of changes in the plans must be reported back to the designer.



SCALE 1:100 @ A3



NAME	DIMENSIONS
SD1	2100 - 2400 XO
SD2	2100 - 4800 OXXO
SW1	1200 - 1800 OX
SW2	600 - 1800 XO
SW3	1000 - 600 OX
SW4	1000 - 900 XO
SW5	900 X 1200 OX
FW3	1500 X 1000 O
SW2	900 - 1800 XO
SD3	900 - 1800 XO
SD3	2100 X 2160 XO
SD4	2100 - 3570 OXXO

REVISION
2208/2021 DRAFT A
2208/2021 DRAFT B
04/11/2021 PRELIMINARY A
15/11/2021 FINAL SET A
17/11/2021 Final SET B

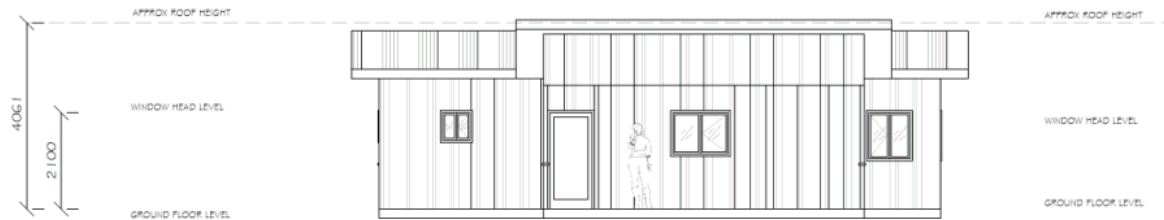
ARCHITECTURAL DRAWINGS

Details:

FLOOR: Timber Framed
 FRAME: 90mm Timber Frame unless otherwise indicated
 ROOF: Colorbond Sheetting
 WINDOWS: Aluminium frames
 DECK POSTS: Hardwood Timber/ Gal Steel

General Notes

Do not scale from the drawings. Written dimensions shall take precedence over scale. Builder to verify dimensions on site prior to the commencement of construction. Any revisions of changes in the plans must be reported back to the designer.



SOUTH ELEVATION

SCALE 1:100 @ A3



BASIX Commitments.

Water

Fixtures	Showerheads	min 3 star
	Toilet	min 6 star
	Kitchen taps	min 6 star
	Bathroom taps	min 6 star
Alternative Water	Rain water Tank	min 3000l
	Collection area	min 1.86m²
	Connect to at least	1 outdoor tap

Thermal Comfort

Construction	Insulation
Floor	Nil
External Walls	R 2.50
Raked ceiling pitched roof (> 10°)	ceiling R 2.5, roof 100mm foil backed blanket
Raked ceiling low pitched roof	ceiling R 1.1, roof 100mm foil backed blanket

Energy

Hot Water	Solar - Electric Boosted
Cooling System	Living Area Split System
	Bedrooms Split System
Heating system	Living Area Split System
	Bedrooms Split System
Ventilation	Bathroom Ducted fan
	Kitchen Ducted fan
	Refrigerator Wall vent-lated
	Laundry Ducted fan
Lighting	Fluorescent or LED
Cooking	Electric cooktop & Electric oven
Other	Outdoor Clothes line

NORTHERN RIVERS DRAFTING
 & BUILDING DESIGN

MOB 0490 175 927
 EMAIL northernriversdhd@gmail.com

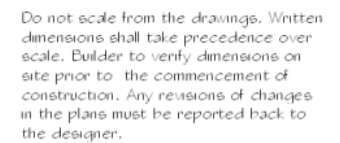
CLIENT
 JOSEPH GERSTEN
 PROJECT
 PROPOSED DWELLING AT
 6 BELVEDERE DRIVE, LISMORE
 TITLE

ELEVATIONS & BASIX COMMITMENTS

JOB No.
 21/0823

DRAWING No.
 A5 of 12

REVISED
 2020-02-01: Draft #1
 2020-02-01: Draft #2
 2020-02-01: Draft #3
 2020-02-01: Draft #4
 2020-02-01: Draft #5
 2020-02-01: Draft #6
 2020-02-01: Draft #7
 2020-02-01: Draft #8
 2020-02-01: Draft #9
 2020-02-01: Draft #10
 2020-02-01: Draft #11
 2020-02-01: Draft #12
 2020-02-01: Draft #13
 2020-02-01: Draft #14
 2020-02-01: Draft #15
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 2020-02-01: Draft #99
 2020-02-01: Draft #100



A horizontal number line is shown with tick marks at every integer from 1 to 10. The intervals $[1, 2]$, $[3, 4]$, $[5, 6]$, $[7, 8]$, and $[9, 10]$ are shaded in gray.

57

A 3D architectural rendering of a modern, single-story house. The house features a flat roof with a dark trim. The exterior walls are light gray with vertical siding. There are several windows: a large multi-paned window on the right side, and smaller windows on the left. The house is elevated on a series of dark, thin, vertical stilts. A wooden deck or platform is visible on the right side of the house, where two small figures of people are standing. The house is situated on a green lawn with horizontal lines, and a concrete foundation or base is visible on the left side. The background is a plain, light gray wall.



LOT	2
DP	830518
SITE AREA	807m ²

SHEET	SHEET NAME
A0	COVER SHEET
A1	SITE PLAN
A2	FLOOR PLAN
A3	ELEVATIONS
A4	ELEVATIONS & WINDOW SCHEDULE
A5	ELEVATIONS & BASIS COMMITMENTS
A6	ELEVATIONS
A7	SUB FLOOR FRAMING PLAN
A8	ROOF FRAMING PLAN
A9	STRUCTURAL SECTION A
A10	DETAIL SECTION B
A11	ROOF PLAN & NOTES
A12	GENERAL NOTES



REVISION
22082021 DRAFT A
22082021 DRAFT B
04/11/2021 PRELIMINARY A
13/11/2021 FINAL SET A
17/11/2021 FINAL SET B

Mr L. De Pra



08/01/2022

Re: Submission of concern for development application
Lot 1 DP: 830518, 6 Belvedere Drive, East Lismore

To whom it may concern,

Thank you for the correspondence (dated: 15 December 2021) informing me of the development proposal of Lot 1 DP: 830518, 6 Belvedere Drive, East Lismore for review.

I would like to take this opportunity to raise some concerns that I have and would like these to be taken into consideration by Council accordingly.

1. The impact of building and associated earthworks in destabilizing the large surface rocks and rock embankment behind my house. I am extremely concerned about the impact of vibration and similar building works causing movement and dislodgement of rocks. Being located on a very steep slope, there is a high risk that rocks will roll down into my backyard and cause damage to my retaining wall and house.
2. I am also concerned about the impact of vibration from the general works and specifically damage to my house due to possible drilling and piling. In regards to drilling and piling, there is also a concern about the effect of the pylons on possible redirection of underground springs and water table towards my property.
3. Privacy in terms of the building view, it will be overlooking my house, backyard and in particular the side of the house where the bedrooms and their windows are located. I would be satisfied with the existing native trees as well as other trees/shrubs which are 'native wildlife friendly' for an environmental buffer. It is also in keeping with the aesthetic of the requirements of the Community Association Strata Plan – DP 270567, noting the property will be overlooking my house which is part of a strata development. In saying this, I have worked at the back of the property for many years, planting a range of native trees to provide shelter and food for wildlife in particular birds and butterflies. My strong preference is not for a colour-bond fence or similar. Rather, I would very much prefer an environmental buffer as I outlined earlier.
4. Drainage is another important point of concern. Drainage adjoining the Lismore City Council reserve section of Belvedere Street in East Lismore has proven inadequate in times of heavy rain and major rain events as there has been high volumes of surface water travelling from Belvedere Street onto my property and this issue was reported to Lismore City Council in recent years about drainage concerns when my house sustained significant water/ flood damage in recent rain events. Again, being located on a steep slope, it is critically important that drainage for this site is managed appropriately in order that there is no impact on my property and house. Under no condition is drainage/water to be diverted onto my property as a result of this construction.

5. Hours of building works impacting quiet enjoyment and amenity of my property is a concern as it is currently tenanted. As the tenant is a full time worker, I ask that building works do not commence before 7.00 am week days and if possible no building works to occur on weekends.
6. Noting the operation of the *Government Information (Public Access) Act 2009* and that my submission will be publicly available, I request that my personal details such as: name and surname; postal address and email address be redacted before publication on the Lismore City Council's website. I have concerns regarding potential reprisal actions should my personal details be made publicly available.

For any future correspondence regarding this submission, please send all correspondence to the following email address: [REDACTED]

I appreciate your understanding and support in this matter.

Kind Regards,

Mr [REDACTED] De Pra.

Report

Subject	Public exhibition of the Draft Imagine Lismore 2022/23 Operational Plan and Budget
TRIM Record No	BP22/236:EF21/264
Prepared by	Manager Finance
Reason	
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

The *Local Government Act 1993* requires Council to revise its delivery program and prepare an operational plan every year.

The operational plan must include projects and activities to be undertaken during the year, a detailed budget, revenue policy for rates, annual charges and fees & charges, and any proposed borrowings. To meet requirements, a draft Imagine Lismore Operational Plan 2022/23 has been prepared.

Recommendation

That the draft Imagine Lismore Operational Plan 2022/23 be placed on public exhibition for 28 days and any submissions reported to Council for consideration prior to adoption.

Background

The *Local Government Act 1993* requires a council to prepare a long-term community strategic plan, a four-year delivery program and annual operational plan.

The Imagine Lismore Community Strategic Plan 2017-2027 was adopted by Council in 2017. It represents the Council and the community's shared vision for the Lismore local government area and sets clear objectives and strategies to meet this vision.

The revised Imagine Lismore Delivery Program 2017-2021 was adopted by Council in 2019. It sets out the projects and activities to be undertaken by Council during this period to achieve the strategies. The Delivery Program is reviewed each year.

Finalisation of a revised Community Strategic Plan and Delivery Program have been impacted by the recent natural disasters and will be shared with Council in the coming weeks. These plans were largely developed prior to the natural disaster events, and will continue to be revised to reflect our recovery journey.

The operational plan is a sub-set of the delivery program and sets out projects and activities to be undertaken that year and includes the annual budget, revenue policy for rates, annual charges, and fees and charges, and proposed borrowings.

Budget Context

Council's financial position remains challenging. Council's revenue base is insufficient to maintain its current asset base and to deliver target service levels (without a change in priorities), which results in limited capacity to address asset maintenance backlogs (including road improvements) and deliver discretionary services and activities such as tourism and economic development initiatives.

This change in focus is imperative.

The 2022/23 Budget has been prepared with five (5) key objectives in focus:

1. Community
2. Economic development
3. Fiscal discipline
4. Business as Usual within the financial capacity of Council

With the core focus being:

5. Asset – renewal and maintenance

In addition, Council will face a series of decisions to address long term financial sustainability, including:

- The need to focus on Council's core asset base, limiting investment in non-core activities where possible,
- Continual focus on the commercial viability, efficiency, and financial performance of Council's commercial enterprises,
- Potential divestment of non-core assets that represent a drain on Council's current financial position, and
- Renewed discipline in investment decisions to contemplate long-term cost to Council of grant-funded works.

Draft Operational Plan – 2022/23

Based on the requirements of the *Local Government Act 1993*, the draft Imagine Lismore Operational Plan 2022/2023 has been prepared. The key components of the Plan are: -

1. Operational Plan activities to be undertaken during 2022/23.
2. Budget
3. Revenue Policy for rates, annual charges, and fees & charges; and
4. Proposed borrowings.

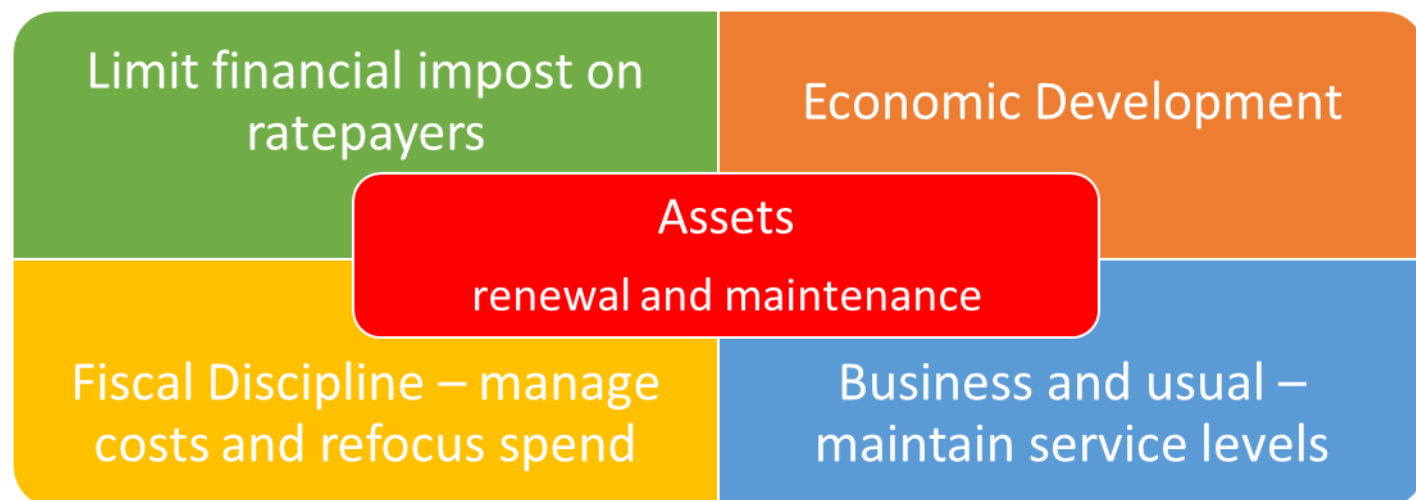
Information and commentary on the following key aspects of the Plan are included in this report: -

1. 2022/23 Budget
2. Rates and Annual Charges
3. Fees & Charges
4. Borrowings
5. Acquisition of Assets
6. Other Matters

1. 2021/22 Budget

The 2022/23 budget has been developed using a top-down approach, concentrating on core business only.

The five (5) key pillars:



The 2022/23 budget is a back-to-basics budget and bringing the cost of the business under control and in line with revenues. Budget targets have been set by management and are in line with Council's overall strategic priorities.

The Budget is a consolidation of three separate funds being General, Wastewater and Water Funds. While General Fund revenues can be applied to any purpose allowed by the *Local Government Act 1993*, revenues collected in Wastewater and Water Funds must be expended for the purpose it is collected. As such, the budget information is reported for all funds separately, as well as a consolidated (all council) position.

The key highlights of the budget are:

Strategic Focus	Amount	Amount
Roads	Drainage	\$444k
	Footpath	\$297k
	Construction	\$700k
	Roads Potholes	\$3 million
	Road Construction	
	Total	\$4.44 million
Asset management	Building Renewal	\$400k
	Plant Replacement	\$700k
Economic Stimulus*	Incentive for Events	\$80k
	Lismore Brochure	\$25k
	Rental Relief – Council CBD Properties	\$202k
	Total	\$307k

In summary, the key financial results and information for the Budget are: -

Measure	2023 Budget '000	2022 Adopted Budget '000	Movement '000
Operating Result	3,707	16,502	(12,795)
Own Result before Capital Grants & Contributions	(14,410)	(19,429)	5,019
Cash Result	585	(417)	1,002
Capital Planned	(51,928)	(66,170)	(14,242)
New Borrowings	-	-	-

With regards to the Operating Results and Cash Position reported above, all have specific value and require due consideration by Council: -

- **Net Operating Result for the Year** – This reflects the budgeted financial performance of the Council for the financial year. As it includes capital grants and contributions revenues for capital works which are not expensed in the result, the Net Operating Result for the Year before Capital Grants & Contributions is considered to better reflect financial performance.

From a financial sustainability perspective, it is essential that the Net Operating Result for the Year is a surplus.

- **Net Operating Result for the Year before Capital Grants & Contributions** – This is considered the better measure of financial performance as it matches more accurately resources generated in recurrent operations against resources used in recurrent operations. There are some minor exceptions to this such as for operating expenses being funded from reserves or unexpended grants.

From a financial sustainability perspective, it is essential that the Net Operating Result for the Year before Capital Grants & Contributions is a surplus.

A consolidated deficit result is anticipated. Deficit results are anticipated in all funds. As ongoing deficits are not financially sustainable, the review of the Long-Term Financial Plan to commence shortly will have an objective to achieve surplus operating results.

- **Cash Position** – This simply reflects the financial results from a cash perspective.

It is essential that a surplus cash position is achieved in the General Fund. This provides Council with greater flexibility to financially manage unplanned events or exceptional circumstance that always arise during the year, instead of considering changes to the adopted budget during the year when options and time to implement solutions are limited and not always optimal.

For 2022/23, a cash surplus of \$585,100 is budgeted. Management will continue to explore cash saving measures to return a surplus result.

- **Key Performance Indicators Assets– Consolidated**

Lismore City Council
Meeting held 10 May 2022 - Public exhibition of the Draft Imagine Lismore
2022/23 Operational Plan and Budget

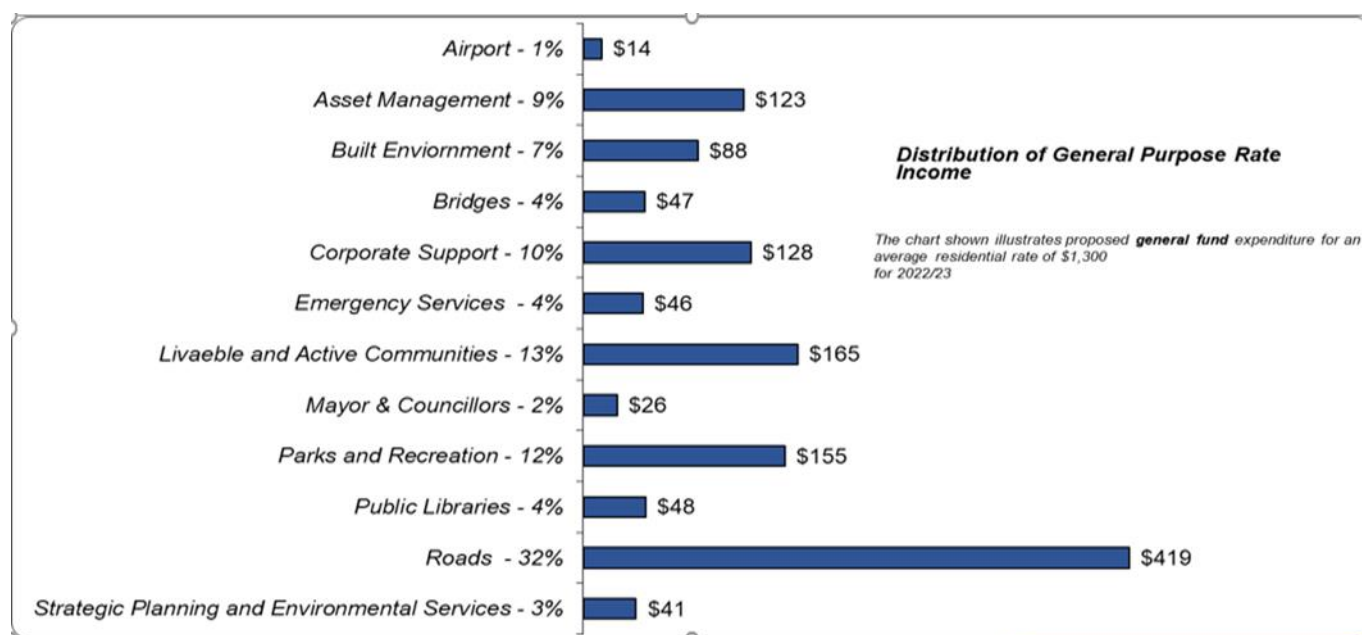
The Income Statement, Balance Sheet, Cash Flow Statement, Summary by Program and Key Performance Indicators for the draft 2022/23 Budget are attached.

2. Rates and Annual Charges

The following is a summary of the proposed changes to the rates and major annual charges included into the Plan: -

General Rates

The Budget has been prepared applying a 0.0% increase. For the average urban residential ratepayer, the general rates will not increase from \$1,300.



Waste Management Services

There is no increased in charges

The key charges include: -

Service	Proposed Charge
Integrated Waste Collection Service	\$ 327.30
Rural Collection Service – Charge	\$ 409.40
Business Collection Urban Service	\$ 434.20
Business Collection Rural Service	\$ 405.25
Nimbin Transfer Station – Charge	\$ 157.80
Waste Minimisation –Charge	\$ 65.00

Wastewater Charges

There is no increased in charges

For 2022/23, the proposed charge is \$977.

The following is a summary of the proposed charges: -

Wastewater Charges:	2022/23
For single unit dwelling houses	\$977.00
For residential flats for each unit of occupancy	\$683.90
For non-domestic properties (excluding properties within the established strength category), per equivalent tenement	\$977.00
For properties not connected to a sewerage scheme and able to do so and located within 75 metres of a Council sewer	\$586.20
North Woodburn – Connection Charge (Existing Properties Only)	\$476.04
Sewer Rebate 1	\$293.10
Sewer Rebate 2	\$488.50

Average Residential rates including charges.

Charge	2021/22	2022/23
General Fund	\$ 1,300.00	\$ 1,300.00
Waste	\$ 327.30	\$ 327.30
Sewer	\$ 977.00	\$ 977.00
Stormwater	\$ 25.00	\$ 25.00
Waste Minimisation	\$ 65.00	\$ 65.00
Total	\$ 2,694.30	\$ 2,694.30

Stormwater Management Services Charges:

The Stormwater Management Services charge is applied to rateable land within the Lismore urban area. There are exemptions to the charge with vacant and crown land (including Department of Housing) most prominent.

For residential lots the charge will be \$25.00. For residential strata and company titled land, the charge will be \$12.50 per unit

Stormwater Management Services	Budget
Stormwater Infrastructure -	\$153,000
(enhancing current infrastructure and constructing new treatment infrastructure)	
Infrastructure services (new treatments) – repayments	
	\$30,000
Maintenance and monitoring of treatment devices	\$80,600
Business, staff, and community education	\$15,000

Information gathering / administration	\$91,300
Totals	\$369,900

Water Charges

For 2022/23, it is proposed to increase consumption charges to \$4.56 per kilolitre from \$4.44 per kilolitre, and the base service availability charge to \$334.83 per annum from \$325.92 per annum. This is a 2.78% increase and is driven by the increase in charges from Rous County Council. Rous County Council has applied a 6.98% increase in supply charges to Lismore City Council:

A summary of water charges follows: -

Water Charges	2021/22	2022/23
Consumption Charge	\$4.44 per kilolitre	\$4.56 per kilolitre
20mm service	\$325.92	\$334.83
25mm service	\$509.24	\$523.16
32mm service	\$834.32	\$857.13
40mm service	\$1,303.64	\$1,339.28
50mm service	\$2,036.92	\$2,092.61
65mm service	\$3,442.40	\$3,536.52
80mm service	\$5,514.52	\$5,357.10
100mm service	\$8,147.68	\$8,370.46
150mm service	\$18,332.28	\$18,833.54
Unconnected Properties	\$325.92	\$334.83
Fire Service	\$325.92	\$334.83
Water Rebate Service	\$162.96	\$167.42

Summary

More information on all rates and annual charges is provided in the Revenue Policy & Borrowings attachment.

3. Fees & Charges

The draft 2022/23 Fees & Charges have been prepared in accordance with Council's policy 1.5.9 Pricing Policy – Fees & Charges.

Council is proposing a 0.0% increase in general fees and charges, excluding Commercial Operations, Statutory Charges and Water Charges.

A full copy of the draft 2022/23 Fees & Charges is attached.

4. Borrowings

Council is required to submit a program of new borrowings seeking approval from the Office of Local Government on an annual basis.

Council does not propose to borrow for 2022/23.

5. Acquisition of Assets

A total of \$ \$51.9 million in acquisition of assets are included in the draft 2022/23 Budget.

The acquisition of assets total \$33.262 million, \$9.016 million and \$9.609 million for General, Wastewater and Water Funds respectively.

A full schedule of works is included in the Attachment: 2.Budget

6. Other Matters

The following are additional items or information provided to assist Council in its determination: -

Natural Disaster 2022

Council has suffered a catastrophic disaster in February/March 2022 which has significantly impacted the community and has also caused major damage to most Council's assets.

Once the event can be quantified and the support that will be available from various Government Agencies confirmed, the budget will be amended to reflect these outcomes.

Long Term Financial Plan

The Long-Term Financial Plan (LTFP) is a 10-year financial plan with a key objective to provide the road map to long-term financial sustainability. It is to be reviewed annually. This review will commence once the 2022/23 Budget is on public exhibition.

Comments

Finance

Comments have been incorporated into the body of this report.

Public consultation

The draft Operational Plan 2022/23 will be placed on public exhibition for 28 days from 13 May 2022 to 10 June 2022.

Submissions received will be reported to Council's 14 June 2022 meeting for consideration.

Conclusion

Council's financial position remains challenging. Council's revenue base and spending priorities are insufficient to maintain its current asset base and to deliver target service levels, which results in limited capacity to address asset maintenance backlogs (including road improvements) and deliver discretionary services and activities such as tourism and economic development initiatives.

The recent natural disaster has caused significant damage to Council's assets and infrastructure not mention the devastation caused to the community as a whole. Once the event can be quantified and the support that will be available from various Government Agencies confirmed, the budget will be amended to reflect these outcomes.

The 2022/23 budgets is the first step in Council reprioritising its commitment to the maintenance and renewal of its large infrastructure base.

Further action will be required by Council to address the long-term sustainability of Council whilst addressing its infrastructure issue and delivery the levels of service expected by the community.

Attachment/s

1. [↗](#) Draft 2022/23 Fees and Charges (Over 7 pages)
2. [↗](#) Budget by Program 2022/23 (Over 7 pages)
3. [↗](#) Revenue Policy & Borrowings 2022/23 (Over 7 pages)

Report

Subject	Draft 2022/23 Budget and Fees & Charges - Richmond Tweed Regional Library
TRIM Record No	BP22/268:EF21/267
Prepared by	Management Accountant
Reason	Draft Budget and Fees and Charges required to be adopted by Executive Council
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

Lismore City Council is the Executive Council for Richmond Tweed Regional Library (RTRL).

As Executive Council Lismore City Council is responsible for preparing and adopting the budget and Fees & Charges for RTRL.

The 2022/23 draft Budget and Fees & Charges have been endorsed by the Senior Leadership Group and the RTRL Committee. Member Councils were formally notified in late April 2022 and have not yet endorsed the 2022/23 budget.

Lismore City Council is only required to report its interest in RTRL (recognised as an associate) in its budget.

Recommendation

That Council adopt the 2022/23 draft Budget and Fees & Charges for Richmond Tweed Regional Library.

Background

Lismore City Council is the Executive Council for Richmond Tweed Regional Library (RTRL). In its capacity as Executive Council, Lismore City Council is responsible for preparing and adopting the budget and Fees & Charges for RTRL. The 2022/23 draft Budget and Fees & Charges document has been prepared. The document has been endorsed by the Senior Leadership Group (SLG) at its meeting on 8 April 2022 and also endorsed by the RTRL committee at its meeting held 22 April 2022. (See copy of report attached).

The Deed of Agreement requires the proposed RTRL Annual Budget to be endorsed by the RTRL committee, each Member Council and the SLG prior to being submitted to the Executive Council for adoption. Endorsement has not been received from the member councils at the time of writing the report as a result of the March 2022 RTRL committee meeting being rescheduled to April 2022 due to major flooding, not allowing formal notification to member councils to take place until late April 2022.

However, the deed of agreement also requires the Executive Council to use all reasonable endeavours to ensure that the RTRL annual Budget is adopted by not later than 30 June in each year. To comply with this clause of the deed, the budget is being presented to Council for adoption.

The report is showing an increase in cash contributions from 2021/22 of \$572,400 but a real increase of \$22,700. This is due to the 2021/22 contributions being part funded from reserves to assist councils during the COVID-19 shut down periods.

Lismore City Council is only required to report its interest in RTRL (recognised as an associate) in its budget.

Member councils can reduce the contribution that they make to RTRL from the amount in the draft budget. If a member council contributes less than the required Member Council Contributions to RTRL, service levels for that Member Council will need to be reduced. Any adjustments would be reported as part of the September 2022 Quarterly Budget Review.

At this time, Lismore City Council has prepared its draft 2022/23 budget including the same contribution as 2021/22. This will require an adjustment to service levels at Lismore Libraries in 2022/23.

Comments

Finance

Contained within the report.

Conclusion

The 2022/23 RTRL Budget and Fees & Charges document has been prepared and is now presented to council for adoption as required by the Deed of Agreement.

Attachment/s

1. [↓](#) RTRL - Draft 2022/23 Budget and Fees & Charges

Reports/Recommendations

Reports/Recommendations

Subject	Draft 2022/23 Budget and Fees & Charges
TRIM Record No	BP22/52:EF09/74-4
Prepared by	Management Accountant
Item Number	6.5

Overview of Report

The draft 2022/23 Budget and Fees & Charges have been prepared based on 2021/22 service levels with any significant changes reported.

The draft 2022/23 Budget and Fees & Charges have been reviewed by the Senior Leadership Group. The Senior Leadership Group endorsed the draft 2022/23 Budget and Fees & Charges.

The major change impacting the draft 2022/23 Budget is an increase in Member Council Contributions. This is due to there being no internal reserves available to offset contributions for 2022/23. As a result, Member Council Contributions are proposed to increase by \$572,400 or 8.07%.

Recommendation

That the:

1. 2022/23 Budget and Fees & Charges be endorsed; and
2. 2022/23 Budget and Fees & Charges be sent to Member Councils seeking endorsement.

Draft 2022/23 Budget

A draft 2022/23 Budget has been prepared and a full copy attached. It is based on 2021/22 service levels and where significant changes are recommended commentary is provided.

The major change impacting the draft 2022/23 Budget is:

- **Increase in Member Council Contributions – \$572,400 (2021/22 – \$7,093,400, to 2022/23 – \$7,665,800).**

In 2021/22, acknowledging Member Council financial constraints and the effects of COVID, to minimise contributions, transfers from restricted assets (reserves) were used to reduce the contributions required. There are no restricted assets (reserves) available to be used in the 2022/23 year, so the full increase in the contributions is required to maintain current services. Detailed information on Member Council contributions is provided in the report.

Financial Results

The following table shows the budgeted financial results for 2022/23 and the 2021/22 comparison.

Key Financial Performance	2021/22 Original Budget	2021/22 Forecast Budget	2022/23 Draft Budget
Net Operating Result – Surplus/(Deficit)	(\$711,600)	(\$878,900)	(\$187,200)

Richmond Tweed Regional Library

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Net Operating Result before Capital Grants & Contributions – Surplus/(Deficit)	(\$711,600)	(\$878,900)	(\$187,200)
Net Cash – Surplus/(Deficit)	Balanced	Balanced	Balanced

The **Net Operating Result** is anticipated to be a deficit of (\$187,200).

The **Net Operating Result excluding Capital Revenues** is also anticipated to be a deficit of (\$187,200).

The **Net Cash Position** is balanced. This simply means all cash expenditure is matched by a cash funding source.

This shows that RTRL does have an underlying deficit of \$187,200 for the 2022/23 year. To address the underlying deficit, increased Member Council Contributions and reduced services could be considered. This will be a consideration for Member Councils during the current investigation of service delivery models for agreed regional library services.

Other key financial information includes:

- Total Income** – \$8,076,200. This is a decrease of \$166,700 or -2.02% compared to the 2021/22 Forecast Budget.
- Total Expenditure** – \$8,869,100. This is a decrease of \$147,300 or -1.63% compared to the 2021/22 Forecast Budget.
- Asset Expenditure** – \$585,700. This is a decrease of \$87,500 or -12.95% compared to the 2021/22 Forecast Budget.

Member Council Contributions

The calculation of member council contributions uses the following categories and contribution drivers:

Branch Costs

Each Member Council pays for all direct staffing costs associated with the provision of library services in its local government area.

Mobile Library Costs

Each Member Council pays a percentage of all costs associated with the mobile library. The percentage is based on the number of mobile library's opening hours in their local government area over the total number of mobile library's opening hours in all Member Council local government areas.

Library Resources Costs

Each Member Council pays a percentage of all costs associated with library resources. The percentage is based on the estimated population in their local government area over the total estimated population in all Member Council local government areas.

Computer Systems Costs

Each Member Council pays a percentage of all costs associated with computer systems. The percentage is based on the number of PC equivalents in their local government area over the total number of PC equivalents in all Member Council local government areas.

Headquarters Costs

Each Member Council pays a percentage of all net costs associated with Headquarters. The percentage is based on the estimated population in their local government area over the total estimated population in all Member Council local government areas.

Executive Council Costs

Each Member Council pays a percentage of the costs incurred by the Executive Council in providing executive support and administrative services such as human resources, finance, administration,

Richmond Tweed Regional Library

Meeting held 22 April 2022 - Draft 2022/23 Budget and Fees & Charges

Reports/Recommendations

property, and fleet to the RTRL. The percentage is based on the estimated population in their local government area over the total estimated population in all Member Council local government areas.

After applying the above categories and contribution drivers to the draft 2022/23 Budget, an overall increase in Member Council Contributions of \$572,400 or 8.07% from the 2021/22 Forecast Budget is proposed. The following table shows individual member council contributions:

Council	2021/22 Forecast Budget	Draft 2022/23 Budget	Increase \$	Increase %
Ballina	\$1,520,600	\$1,605,900	\$ 85,300	5.61%
Byron	\$1,444,600	\$1,558,900	\$114,300	7.91%
Lismore	\$1,600,000	\$1,740,500	\$140,500	8.78%
Tweed	\$2,528,200	\$2,760,500	\$232,300	9.19%
Totals	\$7,093,400	\$7,665,800	\$572,400	8.07%

However, the 2021/22 Budget was based on reduced Member Council Contributions due to the use of Restricted Assets (reserves) to decrease the contributions required by \$549,700.

The following table shows the comparison between the 2022/23 Budget for Member Council Contributions to what the 2021/22 contributions would have been without the inclusion of available reserves:

Council	2021/22 Budget without using available reserves	Draft 2022/23 Budget	Increase \$	Increase %
Ballina	\$1,606,100	\$1,605,900	(\$ 200)	-0.01%
Byron	\$1,548,900	\$1,558,900	\$10,000	0.65%
Lismore	\$1,724,100	\$1,740,500	\$16,400	0.95%
Tweed	\$2,764,000	\$2,760,500	(\$ 3,500)	-0.13%
Totals	\$7,643,100	\$7,665,800	\$22,700	0.30%

At this time, Lismore City Council has prepared its draft 2022/23 Budget. For the RTRL contribution, Lismore City Council has included the same as the contribution in 2021/22. If a Member Council contributes less than the required Member Council Contribution to RTRL, service levels for that Member Council will need to be reduced.

Budget Commentary

The following commentary is provided on significant changes to the Budget.

EXPENDITURE

Note 1 – Salaries and Overhead Expenses

Salary and Overhead Expenses are proposed to increase from the Forecast Budget by \$18,100 or 0.32%. Staff costs will increase on average by Award indexation of 2%.

Staffing hours remain unchanged. The following table shows the weekly staffing hours in area of operations:

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Location	2021/22	2022/23	% Change
Support Services	458.06	458.06	0.00%
Ballina	404.25	404.25	0.00%
Byron	402.01	402.01	0.00%
Lismore	463.50	463.50	0.00%
Tweed	600.82	600.82	0.00%
Mobile	50.66	50.66	0.00%
Totals	2,379.30	2,379.30	0.00%
Full Time Equivalent	67.98	67.98	0.00%

Note 2 – Cleaning Electricity and Rates

An increase of \$1,300 or 2.10% is proposed in relation to rates. This is the expected increase in both general and water rate charges.

Note 3 – Vehicle Running Costs

A decrease of \$4,000 or -3.40% is proposed. This decrease is due to the disposal of a pool vehicle which is no longer required.

Note 4 – Insurance

An increase of \$2,400 or 10.08% is proposed. This increase relates to the expected increase in the insurance premium.

Note 5 – Periodicals, eResources and Library Resources

A decrease of \$19,500 or -2.56% is proposed from the 2021/22 Forecast Budget. The forecast budget included funds carried forward from the prior year. However there is a proposed increase on the recurrent budget of Periodicals, Resources and eResources of \$5,200 or 0.71%. These items have been increased by the base rate pegging for 2022/23 – 0.70%. The new calculation for rate pegging component allowed based on population subsidies has not been taken into account as this varies between member councils.

Richmond Tweed Regional Library

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Reports/Recommendations

Note 6 – Information Services

A decrease in total costs for Information Services from the 2021/22 Forecast Budget is proposed of \$11,100 or -1.80%. There is an increase in costs in relation to the continued move towards leasing PC's as they come due for renewal that had previously been purchased. This increase of approx. \$25,000 is offset by savings in software costs.

Note 10 – Special Projects

A new budget of \$10,000 is proposed for the Support Services Building investigation. This would be funded from reserves. The Support Services building is a large office and warehouse space. It may be possible to reconfigure this to include a commercial letting space. There is increased demand for commercial letting space in Lismore due to the flooding. A building consultant would be engaged to assess options and provide preliminary estimates.

If viable, it is proposed to seek approval to sell the vacant land adjoining the Support Services building to fund the investment. The return on investment and any balance of sale proceeds could be returned to operations or offset against Member Council Contributions.

INCOME

Note 7 – Fees and Charges

An increase of \$50,600 or 15.92% is proposed. This increase mainly relates to the proposed increase in Fees and Charges for Printing Costs and PC Usage. These fees have not been increased for a number of years. The increase is factoring in an expectation of a return to pre COVID usage and the return of overseas visitors who are high users of these services.

Note 8 – Interest on Investments

An increase of \$3,700 or 21.39% is proposed. The investment market is starting to move with a slow decrease in liquidity levels expected to increase the interest rate on returns into the 2022/23 financial year.

Note 9 – Leaseback Vehicle Charges

An increase of \$5,900 or 168.57% is proposed. This reflects the anticipated increase in the number of library vehicles to be used for private use once a Regional Library Manager is appointed.

Draft 2022/23 Fees and Charges

The fees & charges have been reviewed and changes recommended. Most fees have been increased to better reflect the costs of the goods and service provided.

The following changes are highlighted:

- a) Printing/Photocopying Fees:
On average these fees have been increased by 33.33%.
- b) PC Usage:
This fee has also increased by 33.33%

Attachment/s

1. Draft 2022/23 Budget
2. Draft 2022/23 Member Council Contributions
3. Draft 2022/23 Fees & Charges
4. Draft 2022/23 Area Staff Costs
5. 2022/23 ABS Population Estimates

Richmond Tweed Regional Library

Meeting held 22 April 2022 - Draft 2022/23 Budget and Fees & Charges

Draft 2022/23 Budget

Attachment 1

RICHMOND-TWEED REGIONAL LIBRARY Draft 2022/23 BUDGET					
EXPENDITURE	Original Budget 2021/22	Forecast Budget 2021/22	Draft Budget 2022/23	Percentage Change	Notes
Salaries and Overheads Expenses					1
Staff Salaries	\$4,114,700	\$4,114,700	\$4,161,900	1.15%	
Employee Leave Entitlements	\$775,000	\$820,700	\$799,200	-2.62%	
Superannuation	\$561,700	\$561,700	\$569,100	1.32%	
Workers Compensation Insurance	\$60,400	\$60,400	\$61,300	1.49%	
Staff Training & Professional Development	\$54,200	\$54,200	\$39,200	-27.68%	
Recruitment Expenses	\$3,000	\$3,000	\$3,000	0.00%	
Fringe Benefits Tax	\$500	\$500	\$100	-80.00%	
Private Vehicle Reimbursement	\$2,500	\$2,500	\$2,000	-20.00%	
	\$5,572,000	\$5,617,700	\$5,635,800	0.32%	
Administration					
External Printing	\$1,500	\$1,500	\$1,500	0.00%	
Stationery	\$6,100	\$6,100	\$6,100	0.00%	
Postage	\$5,000	\$5,000	\$5,000	0.00%	
Audit Services	\$10,000	\$10,000	\$10,000	0.00%	
Legal Expenses	\$5,000	\$5,000	\$5,000	0.00%	
Security	\$20,000	\$20,000	\$20,000	0.00%	
Special Projects	\$0	\$0	\$10,000	NA	10
NSWPLA Membership Fees	\$7,000	\$7,000	\$7,000	0.00%	
Contribution to Executive Council	\$614,300	\$614,300	\$626,500	1.99%	
	\$668,900	\$668,900	\$691,100	3.32%	
EXPENDITURE	Original Budget 2021/22	Forecast Budget 2021/22	Draft Budget 2022/23	Percentage Change	Notes
Expenses of Providing Assets					
Building Maintenance	\$10,000	\$13,400	\$13,400	0.00%	
Cleaning, Electricity and Rates	\$61,800	\$61,800	\$63,100	2.10%	2
Furniture & Equipment M & R	\$5,000	\$6,100	\$6,100	0.00%	
Equipment Maintenance	\$6,000	\$6,000	\$6,000	0.00%	
Vehicle Running	\$117,600	\$117,600	\$113,600	-3.40%	3
	\$200,400	\$204,900	\$202,200	-1.32%	
Library Service Working Expenses					
Technical Aids	\$10,500	\$10,500	\$10,500	0.00%	
Maintenance of Books/AV Maintenance	\$37,000	\$37,000	\$37,000	0.00%	
Periodicals	\$47,900	\$47,900	\$48,300	0.84%	5
Freight	\$1,200	\$1,200	\$1,200	0.00%	
Insurance	\$23,800	\$23,800	\$26,200	10.08%	4
Children's Services	\$6,400	\$6,400	\$6,400	0.00%	
Promotion and Advertising	\$20,800	\$22,300	\$22,300	0.00%	
Purchases	\$8,500	\$8,500	\$8,500	0.00%	
Inter Library Loan Expenses	\$8,000	\$8,000	\$8,000	0.00%	
Libraries Australia Licence	\$9,200	\$9,200	\$9,200	0.00%	
Ancestry.com Expense	\$10,700	\$10,700	\$10,700	0.00%	
Councillors Professional Development	\$1,000	\$1,000	\$1,000	0.00%	
Licenses & Fees	\$23,400	\$23,400	\$23,400	0.00%	
eResources	\$107,200	\$107,200	\$107,900	0.65%	5
Merchandise Purchases	\$5,000	\$5,000	\$5,000	0.00%	
Local Priority Grants - Operational	\$23,900	\$65,100	\$0	-100.00%	*
Grant Projects	\$0	\$22,800	\$0	-100.00%	*
Activities & Projects	\$0	\$21,600	\$0	-100.00%	*
Staff Review	\$0	\$0	\$0	NA	
	\$344,500	\$431,600	\$325,600	-24.56%	

Richmond Tweed Regional Library

Meeting held 22 April 2022 - Draft 2022/23 Budget and Fees & Charges

Lismore City Council

Meeting held 10 May 2022 - Draft 2022/23 Budget and Fees & Charges - Richmond
Tweed Regional Library

Draft 2022/23 Budget

Attachment 1

RICHMOND-TWEED REGIONAL LIBRARY Draft 2022/23 BUDGET					
EXPENDITURE	Original Budget 2021/22	Forecast Budget 2021/22	Draft Budget 2022/23	Percentage Change	Notes
Information Services					6
Hardware Maintenance	\$52,100	\$52,100	\$63,300	21.50%	
Software Maintenance & Purchase	\$318,700	\$349,700	\$327,800	-6.26%	
IT Consumables	\$21,700	\$21,700	\$0	-100.00%	
Telecommunication Costs & Charges	\$61,900	\$61,900	\$58,200	-5.98%	
Printing Equipment Expenses	\$32,300	\$32,300	\$32,300	0.00%	
Operating Lease - PC's & MFD's	\$99,200	\$99,200	\$124,200	25.20%	
	\$585,900	\$616,900	\$605,800	-1.80%	
Fixed Assets or Capital Items					5
Library Resources	\$581,600	\$606,300	\$585,700	-3.40%	*
Byron LGA - Furniture, Equipment and Buildings Upgrade	\$0	\$10,000	\$0	-100.00%	*
Local Priority Grant - Capital	\$0	\$56,600	\$0	-100.00%	
	\$581,600	\$672,900	\$585,700	-12.96%	
Transfers to Restricted Assets (Reserves)					
Vehicle Replacement	\$30,000	\$30,000	\$30,000	0.00%	
Headquarters Building	\$0	\$0	\$0	NA	
Local Priority Grant - Operational	\$0	\$0	\$0	NA	
	\$30,000	\$30,000	\$30,000	0.00%	
EXPENDITURE	Original Budget 2021/22	Forecast Budget 2021/22	Draft Budget 2022/23	Percentage Change	Notes
Depreciation Expenses					
	\$773,500	\$773,500	\$792,900	2.51%	
TOTAL EXPENDITURE	\$8,756,800	\$9,016,400	\$8,869,100	-1.63%	
INCOME	Original Budget 2021/22	Forecast Budget 2021/22	Draft Budget 2022/23	Percentage Change	Notes
Fees and Charges					7
Lost Book Charges	\$18,500	\$18,500	\$18,500	0.00%	
Fines	\$0	\$0	\$0	NA	
Reservations/Registrations	\$95,000	\$95,000	\$95,000	0.00%	
I.L.L.	\$4,100	\$4,100	\$4,100	0.00%	
Printing	\$177,600	\$177,600	\$225,700	27.08%	
PC Usage Charges	\$8,500	\$8,500	\$11,000	29.41%	
Book Club	\$9,200	\$9,200	\$9,200	0.00%	
Merchandise Sales	\$5,000	\$5,000	\$5,000	0.00%	
	\$317,900	\$317,900	\$368,500	15.92%	
Grants					
Diesel Rebate Scheme	\$1,500	\$1,500	\$1,500	0.00%	
Small Grants Projects	\$0	\$0	\$0	NA	
Local Priority Grant - Operational	\$0	\$0	\$0	NA	
Local Priority Grant - Capital	\$0	\$0	\$0	NA	
	\$1,500	\$1,500	\$1,500	0.00%	
Sundry Income					8
Interest on Investments	\$17,300	\$17,300	\$21,000	21.39%	
Leaseback Vehicle Charges	\$3,500	\$3,500	\$9,400	168.57%	9
Donations	\$0	\$1,000	\$0	-100.00%	*
	\$20,800	\$21,800	\$30,400	46.15%	

Richmond Tweed Regional Library

Meeting held 22 April 2022 - Draft 2022/23 Budget and Fees & Charges

Lismore City Council

Meeting held 10 May 2022 - Draft 2022/23 Budget and Fees & Charges - Richmond

Tweed Regional Library

Draft 2022/23 Budget

Attachment 1

RICHMOND-TWEED REGIONAL LIBRARY Draft 2022/23 BUDGET					
INCOME	Original Budget 2021/22	Forecast Budget 2021/22	Draft Budget 2022/23	Percentage Change	Notes
Transfers from Restricted Assets (Reserves)					
IT	\$49,500	\$80,500	\$0	-100.00%	*
Building	\$27,200	\$37,200	\$0	-100.00%	*
Bequeaths	\$0	\$0	\$0	NA	
Office Equipment & Furniture	\$0	\$0	\$0	NA	
Library Resources	\$96,200	\$119,900	\$0	-100.00%	*
Funded Projects - Small Grants	\$0	\$0	\$0	NA	
Funded Projects	\$23,900	\$144,500	\$0	-100.00%	*
Staff Review	\$0	\$0	\$0	NA	
Employee Leave Entitlements	\$0	\$45,700	\$0	-100.00%	*
Activities & Projects	\$0	\$21,600	\$0	-100.00%	*
COVID 19 Salary Savings	\$116,700	\$116,700	\$0	-100.00%	*
Carry Forwards	\$0	\$6,000	\$0	-100.00%	*
Special Projects	\$0	\$0	\$10,000	NA	10
Contribution to Executive Council	\$92,600	\$92,600	\$0	-100.00%	*
Member Council Contributions	\$143,600	\$143,600	\$0	-100.00%	*
	\$549,700	\$808,300	\$10,000	-98.76%	
Member Council Contributions					
Ballina Council	\$1,520,600	\$1,520,600	\$1,605,900	5.61%	
Byron Council	\$1,444,600	\$1,444,600	\$1,558,900	7.91%	
Lismore Council	\$1,600,000	\$1,600,000	\$1,740,500	8.78%	
Tweed Council	\$2,528,200	\$2,528,200	\$2,760,500	9.19%	
	\$7,093,400	\$7,093,400	\$7,665,800	8.07%	
TOTAL INCOME	\$7,983,300	\$8,242,900	\$8,076,200	-2.02%	
<u>Summary</u>					
Total Expenditure	\$8,756,800	\$9,016,400	\$8,869,100		
Depreciation	(\$773,500)	(\$773,500)	(\$792,900)		
Net Expenditures	\$7,983,300	\$8,242,900	\$8,076,200		
Total Income	(\$889,900)	(\$1,149,500)	(\$410,400)		
Total Council Contributions	(\$7,093,400)	(\$7,093,400)	(\$7,665,800)		
Balance	\$0	\$0	\$0		
FINANCIAL RESULTS	Original Budget 2021/22	Forecast Budget 2021/22	Draft Budget 2022/23		
Net Operating Result - Surplus/(Deficit)	(\$711,600)	(\$878,900)	(\$187,200)		
Net Operating Result before Capital Grants & Contributions - Surplus/(Deficit)	(\$711,600)	(\$878,900)	(\$187,200)		
Net Cash - Surplus/(Deficit)	\$0	\$0	\$0		

* For these items no comment is provided as they relate to one off funding/expenses in the 2021/22 Forecast Budget

Richmond Tweed Regional Library

Meeting held 22 April 2022 - Draft 2022/23 Budget and Fees & Charges

Lismore City Council

Meeting held 10 May 2022 - Draft 2022/23 Budget and Fees & Charges - Richmond

Tweed Regional Library

Draft 2022/23 Member Council Contributions

Attachment 2

RICHMOND TWEED REGIONAL LIBRARY 2022/23 MEMBER COUNCIL CONTRIBUTIONS									
DETAILS	TOTAL NET COSTS	BALLINA COSTS SHARE		BYRON COSTS SHARE		LISMORE COSTS SHARE		TWEED COSTS SHARE	
1) Branch Costs:									
Salaries & Vehicle		\$948,400		\$956,300		\$1,050,500		\$1,378,800	
Total Branch Costs		\$948,400		\$956,300		\$1,050,500		\$1,378,800	\$4,334,000
2021/22 Comparison & % Change		\$937,100	1.21%	\$939,100	1.83%	\$1,022,100	2.78%	\$1,355,700	1.70%
2) Mobile Library Costs:									
Salaries	\$125,500								
Vehicle Running	\$68,800								
Telecommunication Costs & Charges	\$1,000								
Transfer to Reserve	\$30,000								
% service time	\$225,300	\$23,915	10.61%	\$44,053	19.55%	\$78,037	34.64%	\$79,296	35.20%
Fortnightly Hours of Service in each LGA			4.75		8.75		15.50		15.75
2021/22 Comparison & % Change		\$23,830	0.35%	\$43,897	0.36%	\$77,760	0.36%	\$79,014	0.36%
3) Resources Costs:									
Library Resources - Branches		\$111,400		\$97,100		\$108,100		\$238,700	
Library Resources - Other	\$21,200								
Periodicals - Branches		\$10,100		\$10,300		\$11,300		\$13,700	
Periodicals - Other	\$2,900								
Library eResources - Branches		\$21,700		\$18,800		\$20,900		\$46,500	
Transfer From Reserve									
Salaries - Acquisitions	\$194,400								
Salaries - Cataloguing	\$73,500								
Technical Aids	\$10,500								
Maintenance	\$37,000								
Licences and Fees	\$32,600								
% Population - ABS Population Estimates	\$372,100	\$218,843	20.33%	\$186,585	16.23%	\$211,616	19.17%	\$463,656	44.28%
2021/22 Comparison & % Change		\$206,819	5.81%	\$181,850	2.60%	\$207,512	1.98%	\$412,618	12.37%
4) Computer System Costs:									
Executive Council - Salaries	\$227,000								
Hardware Maintenance & Consumables	\$63,300								
MFD & PC Leasing	\$124,200								
Software Maintenance	\$327,800								
Printing Equipment Expenses	\$32,300								
Telecommunication Costs & Charges	\$57,200								
Transfer From Reserve	\$0								
% Terminals	\$831,800	\$171,858	20.66%	\$177,697	21.36%	\$171,298	20.59%	\$310,947	37.38%
No of Computer Hardware Items in each LGA			38.22		39.52		38.10		69.16
2021/22 Comparison & % Change		\$156,603	9.74%	\$161,882	9.77%	\$156,192	9.67%	\$283,324	9.75%
5) Headquarter Costs:									
Salaries	\$807,900								
NSWPLA Membership Fees		\$1,600		\$1,600		\$1,600		\$2,200	
Transfer From Reserve		\$0		\$0		\$0		\$0	
Contribution to Executive Council									
Member Council Contributions									
Net Other	-\$20,400								
% Population - ABS Population Estimates	\$787,500	\$161,689	20.33%	\$129,397	16.23%	\$152,531	19.17%	\$350,884	44.28%
2021/22 Comparison & % Change		\$116,646	38.6%	\$54,450	137.6%	\$61,008	150.0%	\$224,296	56.4%
6) Executive Council Costs:									
Salaries	\$626,500								
Less: Included in 4) Computer System Costs	-\$227,000								
% Population - ABS Population Estimates	\$399,500	\$81,213	20.33%	\$64,831	16.23%	\$76,567	19.17%	\$176,888	44.28%
2021/22 Comparison & % Change		\$79,602	2.02%	\$63,396	2.26%	\$75,385	1.57%	\$173,317	2.06%
2022/23 MEMBER COUNCIL CONTRIBUTIONS		\$1,605,900	5.61%	\$1,558,900	7.91%	\$1,740,500	8.78%	\$2,760,500	9.19%
POPULATION		46,179	20.33%	36,864	16.23%	43,537	19.17%	100,580	44.28%
PER CAPITA		\$34.78		\$42.29		\$39.98		\$27.45	
INCREASE IN CONTRIBUTION		\$85,300		\$114,300		\$140,500		\$232,300	
2021/22 COMPARISON									
Council Contributions - Adopted Budget		\$1,520,600		\$1,444,600		\$1,600,000		\$2,528,200	
Population		45,482	20.22%	35,904	15.97%	43,868	19.51%	99,631	44.30%
Per Capita Costs		\$33.43		\$40.24		\$36.47		\$25.38	
									\$7,093,400
									224,885

Richmond Tweed Regional Library

Meeting held 22 April 2022 - Draft 2022/23 Budget and Fees & Charges

Draft 2022/23 Fees & Charges

RICHMOND TWEED REGIONAL LIBRARY 2022/23 Fees & Charges			
Description	GST	2021/22	2022/23
Visitor's Membership Fee (non-refundable)	T	36.00	37.00
Book Club per item	T	2.00	2.20
Reservations on Adult Richmond-Tweed Regional Library Items	N	2.00	2.20
Inter-Library Loans - (Items not held by Richmond Tweed)	T	4.50	4.60
Non-Public Library Inter-Library Loans: Non-public libraries charge different amounts. The actual fee payable will be 100% of the amount charged.	T	28.50+	28.50+
Lost or Damaged Items - Borrowed Item - Cost plus Processing Fee (excluding periodicals)	N	10.00+	10.00+
Lost or Damaged Items - Library Membership Card	T	2.20	2.50
Printing/Photocopying B&W A4	T	0.30	0.40
Printing/Photocopying Colour A4	T	0.60	0.80
Printing/Photocopying B&W A3	T	0.60	0.80
Printing/Photocopying Colour A3	T	1.20	1.50
Scanning documents to email	T	0.20	0.30
Photo Quality Prints (Ballina Local History Photos)	T	3.50	4.00
USB Memory Stick	T	8.00	8.20
Pens	T	0.50	0.50
Plastic Sleeves	T	0.30	0.30
Scanning library local history photos by staff (per photo)	T	3.50	4.00
PC use (15 minutes) - Non-RTRL Members	T	1.10	1.50
Headphones - per set	T	2.50	3.00
Phone Charges - Local Call	T	0.30	0.30
Promotional Sales - Library Bags (Basic, Blue non-woven)	T	3.00	4.00
Promotional Sales - Library Bags (Small, Calico)	T	5.00	6.00
Promotional Sales - Library Bags (Large, Jute)	T	7.00	10.00
Talking Book Replacements - (CDs)	N	18.50	20.00
Patron Research Fee - First hour is free	T	90.00+	92.00+
Lismore 150 Years Book	T	25.00	25.50
Byron/Tweed/Ballina Library Room Hire			
Commercial Hirer per hour	T	32.50	33.00
Community Hirer per hour	T	22.50	23.00

Richmond Tweed Regional Library

Meeting held 22 April 2022 - Draft 2022/23 Budget and Fees & Charges

Lismore City Council

Meeting held 10 May 2022 - Draft 2022/23 Budget and Fees & Charges - Richmond
Tweed Regional Library

Draft 2022/23 Area Staff Costs

Attachment 4

RICHMOND TWEED REGIONAL LIBRARY													
2022/23 SUMMARY OF AREA STAFF COSTS													
LOCATION	2022/23									2021/22			
	Total Staff Hours per Week	Permanent Salaries & Allowances	Casual Salaries	Annual Leave	Sick Leave	Public Holiday	Long Service Leave	Super-annuation	Total Employment Costs	Total Staff Hours per Week	Total Employment Costs	\$ Change	% Change
Headquarters FTE	458.06 13.09	\$ 784,200	\$ 17,700	\$ 72,700	\$ 41,900	\$ 41,800	\$ 10,300	\$ 107,200	\$ 1,075,800	458.06 13.09	\$ 1,080,800	\$ (5,000)	-0.46%
Mobile FTE	50.66 1.45	\$ 81,800	\$ 13,400	\$ 7,600	\$ 4,400	\$ 4,400	\$ 1,300	\$ 12,600	\$ 125,500	50.66 1.47	\$ 123,000	\$ 2,500	2.03%
Ballina FTE	404.25 11.55	\$ 631,800	\$ 88,800	\$ 57,200	\$ 32,900	\$ 32,900	\$ 7,700	\$ 97,100	\$ 948,400	404.25 11.55	\$ 937,100	\$ 11,300	1.21%
Byron FTE	402.01 11.49	\$ 623,300	\$ 92,800	\$ 57,500	\$ 33,100	\$ 33,100	\$ 11,600	\$ 104,900	\$ 956,300	402.01 11.49	\$ 939,100	\$ 17,200	1.83%
Lismore FTE	463.50 13.24	\$ 688,800	\$ 104,100	\$ 62,700	\$ 36,000	\$ 36,000	\$ 14,700	\$ 108,200	\$ 1,050,500	463.50 13.24	\$ 1,022,100	\$ 28,400	2.78%
Tweed FTE	600.82 17.17	\$ 912,900	\$ 122,300	\$ 84,200	\$ 48,400	\$ 48,400	\$ 18,400	\$ 139,100	\$ 1,373,700	600.82 17.17	\$ 1,349,300	\$ 24,400	1.81%
TOTALS	2,379.30	\$3,722,800	\$439,100	\$341,900	\$196,700	\$196,600	\$64,000	\$569,100	\$ 5,530,200	2,379.30	\$5,451,400	\$78,800	1.45%

Richmond Tweed Regional Library

Meeting held 22 April 2022 - Draft 2022/23 Budget and Fees & Charges

2022/23 ABS Population Estimates

Attachment 5

Australian Bureau of Statistics																	
Regional population																	
Population estimates by Local Government Area, 2001 to 2019, in GeoPackage																	
LGA	2010	2011	2012	2013	2014	2015	2016	2017	2018	2019	2020	Changes 2010-2020		Estimate 2020/21	Estimate 2021/22	Estimate 2022/23	Percentage Share
Ballina (A)	40,571	40,747	41,118	41,510	41,881	42,336	42,993	43,480	44,172	44,628	45,217	11.45%	4,646	45,139	45,656	46,179	20.33%
Byron (A)	30,664	30,712	31,210	31,756	32,263	32,803	33,399	34,011	34,545	35,081	35,773	16.66%	5,109	35,665	36,260	36,864	16.23%
Lismore (C)	44,190	44,348	44,388	44,408	44,327	44,212	44,122	43,930	43,803	43,692	43,667	-1.18%	-523	43,640	43,589	43,537	19.17%
Tweed (A)	87,722	88,437	89,266	90,226	91,139	92,261	93,742	94,909	96,018	97,001	98,382	12.15%	10,660	98,180	99,373	100,580	44.28%
	203,147	204,244	205,982	207,900	209,610	211,612	214,256	216,330	218,538	220,402	223,039			222,625	224,877	227,160	100.00%

Council	2021/22	2022/23	Movement
Ballina	20.32%	20.33%	0.01%
Byron	16.18%	16.23%	0.05%
Lismore	19.25%	19.17%	-0.08%
Tweed	44.25%	44.28%	0.03%
Total	100.00%	100.00%	

Richmond Tweed Regional Library

Meeting held 22 April 2022 - Draft 2022/23 Budget and Fees & Charges

Lismore City Council

Meeting held 10 May 2022 - Draft 2022/23 Budget and Fees & Charges - Richmond Tweed Regional Library

Report

Subject	Draft Disability Inclusion Action Plan
TRIM Record No	BP21/516:EF21/12-2
Prepared by	Community Engagement Coordinator
Reason	To seek Council's approval to place the Draft Disability Inclusion Action Plan on public exhibition.
Strategic Theme	An inclusive and healthy community
Strategy	Our community is a desirable place to live, an easy place to work and a welcoming place to visit.
Action	Promote positive attitudes and behaviours toward people with disability.

Executive Summary

The *Disability Inclusion Act 2014* requires all NSW Government agencies and councils to develop Disability Action Inclusion Plans that will ensure their services, infrastructure and community facilities are more accessible to people with disability.

The DIAP is Council's way of defining how the organisation will make targeted and continual effort to reduce the barriers that people face when living, working and visiting the Lismore LGA. It documents the steps Council will take in working towards access and inclusion for all.

Local Council DIAP renewals are due July 2022.

Recommendation

That the:

1. attached draft Disability Inclusion Action Plan 2022-2026 be endorsed for public exhibition.
2. draft Disability Inclusion Action Plan 2022-2026 be reported back to Council for final adoption, following the closure of the exhibition period

Background

The *Disability Inclusion Regulation 2014* sets out the dates by which public authorities must complete DIAPs, submit to the Disability Council and make publicly available.

The DIAP is a four-year plan that defines how the Council will make targeted and continual effort to reduce the barriers that people face when living, working and visiting the Lismore LGA. It documents the steps Council will take in working towards access and inclusion for all.

Extensive consultation was undertaken for the Lismore City Council's Disability Inclusion Action Plan (DIAP) in 2021 and the DIAP was prepared over the period of December 2021 – February 2022. The release of the final draft was then delayed by the floods that occurred in February and March 2022.

Whilst required by statute to adopt a DIAP by July 2022, Council recognises the impact of the February and March 2022 flood events on our community are significant and may impact this plan. Council notes there is insufficient time to undertake a new consultation process and prepare a new Plan to reflect this

impact. Further consultation will take place during the course of recovery planning, and this document will be updated accordingly.

Public consultation

The report will be placed on Council's website as well as the Your Say Lismore Engagement portal for community access.

Attachment/s

1. [↗](#) Draft Disability Inclusion Action Plan 2022-2026 (Over 7 pages)

Report

Subject	March 2022 Quarterly Budget Review Statement
TRIM Record No	BP22/224:EF09/580-03
Prepared by	Principal Accountant
Reason	In accordance with Clause 203, Local Government (General) Regulations, Council approval is required to amend the 2021/22 Budget to reflect the actual or anticipated result
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

Storms and Floods 2022

Lismore LGA was hit by catastrophic floods and storms across February, March and April 2022. Extensive damage was sustained by Council assets including roads, properties, parks, sporting facilities, waste facility, airport and Lismore Memorial Baths. In addition, losses were suffered by Council staff, suppliers, tenants and contractors and Council facilities were closed due to staff shortages, change of use (such as the evacuation centre at GSAC) and damage to facilities.

The forecast consolidated financial results and cash position reported in the QBRs are:

• Net Operating Result for the Year – Surplus	\$22,476,400
• Net Operating Result for the Year before Capital Grants & Contributions – Deficit	(\$14,712,900)
• Funding Sources (Consolidated) & Cash Position – Surplus	\$5,231,900

Major Movements on the Operating Result:

Unfunded Adjustments

The main movements are summarised as follows:

Movement	Amount
Reduction in User Fees & Charges	(\$493,500)
Reduction in Other Revenues	(\$1,179,900)
Reduction in Employee Benefits & On-costs	\$1,210,000
Reduction in Materials & Contracts	\$4,925,600
Total unfunded movements (not all listed above)	\$5,133,700

- Overall the unfunded (cash) position is improving by \$5,133,700. It is recommended that the \$5 million is transferred to reserve to assist in the flood recovery and to asset maintenance and renewal.
- Unfunded user fees including; parking, quarry product, airport landing and DA fees have reduced by a total of (\$493,500). More than half of this is parking and the balance is predominately due to the floods.
- Reductions in other revenues include; tourism and events revenues, commercial rents and waste disposal fees. The overall reduction of (\$1,179,900) includes a decrease of (\$4 million) for a grant to dispose of contaminated organics waste disposal (there is corresponding reduction in materials and contracts). If the organics disposal was removed then there would be an overall increase in other revenues, mostly coming from waste fire insurance proceeds of \$2,689,800.
- Employee benefits and on-costs have decreased substantially. The \$1,210,000 savings represents unused salary and wages costs across organisation due to vacant positions, reduced events and projects as a result of COVID restrictions and floods.
- Materials & contracts costs have also reduced substantially. While costs relating to the flood recovery effort have been factored in, it is anticipated that many of these will be funded by grants or insurance so activities that have been deferred have returned funds to the budget. The total \$4,925,600 budget reduction includes the waste fire re-categorisation mentioned above.

The total unfunded amounts improve the budget from a surplus of \$98,200 to a surplus of \$5,231,900.

Funded Adjustments

Funded adjustments do not impact council's general cash, they are funded through reserves, reduced expenses, grants and unexpended loans. More detail is included in the March QBRs attachment.

The main movements are as follows:

Movement	Amount
Increase in Other Revenues	\$2,209,700
Increase in Grants & Contributions - Operating	\$3,640,000
Decrease in Grants & Contributions - Capital	(\$3,095,000)
Increase in Materials & Contracts	(\$5,979,900)

- The increase in other revenues of **\$2,209,700** is mostly from insurance proceeds \$2.1 million.
- The increase in operational grants of \$3,640,000 includes \$1.772 million flood and natural disaster grants and \$1.768 million for sewer and water operations. These represent a redirection of focus from capital works activities to flood recovery.
- The decrease in capital grants of (\$3,095,000) is a mostly a reduction of (\$3,500,000) in Oakes/Crozier funding that has been postponed due to flood recovery activities. There are some offsets to this reduction, detailed in the attached report.
- The funded increase in materials and contracts of (\$5,979,900) represents state, federal and insurance funding of flood recovery works net of some cost savings due to postponed works.

Major Movements – Capital:

Capital Movement	Amount
Roads capita works	\$12,684,900
Water	\$1,464,900
Wastewater	\$1,047,800

There are a number of activities that have been postponed until next financial year, or even a later financial year due to the catastrophic floods and storms that occurred in the first few months of 2022. Council resources have been redirected to flood recovery and, as such, capital projects have been delayed.

Commentary on all recommended changes is included in the March 2022 2021 Quarterly Budget Review Statement.

Key Performance Indicators (KPI)

Of the seven KPIs included in the March quarterly report, 3 are unfavourable compared to benchmarks.

Operating Performance Ratio – The unfavourable variance for the current year is due mainly to the increase in depreciation expense as a result of the revaluation of roads assets in the 2019/20 financial year. This ratio has improved sharply from December 2021 and the original forecast for the 2021/22 year due to major deferrals of expenditure as a result of the flood and storms in February and March 2022.

Own Source Operating Ratio – The ratio is estimated to be 58.6% which is below the benchmark of 60%. Council's financial flexibility improves the higher the level of its own source of revenue.

Building & Infrastructure Renewals Ratio – more work is required to address this issue. The impact of natural disasters is not possible to quantify at this time.

Long Term Financial Plan – Remediation

While Council's financial position as at 30 June 2022 is anticipated to be satisfactory, having regards to the adopted 2021/22 Operational Plan, there are indicators that require immediate attention to ensure long-term financial sustainability.

The Net Operating Result for the Year before Capital Grants & Contributions – Deficit of (\$14,712,900), together with the unfavourable Building & Infrastructure Renewals Ratio and Asset Maintenance ratio indicates that Council is not adequately addressing its assets. This is considered not financially sustainable, and Council will need to take steps to address these issues when developing its 2022/23 Operational Plan and its Long-Term Financial Plan.

Recommendation

That

1. Council adopt the attached March 2022 Quarterly Budget Review Statement.
2. \$5 million be transferred to reserves to address:
 - Funding the reinstatement off assets impacted by the 2022 floods that are not covered by grants or insurance
 - Providing additional funds for asset renewal and maintenance
 - Ensure adequate cashflow to enable Council to progress immediate reinstatement of assets while waiting for promised grant funds and insurance.

Background

The *Local Government (General) Regulation 2005* requires the annual budget to be monitored on an ongoing basis and a quarterly budget review statement prepared and reported to Council. The content is mandated by the NSW Office of Local Government.

The March 2022 Quarterly Budget Review Statement (QBRs) includes the recommended changes to the budget for the year-ended 30 June 2022. To meet financial reporting purposes, the QBRs has been prepared on a consolidated basis with internal transactions eliminated.

Only variations that can be reliably quantified or where there is substantial risk in meeting budget expectations have been reported.

For clarity, where an amount is 'favourable' to Council's financial result for the year or financial position as at 30 June, it will be shown as un-bracketed. Where an amount is 'unfavourable' to Council's financial result for the year or financial position as at 30 June, it will be shown as (bracketed).

March 2022 QBRs – Consolidated Summary

Financial Results

Item	Adopted 2021/22 Budget	Approved Variations	<u>Recommended Changes</u> <u>March 2022</u> <u>QBRs</u>	Revised 2021/22 Budget
Net Operating Result for the Year	\$16,502,000	\$3,865,200	<u>\$2,110,900</u>	\$22,476,400
Net Operating Result for the Year before Capital Grants & Contributions	(\$19,428,000)	(\$449,700)	<u>\$5,164,800</u>	(\$14,712,900)

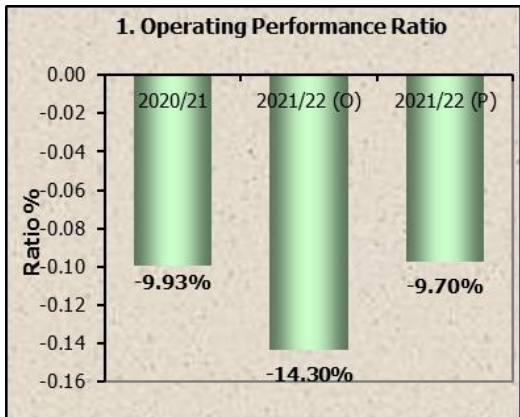
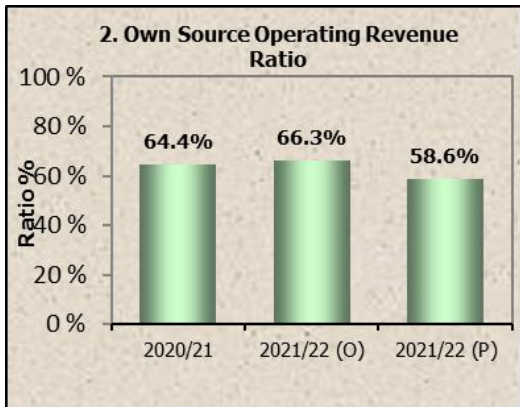
Funding Sources (Consolidated) & Cash Position – Surplus	(\$417,000)	\$516,200	<u>\$5,133,700</u>	\$5,231,900
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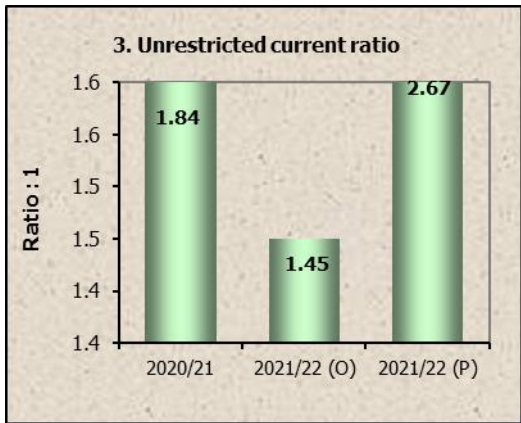
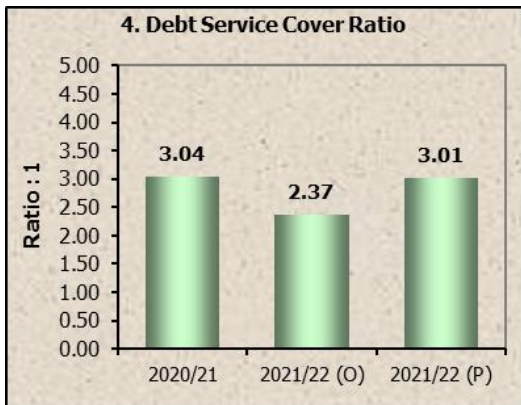
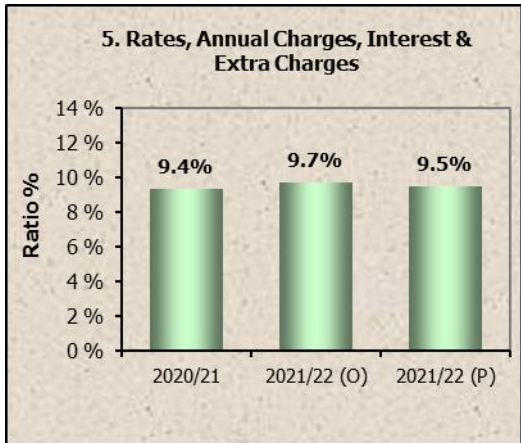
The Net Operating Result for the Year before Capital Grants & Contributions is considered the more appropriate result as it excludes income received for capital purposes and therefore not matched by a related expense.

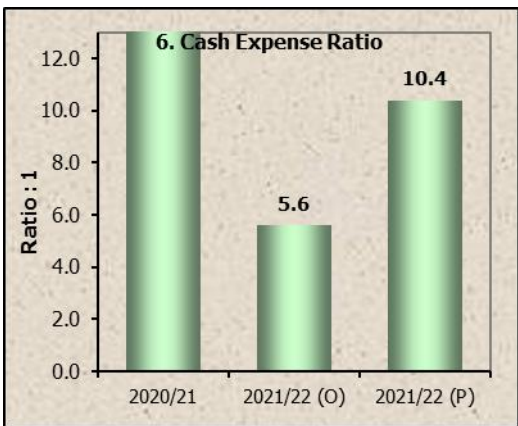
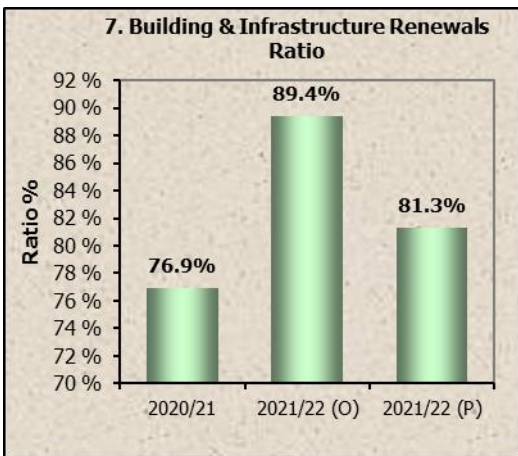
For the above results, a deficit means Council is using more resources (including depreciation) than it is generating in income, and a surplus means Council is generating more income than resources used. An ongoing deficit result is not financially sustainable.

The cash position forecast has improved significantly however this is largely due to postponed activities and anticipated funding for flood and storm recovery activities.

Key Performance indicators

Ratio	Commentary								
1. Operating Performance Ratio  <table border="1"> <caption>1. Operating Performance Ratio Data</caption> <thead> <tr> <th>Period</th> <th>Ratio %</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>-9.93%</td> </tr> <tr> <td>2021/22 (O)</td> <td>-14.30%</td> </tr> <tr> <td>2021/22 (P)</td> <td>-9.70%</td> </tr> </tbody> </table>	Period	Ratio %	2020/21	-9.93%	2021/22 (O)	-14.30%	2021/22 (P)	-9.70%	This ratio measures the achievement of containing operating expenses within operating revenue. Net operating result from continuing operations (excluding capital items) as a percentage of operating revenue (excluding capital items). Consolidated: Benchmark is greater than (0) March 2022 – Unfavourable. This ratio has improved sharply from December 2021 and the original forecast for the 2021/22 year due to major deferrals of expenditure as a result of the flood and storms in February and March 2022.
Period	Ratio %								
2020/21	-9.93%								
2021/22 (O)	-14.30%								
2021/22 (P)	-9.70%								
2. Own Source Operating Revenue Ratio  <table border="1"> <caption>2. Own Source Operating Revenue Ratio Data</caption> <thead> <tr> <th>Period</th> <th>Ratio %</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>64.4%</td> </tr> <tr> <td>2021/22 (O)</td> <td>66.3%</td> </tr> <tr> <td>2021/22 (P)</td> <td>58.6%</td> </tr> </tbody> </table>	Period	Ratio %	2020/21	64.4%	2021/22 (O)	66.3%	2021/22 (P)	58.6%	This ratio measures Council's fiscal flexibility by reporting Council's reliance on external funding sources such as operating grants and contributions. Council's financial flexibility improves the higher the level of its own source of revenue. Consolidated: Benchmark is greater than 60% March 2022 – Unfavourable This ratio has remained unchanged for the March 2022 quarter. While the overall budget changes caused by natural disasters are significant, the proportional spend of "own" income compared to grant funding remains the same.
Period	Ratio %								
2020/21	64.4%								
2021/22 (O)	66.3%								
2021/22 (P)	58.6%								

Ratio	Commentary								
3. Unrestricted current ratio  <table border="1"> <caption>3. Unrestricted current ratio</caption> <thead> <tr> <th>Period</th> <th>Ratio</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>1.84</td> </tr> <tr> <td>2021/22 (O)</td> <td>1.45</td> </tr> <tr> <td>2021/22 (P)</td> <td>2.67</td> </tr> </tbody> </table>	Period	Ratio	2020/21	1.84	2021/22 (O)	1.45	2021/22 (P)	2.67	The 'unrestricted current ratio' represents a council's ability to meet short-term obligations as they fall due. Restrictions placed on various funding sources (e.g., Section 7.11 developer contributions) exclude these funds from being used in day-to-day operations. Consolidated: Benchmark is greater than 1.5x March 2022 – Favourable The ratio has improved from 1.45 to 2.67 and is now above benchmark levels. Council has undertaken considerable work during the financial year to increase its short-term liquid assets (internally restricted cash). Postponement of planned activities to focus on flood recovery works has assisted with this improvement also.
Period	Ratio								
2020/21	1.84								
2021/22 (O)	1.45								
2021/22 (P)	2.67								
4. Debt Service Cover Ratio  <table border="1"> <caption>4. Debt Service Cover Ratio</caption> <thead> <tr> <th>Period</th> <th>Ratio</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>3.04</td> </tr> <tr> <td>2021/22 (O)</td> <td>2.37</td> </tr> <tr> <td>2021/22 (P)</td> <td>3.01</td> </tr> </tbody> </table>	Period	Ratio	2020/21	3.04	2021/22 (O)	2.37	2021/22 (P)	3.01	This ratio measures the availability of operating cash to service debt including interest, principal and lease payments. Consolidated: Benchmark is greater than 2. March 2022 – Favourable.
Period	Ratio								
2020/21	3.04								
2021/22 (O)	2.37								
2021/22 (P)	3.01								
5. Rates, Annual Charges, Interest & Extra Charges Outstanding Percentage  <table border="1"> <caption>5. Rates, Annual Charges, Interest & Extra Charges</caption> <thead> <tr> <th>Period</th> <th>Percentage</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>9.4%</td> </tr> <tr> <td>2021/22 (O)</td> <td>9.7%</td> </tr> <tr> <td>2021/22 (P)</td> <td>9.5%</td> </tr> </tbody> </table>	Period	Percentage	2020/21	9.4%	2021/22 (O)	9.7%	2021/22 (P)	9.5%	This indicator assesses the impact of uncollected rates and annual charges on liquidity and the adequacy of recovery efforts. This percentage is based on the amount outstanding as a percentage of the amount to be collected for rates and annual charges for the current year and outstanding from previous years. The percentage will decline as the financial year proceeds and rates instalments are due and paid. Consolidated: Benchmark is less than 10%. March 2022 – Favourable
Period	Percentage								
2020/21	9.4%								
2021/22 (O)	9.7%								
2021/22 (P)	9.5%								

Ratio	Commentary								
6. Cash Expense Cover Ratio  <table border="1"> <caption>6. Cash Expense Ratio Data</caption> <thead> <tr> <th>Period</th> <th>Ratio</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>12.0</td> </tr> <tr> <td>2021/22 (O)</td> <td>5.6</td> </tr> <tr> <td>2021/22 (P)</td> <td>10.4</td> </tr> </tbody> </table>	Period	Ratio	2020/21	12.0	2021/22 (O)	5.6	2021/22 (P)	10.4	The liquidity ratio indicates the number of months a council can continue paying for its immediate expenses without additional cash inflow. Consolidated: Benchmark is greater than 3x March 2022 – Favourable
Period	Ratio								
2020/21	12.0								
2021/22 (O)	5.6								
2021/22 (P)	10.4								
7. Building & Infrastructure Renewals Ratio  <table border="1"> <caption>7. Building & Infrastructure Renewals Ratio Data</caption> <thead> <tr> <th>Period</th> <th>Ratio %</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>76.9%</td> </tr> <tr> <td>2021/22 (O)</td> <td>89.4%</td> </tr> <tr> <td>2021/22 (P)</td> <td>81.3%</td> </tr> </tbody> </table>	Period	Ratio %	2020/21	76.9%	2021/22 (O)	89.4%	2021/22 (P)	81.3%	This ratio is to assess the rate at which assets are being renewed against the rate at which they are depreciated. Consolidated: Benchmark is greater than 100%. March 2022 – Unfavourable This ratio has improved slightly however the final position will be based on flood recovery works and grant funding.
Period	Ratio %								
2020/21	76.9%								
2021/22 (O)	89.4%								
2021/22 (P)	81.3%								

Other

Floods and Storms - February, March and April 2022

Lismore LGA was hit by catastrophic floods and storms across February, March and April 2022. Extensive damage was sustained by Council assets including roads, properties, parks, sporting facilities, Waste Facility, Airport and Lismore Memorial Baths. In addition, losses were suffered by Council staff, suppliers, tenants and contractors and Council facilities were closed due to staff shortages, change of use (such as the evacuation centre at GSAC) and damage to facilities.

The main areas expected to be significantly impacted by the floods are:

- Capital works across all areas of the organisation
- Northern Rivers Quarry
- Lismore Memorial Baths
- Goonellabah Sports & Aquatic Centre
- Events & Tourism
- Lismore Regional Airport
- Development & Compliance (planning)
- Roads
- Commercial Property
- Lismore Waste Facility
- Water & Wastewater

This report addresses the impact of the floods on the remaining 2021/22 budget. The financial impact of the floods will be ongoing for several years. Reconstruction and repair of Council assets and facilities will consume huge volumes of both financial and human resources. Many of these projects will not commence until after the end of the 2021/22 financial year and will not be reflected in this report. A schedule of works has been prepared for completion in the 2022/23 year.

At the time of writing this report it is not possible to quantify the precise impact of the floods on the budget however it can be reasonably assumed that many projects will be deferred. Delays to restarting “business as usual” is expected until such time as resources can be re-focused from emergency disaster works. This is likely to be several months away.

The March 2022 QBRS has been prepared on the basis that many of Council’s resources will be deployed in flood recovery efforts. The revised forecast uses the following assumptions:

1. Significant amounts of the resources of council have been redirected from previously budgeted activities to flood recovery.
2. Productivity will be reduced due to staff from all areas of Council being involved with flood recovery works.
3. Reconstruction, repairs and maintenance will be limited to urgent works on flood and storm damaged assets due to a lack of available materials and labour.
4. Activities planned for the CBD such as the “CBD revitalisation” and any tourism events will not proceed. The exception to this will be fundraising activities such as the upcoming concert on 15 May 2022 which has been included in the budget.

State and Federal Government organisations have pledged to support large portions of the recovery work and insurance will cover part of the damage to property however rebuilding is expected to take several years and will be hampered by lack of access to contractors and materials.

COVID-19

It was initially expected that 2021/22 would see a decrease in COVID-19 restrictions and an increase in economic activity, opening of facilities and a return to the office for all staff. Outbreaks across NSW through the summer holiday period caused the re-instatement of restrictions and meant that some activities and project were no longer feasible. Had it not been for the floods then these activities may have been moved to dates closer to the end of 2021/22 however this is no longer possible.

Where Council has the ability to defer funding and projects then this has been recorded in the March 22 QBRS as reduction in expenditure. The planned activity has been included in the 2022/23 budget and operational plan where it is likely to be conducted next year.

Capital and grant-funded projects postponed to a future period

There will be a number of activities postponed until next financial year, or even a later financial year. These are reflected in the QBRS as amounts removed from expense budgets and transferred to reserve or reduced grants revenues. Where the activity is expected to be carried out next year (2022/23) then it will be included in the planned activities in that budget.

Attachment/s

1. [March 2022 Quarterly Budget Review Statement](#) (Over 7 pages)

Report

Subject	Investments - April 2022
TRIM Record No	BP22/35:EF21/92
Prepared by	Management Accountant
Reason	Required by Local Government Act 1993, Local Government (General) Regulations 2005 and Council's Investment Policy
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

Investments as of 30 April 2022 are estimated to be \$123,412,000.

The interest rate reported for April 2022 is estimated to be 0.55% which is above the 90 Day Bank Bill Index of 0.46%. The final interest return may vary due to actual returns achieved on investments advised after month end.

Recommendation

That the report be received and noted.

Background

The *Local Government Act 1993* (Section 625), *Local Government (General) Regulations 2005* (Clause 212) and Council's Investment Policy requires a monthly report be submitted to Council on investments. The report is to include the source and amount of funds invested, investment portfolio performance for the period and a statement of compliance in relation to the requirements of the *Local Government Act 1993*.

Report on Investments

- | | |
|---|---------------|
| • Confirmation of Investments – at Market Value – 31 March 2022 | \$118,162,000 |
| • Estimated Investments – at Market Value – 30 April 2022 | \$123,412,000 |

Investments increased during April 2022 by \$5.25 million. This was mainly due to a further \$5.00 million received from TfNSW in advance for works associated with the February 2022 flood event and 75% of Financial Assistance Grants for 2022/23 received in advance of \$5.31 million. This income was offset by an increase in payments made to creditors with the additional works being carried out after the flood event along with the payment of staff costs during the month.

The current rate of return on investments for April 2022 is estimated to be 0.55% using actual returns where available, and estimates based on the previous period balances and interest rates. This is above the 90 Day Bank Bill Index of 0.46%.

The estimated interest earned for April 2022 is \$54,100. Estimated interest earned to date is \$418,546 which is more than the pro rata 2021/22 budget of \$379,833. This is a favourable variance of \$38,713.

The current investing environment is still complicated with liquidity levels still high for many institutions, however some increases in interest rates are starting to be seen.

Compliance with Policy Requirements

The current investment policy was adopted by Council in May 2020. This policy shows a move towards the framework suggested by TCorp to comply with their borrowing requirements into the future.

A plan to move towards the policy requirements is being followed, but as can be expected, this has taken some time, especially during COVID-19 times. As investments come due, wherever possible they are moved to comply with the current policy. No investment will be broken early to fit within the required framework.

The following is a summary of where Council's investments currently sit in relation to the adopted policy requirements:

Long Term Rating	Maximum Portfolio Limit	Current Holding
AAA	100%	
AA+ to AA-	100%	54%
A+ to A	100%	14%
A-	40%	
BBB+	20%	16%
BBB	10%	9%
BBB- and below – Local ADIs	5%	3%
BBB- and below – other *	5%	4%
TCorp	100%	

*note – the total for this long term rating category is below the maximum portfolio limit however the individual institution limits are still outside policy requirements. A move towards policy compliance in this space is continuing.

Fossil Free (Ethical) Investments

As part of the current policy framework and within the limits of prevailing legislation, Council's investments will be made in consideration of the principals of ethical investment management.

To meet the adopted Investment Policy requirements, the holdings in some institutions that are fossil fuel free have been divested as they do not meet the rating criteria. Investments in institutions that are not fossil fuel free but provide green term deposits and bonds are continually being investigated and will be considered within the investment framework as they become available and fit within the policy criteria.

Following is a summary of the movement:

Type of Investment	As reported for March 2022		As reported for April 2022	
	Value of Investments	% of Portfolio	Value of Investments	% of Portfolio
No Investment in Fossil Fuel Industry	\$35,000,000	30%	\$35,000,000	28%
Investment in Fossil Fuel Industry	\$83,162,000	70%	\$88,412,000	72%

The market is still quite liquid and the availability of institutions that have been taking funds that fit Council's policy requirements and do not invest in the fossil fuel industry have been limited.

The information for the assessment has been sourced from the website www.marketforces.org.au which is an affiliate project of the Friends of the Earth Australia. This is still considered the best information available to make this assessment.

Comments

Responsible Accounting Officer

All investments with various financial institutions have been made in accordance with the *Local Government Act 1993* and *Local Government (General) Regulations 2005*. A new investment policy was adopted in May 2020 moving towards the framework suggested by TCorp to comply with their borrowing requirements. A move towards the policy is continuing, taking into consideration the difficulty of investing during COVID-19 and now the cashflow requirements of the recent flood event. The portfolio is now sitting within maximum portfolio limits for rating categories however there are still some investments that do not satisfy the limit requirements per institution.

Conclusion

A report on investments is required to be submitted to Council monthly. As of 30 April 2022, investments total \$123,412,000 and the annualised rate of return is estimated at 0.55%.

Attachment/s

1. [!\[\]\(3f34df8e6a1540889519febf13b00a07_img.jpg\)](#) Capital Value Movement including name of institution, purchase date and maturity
2. [!\[\]\(c0bb9b8a8347e2769afe86242b0574dd_img.jpg\)](#) Estimated Interest showing interest rate and estimated interest earned for the year
3. [!\[\]\(9c59dd4727e3a886b8ce669670b7186a_img.jpg\)](#) Total Investment Portfolio held by month and Weighted Average Interest Rate - Graphical
4. [!\[\]\(368b5c67bc9dcbf3127e907b4235488c_img.jpg\)](#) Investment by Type - Graphical
5. [!\[\]\(07d8963438d07ce43b91beb78b128311_img.jpg\)](#) Investment by Institution as a percentage of total portfolio - Graphical

Capital Value Movements
Summary of Investments held as at
30 April 2022

Name of Investment / & Counterparty	Type of Investment	Rating (Note 3)	Purchase Date	Maturity Date	Current Market Value (Note 1)
Cash Based Returns					
CBA Business On Line Banking A/C	Cash Management Account	AA-	N/A	N/A	\$ 16,412,000
AMP Bank Cash Management Account	Cash Management Account	BBB	N/A	N/A	\$ 3,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	12/8/2021	9/5/2022	\$ 2,000,000
Bank of Queensland	Term Deposit	BBB+	10/5/2021	10/5/2022	\$ 1,000,000
AMP Bank	Term Deposit	BBB	17/5/2021	17/5/2022	\$ 3,000,000
ME Bank	Term Deposit	BBB	25/8/2021	23/5/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	26/5/2021	26/5/2022	\$ 2,000,000
Westpac Banking Corporation	Term Deposit	AA-	30/10/2021	30/5/2022	\$ 4,000,000
Australian Military Bank Ltd	Term Deposit	Not Rated	9/8/2021	6/6/2022	\$ 1,000,000
P & N Bank	Term Deposit	BBB	14/12/2021	14/6/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA+	24/3/2022	22/6/2022	\$ 2,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	24/3/2022	22/6/2022	\$ 2,000,000
ME Bank	Term Deposit	BBB	23/6/2021	23/6/2022	\$ 1,000,000
Westpac Banking Corporation	Term Deposit	AA-	24/3/2022	24/6/2022	\$ 2,000,000
National Australia Bank	Term Deposit	AA-	29/6/2021	29/6/2022	\$ 3,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	2/9/2021	29/6/2022	\$ 1,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	20/1/2022	19/7/2022	\$ 2,000,000
Suncorp	Term Deposit	A+	24/3/2022	22/7/2022	\$ 1,000,000
Westpac Banking Corporation	Term Deposit	AA-	24/3/2022	24/7/2022	\$ 1,000,000
P & N Bank	Term Deposit	BBB	25/1/2022	25/7/2022	\$ 1,000,000
Bank of Sydney Ltd	Term Deposit	Not Rated	29/7/2021	29/7/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	29/7/2021	29/7/2022	\$ 1,000,000
P & N Bank	Term Deposit	BBB	1/2/2022	1/8/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	8/3/2022	5/8/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	7/4/2022	5/8/2022	\$ 2,000,000
Suncorp	Term Deposit	A+	21/9/2021	17/8/2022	\$ 3,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	20/8/2020	18/8/2022	\$ 2,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	22/11/2021	19/8/2022	\$ 1,000,000
Auswide Bank Ltd	Term Deposit	BBB-	20/8/2019	23/8/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	25/8/2021	25/8/2022	\$ 1,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	25/8/2021	25/8/2022	\$ 2,000,000
ME Bank	Term Deposit	BBB	28/2/2022	29/8/2022	\$ 1,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	1/9/2021	1/9/2022	\$ 2,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	14/12/2021	12/9/2022	\$ 1,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	30/9/2021	30/9/2022	\$ 2,000,000
Suncorp	Term Deposit	A+	16/11/2021	12/10/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	17/1/2022	14/10/2022	\$ 1,000,000
ME Bank	Term Deposit	BBB	22/4/2022	19/10/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	20/10/2021	20/10/2022	\$ 2,000,000
Bank of Queensland	Term Deposit	BBB+	21/1/2022	21/10/2022	\$ 2,000,000
ME Bank	Term Deposit	BBB	26/4/2022	24/10/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	26/4/2022	24/10/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	25/3/2022	25/10/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	11/2/2022	11/11/2022	\$ 2,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	19/11/2021	18/11/2022	\$ 2,000,000
Suncorp	Term Deposit	A+	22/11/2021	22/11/2022	\$ 1,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	26/4/2022	22/11/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	19/1/2022	15/12/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	20/12/2021	20/12/2022	\$ 4,000,000
Westpac Banking Corporation	Term Deposit	AA-	21/2/2022	21/12/2022	\$ 2,000,000
Suncorp	Term Deposit	A+	19/4/2022	16/1/2023	\$ 2,000,000

**Capital Value Movements
Summary of Investments held as at
30 April 2022**

Name of Investment / & Counterparty	Type of Investment	Rating (Note 3)	Purchase Date	Maturity Date	Current Market Value (Note 1)
Commonwealth Bank of Australia - TD	Term Deposit	AA-	25/1/2022	25/1/2023	\$ 2,000,000
Westpac Banking Corporation	Term Deposit	AA-	25/2/2022	25/1/2023	\$ 2,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	26/4/2022	25/1/2023	\$ 2,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	31/1/2022	27/1/2023	\$ 2,000,000
Summerland Credit Union	Term Deposit	Not Rated	17/2/2021	17/2/2023	\$ 1,000,000
Westpac Banking Corporation	Term Deposit	AA-	19/2/2022	19/2/2023	\$ 4,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	21/2/2022	21/2/2022	\$ 2,000,000
National Australia Bank	Term Deposit	AA+	25/2/2022	27/2/2023	\$ 2,000,000
Suncorp	Term Deposit	A+	17/3/2022	17/3/2023	\$ 1,000,000
Suncorp	Term Deposit	A+	26/4/2022	26/4/2023	\$ 2,000,000
National Australia Bank	Term Deposit	AA-	29/7/2021	31/7/2023	\$ 2,000,000
Bank of Queensland	Term Deposit	BBB+	29/7/2021	31/7/2023	\$ 1,000,000
Rabobank	Term Deposit	Not Rated	30/7/2018	1/8/2023	\$ 1,000,000
Rabobank	Term Deposit	Not Rated	13/12/2018	13/12/2023	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	25/8/2021	25/8/2025	\$ 1,000,000
Investment on Hand					\$ 123,412,000

Investments Redeemed from 26/03/2022 to 26/04/2022 (Note 2)

National Australia Bank	Term Deposit	AA-	7/4/2021	7/4/2022	\$ 2,000,000
Suncorp	Term Deposit	A+	23/6/2021	19/4/2022	\$ 2,000,000
ME Bank	Term Deposit	BBB	26/7/2021	22/4/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	28/7/2021	26/4/2022	\$ 2,000,000

\$ 7,000,000

- Note 1: Market Value is the Capital Value of the Investment.
- Note 2: These investments were redeemed during the period. They are not part of the Balance of Investments Held.
- Note 3: These Counterparties & Products are authorised under the Minister's Investment Order. The rating is based on the entities long term S & P Rating.
- Note 4: "Indicative" Source of Funds based on the restricted/unrestricted fund balances as at reporting date.

"Indicative" Source of Funds (Note 4)

Externally Restricted - Water Fund	12,804,350
Externally Restricted - Wastewater Fund	37,705,152
Externally Restricted - Other	23,081,662
Externally Restricted - RTRL	2,071,960
Internally Restricted	47,748,876
Unrestricted	-
	<u>\$ 123,412,000</u>

Estimated Interest
on Investments
for April 2022

Name of Investment / & Counterparty	Type of Investment	Rating	Annualised Coupon / Interest Rate	Current market Value	Estimated Interest for Period	Weighted Interest for Period
Cash Based Returns						
CBA Business On Line Banking A/C	Cash Management Account	AA-	0.10%	\$ 16,412,000	\$ 1,349	0.01%
AMP Bank Cash Management Account	Cash Management Account	BBB	0.50%	\$ 3,000,000	\$ 1,233	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.25%	\$ 2,000,000	\$ 411	0.00%
Bank of Queensland	Term Deposit	BBB+	0.33%	\$ 1,000,000	\$ 271	0.00%
AMP Bank	Term Deposit	BBB	0.40%	\$ 3,000,000	\$ 986	0.01%
ME Bank	Term Deposit	BBB	0.45%	\$ 1,000,000	\$ 370	0.00%
National Australia Bank	Term Deposit	AA-	0.55%	\$ 2,000,000	\$ 904	0.01%
Westpac Banking Corporation	Term Deposit	AA-	0.20%	\$ 4,000,000	\$ 658	0.01%
Australian Military Bank Ltd	Term Deposit	Not Rated	0.30%	\$ 1,000,000	\$ 247	0.00%
P & N Bank	Term Deposit	BBB	0.36%	\$ 1,000,000	\$ 296	0.00%
National Australia Bank	Term Deposit	AA+	0.47%	\$ 2,000,000	\$ 773	0.01%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.32%	\$ 2,000,000	\$ 526	0.01%
ME Bank	Term Deposit	BBB	0.30%	\$ 1,000,000	\$ 247	0.00%
Westpac Banking Corporation	Term Deposit	AA-	0.34%	\$ 2,000,000	\$ 559	0.01%
National Australia Bank	Term Deposit	AA-	0.50%	\$ 3,000,000	\$ 1,233	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.25%	\$ 1,000,000	\$ 205	0.00%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.45%	\$ 2,000,000	\$ 740	0.01%
Suncorp	Term Deposit	A+	0.58%	\$ 1,000,000	\$ 477	0.00%
Westpac Banking Corporation	Term Deposit	AA-	0.44%	\$ 1,000,000	\$ 362	0.00%
P & N Bank	Term Deposit	BBB	0.39%	\$ 1,000,000	\$ 321	0.00%
Bank of Sydney Ltd	Term Deposit	Not Rated	0.30%	\$ 1,000,000	\$ 247	0.00%
Bank of Queensland	Term Deposit	BBB+	0.45%	\$ 1,000,000	\$ 370	0.00%
P & N Bank	Term Deposit	BBB	0.40%	\$ 1,000,000	\$ 329	0.00%
Suncorp	Term Deposit	A+	0.51%	\$ 1,000,000	\$ 419	0.00%
National Australia Bank	Term Deposit	AA-	0.78%	\$ 2,000,000	\$ 983	0.01%
Suncorp	Term Deposit	A+	0.35%	\$ 3,000,000	\$ 863	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.70%	\$ 2,000,000	\$ 1,151	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.40%	\$ 1,000,000	\$ 329	0.00%
Auswide Bank Ltd	Term Deposit	BBB-	1.80%	\$ 1,000,000	\$ 1,479	0.02%
Suncorp	Term Deposit	A+	0.35%	\$ 1,000,000	\$ 288	0.00%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.41%	\$ 2,000,000	\$ 674	0.01%
ME Bank	Term Deposit	BBB	0.55%	\$ 1,000,000	\$ 452	0.00%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.41%	\$ 2,000,000	\$ 674	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.40%	\$ 1,000,000	\$ 329	0.00%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.36%	\$ 2,000,000	\$ 592	0.01%
Suncorp	Term Deposit	A+	0.48%	\$ 1,000,000	\$ 395	0.00%
Bank of Queensland	Term Deposit	BBB+	0.70%	\$ 1,000,000	\$ 575	0.01%
ME Bank	Term Deposit	BBB	1.27%	\$ 1,000,000	\$ 278	0.00%
Bank of Queensland	Term Deposit	BBB+	0.43%	\$ 2,000,000	\$ 707	0.01%
Bank of Queensland	Term Deposit	BBB+	0.70%	\$ 2,000,000	\$ 1,151	0.01%
ME Bank	Term Deposit	BBB	1.47%	\$ 1,000,000	\$ 161	0.00%
National Australia Bank	Term Deposit	AA-	1.30%	\$ 1,000,000	\$ 142	0.00%
Bank of Queensland	Term Deposit	BBB+	0.90%	\$ 1,000,000	\$ 740	0.01%
Bank of Queensland	Term Deposit	BBB+	0.70%	\$ 2,000,000	\$ 1,151	0.01%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.53%	\$ 2,000,000	\$ 871	0.01%
Suncorp	Term Deposit	A+	0.52%	\$ 1,000,000	\$ 427	0.00%

**Estimated Interest
on Investments
for April 2022**

Name of Investment / & Counterparty	Type of Investment	Rating	Annualised Coupon / Interest Rate	Current market Value	Estimated Interest for Period	Weighted Interest for Period
Commonwealth Bank of Australia - TD	Term Deposit	AA-	1.82%	\$ 1,000,000	\$ 199	0.00%
National Australia Bank	Term Deposit	AA-	0.64%	\$ 1,000,000	\$ 526	0.01%
Suncorp	Term Deposit	A+	0.62%	\$ 4,000,000	\$ 2,038	0.02%
Westpac Banking Corporation	Term Deposit	AA-	0.81%	\$ 2,000,000	\$ 1,332	0.01%
Suncorp	Term Deposit	A+	1.48%	\$ 2,000,000	\$ 892	0.01%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.76%	\$ 2,000,000	\$ 1,249	0.01%
Westpac Banking Corporation	Term Deposit	AA-	0.90%	\$ 2,000,000	\$ 1,479	0.02%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	2.12%	\$ 2,000,000	\$ 465	0.00%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.76%	\$ 2,000,000	\$ 1,249	0.01%
Summerland Credit Union	Term Deposit	Not Rated	0.60%	\$ 1,000,000	\$ 493	0.01%
Westpac Banking Corporation	Term Deposit	AA-	0.97%	\$ 4,000,000	\$ 3,189	0.03%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.82%	\$ 2,000,000	\$ 1,348	0.01%
National Australia Bank	Term Deposit	AA+	0.82%	\$ 2,000,000	\$ 1,348	0.01%
Suncorp	Term Deposit	A+	1.15%	\$ 1,000,000	\$ 945	0.01%
Suncorp	Term Deposit	A+	1.93%	\$ 2,000,000	\$ 423	0.00%
National Australia Bank	Term Deposit	AA-	0.55%	\$ 2,000,000	\$ 904	0.01%
Bank of Queensland	Term Deposit	BBB+	0.60%	\$ 1,000,000	\$ 493	0.01%
RaboBank	Term Deposit	Not Rated	3.45%	\$ 1,000,000	\$ 2,836	0.03%
RaboBank	Term Deposit	Not Rated	3.35%	\$ 1,000,000	\$ 2,753	0.03%
National Australia Bank	Term Deposit	AA-	0.95%	\$ 1,000,000	\$ 781	0.01%
Investment on Hand				\$ 123,412,000	\$ 52,885	0.54%

Note 1

Interest on Investments Redeemed during month to reporting date (26/04/2022)

National Australia Bank	Term Deposit	AA-	0.42%	\$ 2,000,000	\$ 161	0.00%
Suncorp	Term Deposit	A+	0.30%	\$ 2,000,000	\$ 312	0.00%
ME Bank	Term Deposit	BBB	0.45%	\$ 1,000,000	\$ 271	0.00%
Suncorp	Term Deposit	A+	0.33%	\$ 2,000,000	\$ 470	0.00%

0.55%

\$ 54,100

Investment Income Earned vs. Budget Year to Date

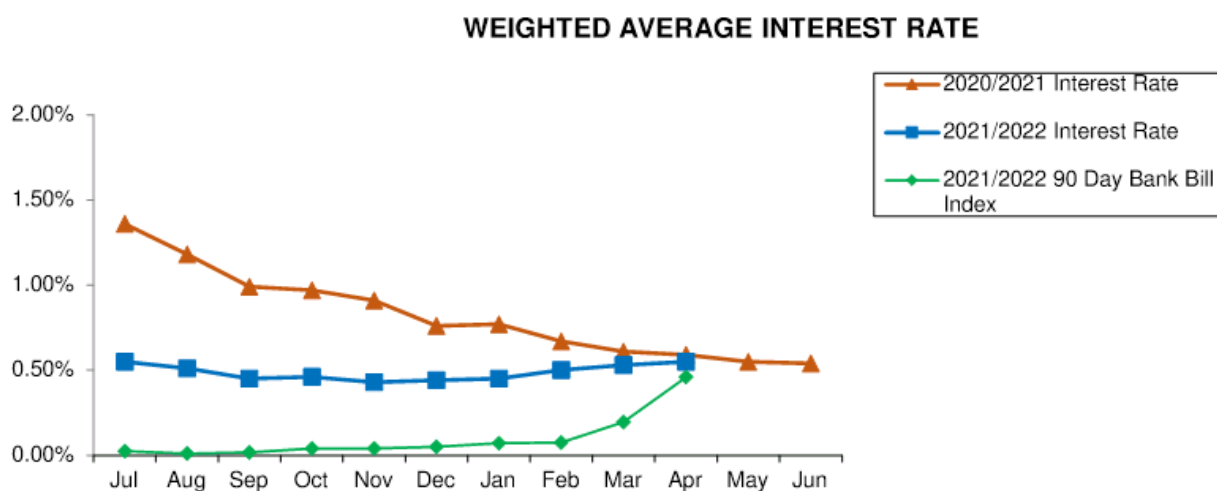
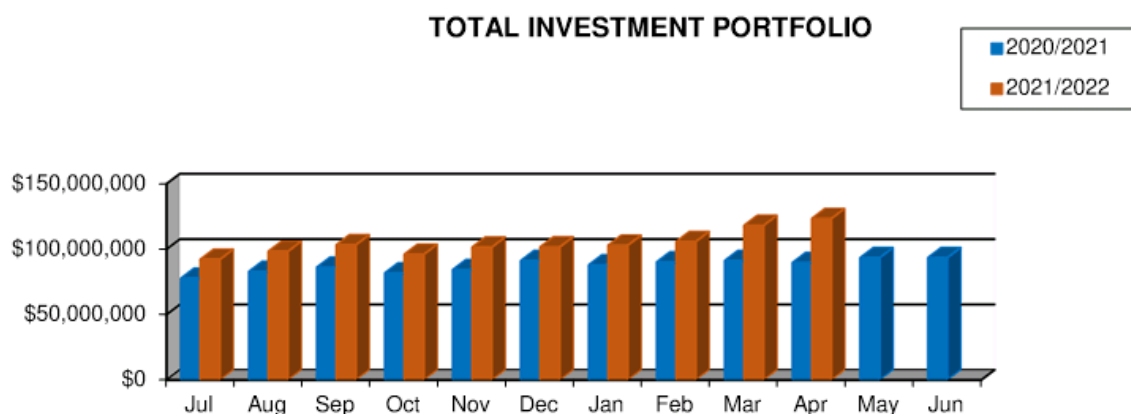
Estimated interest earned to date \$ 418,546
Pro Rata annual budget \$ 379,833

Note 1: Estimated Interest for Period is calculated by multiplying the annualised rate by the purchase price and reflects both interest accrued and received.

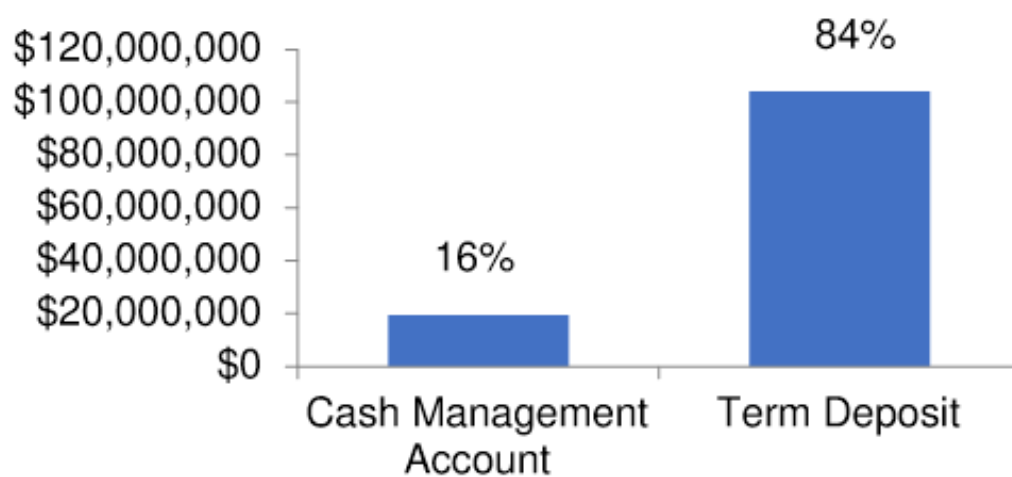
Note 4: "Indicative" Interest Earned based on the restricted/unrestricted fund balances as at reporting date.

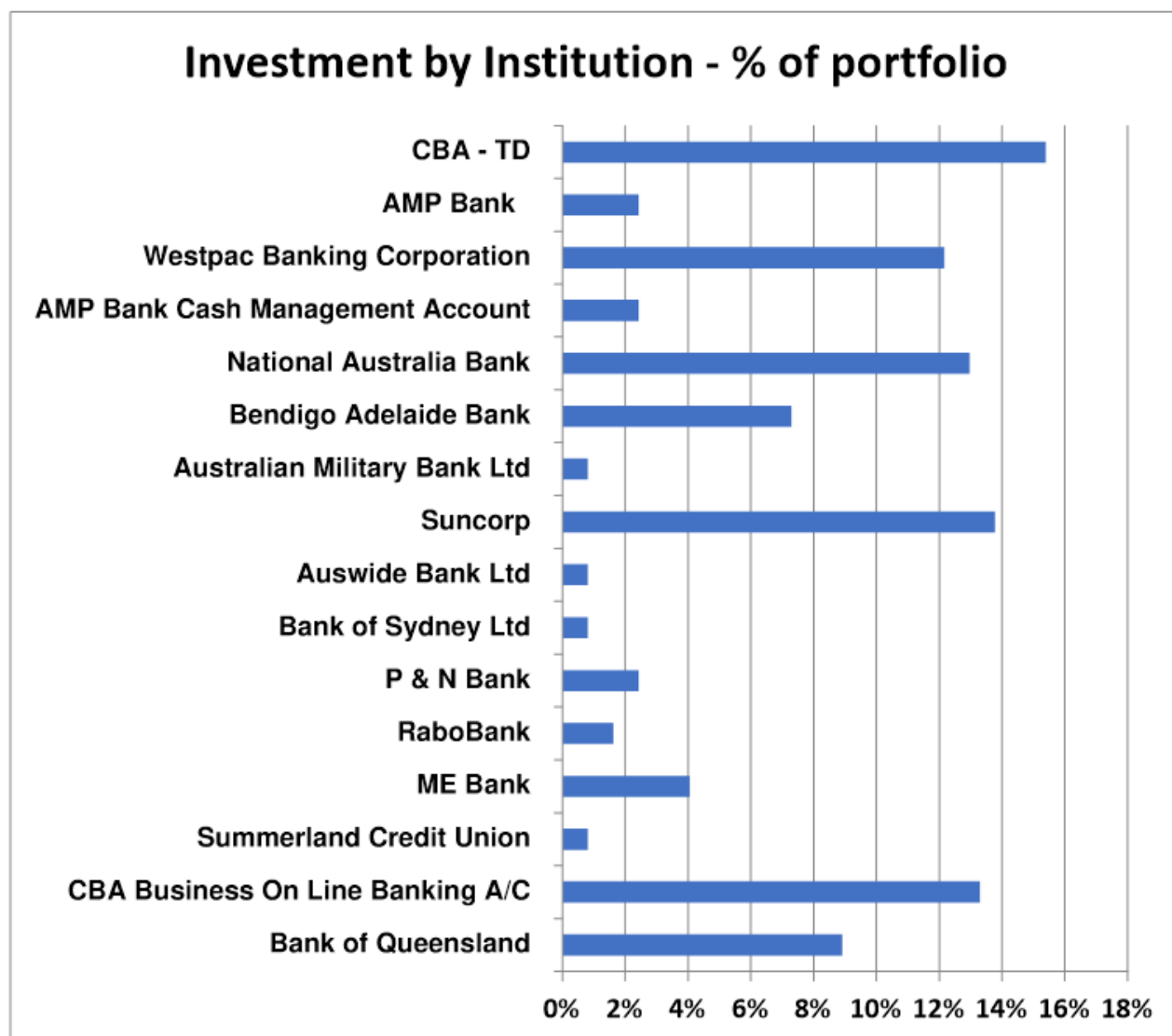
"Indicative" Interest Earned

Externally Restricted - Water Fund	\$ 5,613
Externally Restricted - Wastewater Fund	\$ 16,529
Externally Restricted - Other	\$ 10,118
Externally Restricted - RTRL	\$ 908
Internally Restricted	\$ 20,931
Unrestricted	\$ -
	\$ 54,100



INVESTMENT BY TYPE





Report

Subject	Delivery Program - Progress Report - Quarter 3 - January to March 2022
TRIM Record No	BP22/226:EF18/696
Prepared by	Acting Corporate Planning & Engagement Coordinator
Reason	In accordance with the Local Government Act 1993, the General Manager is required to provide Council with a report on Delivery Program implementation at least every six months. Lismore City Council currently reports quarterly.
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

The attached Progress Report provides a summary of progress against each of the activities in Council's combined Delivery Program 2017–2021 and Operational Plan 2021-22 between January and March 2022. The natural disaster in February 2022 and the ongoing impact of COVID-19 were the leading causes of actions being reported as off track or cancelled/deferred. Council staff are actively taking steps to mitigate these impacts within available resources and communicate any material services delivery impacts with key stakeholders.

Recommendation

That Council receive and endorse the attached Q3 Progress Report for the period January to March 2022.

Background

The Integrated Planning and Reporting (IP&R) Framework is the set of tools that Council uses to design and deliver a portfolio of services and projects that work towards the community's vision and goals for the Lismore local government area. In accordance with this framework, we currently have in place a Community Strategic Plan 2017-2027, prepared by Council on behalf of the community, which sets out the community's vision for Lismore by 2027; and a combined Delivery Program 2017-2021 (Council's commitment to the community) and Operational Plan 2021-22.

The *Local Government Act 1993* requires the General Manager to provide a report on the progress of implementing Council's Delivery Program at least every six months. We currently report progress quarterly, aligned with Quarterly Budget Review Statements, so that Council can consider its budget performance in conjunction with progress against the activities that this budget pays for. The attached progress report covers the period 1 January to 1 March 2022.

The report includes traffic light status updates with supporting commentary for each action in the Operational Plan 2021/22. It also includes progress for the year to date for measures against each operational activity. As measures were introduced this financial year for the first time, there are still some areas of inconsistency in the report for some measures. As an organisation, we are on a continuous

improvement journey with the way we report progress, and it is important to note that significant progress has been made this financial year. As we continue to uplift the role and discipline of IP&R in the organisation, we anticipate these areas of inconsistency will significantly decrease.

In terms of operational performance, of the 169 actions, 105 (64%) are reported as on track (green). We are actively taking steps to address impacts or delays to 40 actions (22%) reported as amber, and a further 14 actions (8%) have been deferred to a later time or cancelled (blue). At this time, there are three actions reported as red (needs critical attention), all of which relate to assets that were severely impacted by the natural disaster in February and March 2022.

These natural disasters together with the ongoing impact of COVID-19 were the leading causes of actions being reported as off track. Active steps are being taken by Council staff to recover assets and operations impacted by flood events, in collaboration with relevant state agencies and funding bodies and at the direction of Council. With respect to COVID-19 impacts, it is anticipated that rolling staff shortages and supply chain disruptions will continue to impact some services and projects for the remainder of the financial year.

These cumulative impacts will be managed as best as possible within available resources, and Council staff will continue to communicate with Council and the community regarding any material changes to service levels via the website, social media, Your Say Lismore, and direct communication.

Comments

Finance

Not required

Other staff comments

Not required

Public consultation

The report will be placed on Council's website as well as the Your Say Lismore Engagement portal for community access.

Conclusion

This Progress Report details progress against the operational activities and projects as set out in the Imagine Lismore Delivery Program 2017-2021/Operational Plan 2021-22 for the period January to March 2022.

Attachment/s

- | | |
|---|----------------|
| 1. Delivery Program 2017 - 2021 Progress Report Quarter 3 - January to March 2022 | (Over 7 pages) |
|---|----------------|

Report

Subject	Business Activation Working Group Councillor Representative and Terms of Reference
TRIM Record No	BP22/267:EF21/171
Prepared by	Manager Economic Development
Reason	To adopt the new Business Activation Working Group Terms of Reference and elect a councillor to the Working Group
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

The purpose of this report is to adopt the new Business Activation Working Group Terms of Reference and to appoint a Councillor to the Working Group to provide ongoing feedback on the implementation of Council's Business Activation Plan that guides Lismore's Special Business Rate Variation Levy (SBRVL) expenditure.

Recommendation

That Council:

1. approve the new Business Activation Working Group Terms of Reference
2. elect a Councillor representative to the Business Activation Working Group at this meeting through a nomination process. If there is more than one nomination, an open ballot show of hands process will run. If there is only one nominee, then the nominee is elected.

Background

At Council's ordinary meeting on 16 February 2022 amendments to the Business Activation Working Group Terms of Reference were adopted to reflect a membership amendment to include 1 councillor, as elected by Council. Accordingly, the Terms of Reference were amended.

A subsequent report was presented to Council's ordinary meeting on 22 March 2022 to elect a councillor representative to the Working Group. At this meeting, a motion was moved deferring the matter until a report be brought forward with the new Terms of Reference. In response to this motion, this report presents the new Business Activation Working Group Terms of Reference for approval with changes made noted below:

1. Section 4.2:
The Group will include a maximum of 11 members in total, including:
 - Lismore City Council Mayor (Chairperson) or delegate
 - 1 elected councillor as nominated by Council
 - 4 business and industry sector representatives (as outlined in section 4.1)
 - 1 Lismore Chamber of Commerce and Industry representative
 - 1 Nimbin Chamber of Commerce representative

- 1 Southern Cross University representative across innovation, entrepreneurship and education fields
- CBD Activation Officer, Lismore City Council Economic Development Team
- Lismore City Council General Manager or delegate.

3. Section 5.2

The words '*and chair*' removed from the following sentence to reflect the amendment of the Mayor as the Working Group Chairperson:

As the Project Manager of the Business Activation Plan and part of the Lismore City Council Economic Development Team, the CBD Activation Officer will coordinate meetings and ensure key reporting including...

Furthermore, this report seeks Council to elect a Councillor representative to the Business Activation Working Group through a nomination process.

Comments

Finance

Not required.

Other staff comments

Not required.

Public consultation

Not required.

Conclusion

Council adopts the new Business Activation Working Group Terms of Reference and elects a Councillor representative to the Business Activation Working Group.

Attachment/s

1. [↓](#) Business Activation Working Group Terms of Reference



Business Activation Working Group

Terms of Reference

1. Name

- 1.1 Business Activation Working Group

2. Role of the Group

- 2.1.1 Provide feedback on the implementation of Council's [Business Activation Plan](#), which guides Special Business Rate Variation Levy expenditure in Lismore and the pursuit of funding opportunities for Nimbin and Lismore until end June 2023.
- 2.1.2 Review activation, placemaking and promotional outcomes, along with evaluation, communication, ideas and opportunities arising.
- 2.1.3 Assist the Economic Development team with the development of any subsequent Business Activation Plan materials, leading up to the June 2023 Plan end date.

3. Principles

- 3.1 General and Business Activation Plan principles guide the Group:

3.1.1 General Principles:

- Consensus oriented – members work towards agreement when providing advice.
- Efficient – members work together to produce the best results in a timely manner.
- Respect – members respect each other's differences and opinions.
- Equitable and inclusive – members are treated equally and feel included.
- Accountable – members are responsible for their action items and contributions.
- Confidentiality – members must not share confidential or personal information outside the meeting unless by permission of the Group.

3.1.2 Business Activation Plan principles:

- Connected - supports or develops connections across and between town centres.
- Inclusive – focuses on person-centred activities that are accessible to all.
- Collaborative and in Partnership – presents opportunities to partner with other organisations, agencies, or peak bodies.
- Strategic – leverages work underway, and aligns with priorities identified in Council, State and Federal government plans and strategies.
- Experimental – tries and tests new ideas that support business activation.

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Lismore City Council acknowledges the people of the Bundjalung Nation, traditional custodians of the land on which we work.

4. Membership

4.1 Expressions of interest for membership will be advertised publicly:

- 4.1.1 Representatives of local businesses and organisations are eligible to apply, including sole traders and professionals leading initiatives in arts and culture, events, sport, accessibility, education or other fields relevant to CBD activation.
- 4.1.2 Members must be 18 years plus and work in Lismore or Nimbin; and be able to demonstrate relevant expertise, insights and drive to help our town centre and businesses flourish.
- 4.1.3 Selection of Working Group members will be based on suitable diversity of expertise and location, as we aim to bring together a cross-section of business and activation stakeholders to inform positive outcomes and impact with the Business Activation Plan. Working Group selection will be authorised by the General Manager.

4.2 The Group will include a maximum of 11 members in total, including:

- Lismore City Council Mayor (Chairperson) or delegate
- 1 Elected Councillor as nominated by Council
- 4 business and industry sector representatives (as outlined in section 4.1)
- 1 Lismore Chamber of Commerce and Industry representative
- 1 Nimbin Chamber of Commerce representative
- 1 Southern Cross University representative across innovation, entrepreneurship and education fields
- CBD Activation Officer, Lismore City Council Economic Development Team
- Lismore City Council General Manager or delegate.

4.3 A minimum of 3 business and industry sector representatives (including Chamber representatives) is required for a Working Group meeting to proceed, to encourage balance of external and internal stakeholders. Should less than 3 business and industry sector representatives be available for a meeting or as current members of the Working Group, the meeting organiser will work to reschedule or reappoint suitable members.

4.4 Members are encouraged to commit to stay within the Group until June 2023 end date, to enable continuity of the Working Group processes. Should members stand down from the Working Group, the CBD Activation Officer will take steps to find suitable replacement, in consultation with the Working Group and other stakeholders.

4.5 Business or organisational representatives appointed to the Business Activation Panel Working Group may send an alternate delegate.

4.6 Council has the right to remove a member if they breach the principles as stated above; Council's Organisational Values or Code of Conduct; or these Terms of Reference.

5. Scope

- 5.1 The Business Activation Working Group provides feedback to the Economic Development Team on the delivery and progress of the Business Activation Plan, which runs until June 2023 to support the revitalisation and promotion of Lismore (including South Lismore, North Lismore and Goonellabah) and Nimbin town centres.
- 5.2 As the Project Manager of the Business Activation Plan and part of the Lismore City Council Economic Development Team, the CBD Activation Officer will coordinate meetings, and ensure key reporting including:
- Quarterly updates including (but not limited to) outcomes, expenditure and variations, learnings and opportunities, presented for the Working Group to provide expert insights and feedback
 - Six-monthly snapshots shared with business and community stakeholders
 - Alignment with the Economic Development Strategy and Council's Integrated Planning and Reporting Framework, with annual reports to Council
 - Timely updates about relevant news and opportunities through the Economic Development Team's monthly Business Enewsletter and Council's Local Matters publication.
- 5.3 If relevant and timely, the Economic Development team may invite other representatives to attend Group meetings to provide expert input from outside or within Lismore City Council.
- 5.4 Members of the public are not permitted to attend Group meetings. Members of the public will be involved in Business Activation Plan delivery, evaluation and outcomes via regular communications and community engagement.
- 5.5 The Group will be asked to consider and contribute to evaluation and subsequent planning leading up to the conclusion of the Business Activation Plan at end June 2023.

6. Limitations

- 6.1 The Business Activation Working Group:
- 6.1.1 Is unable to direct Council operational issues under control of the General Manager
 - 6.1.2 Provides advice and feedback but does not make decisions relating to Business Activation Plan delivery or expenditure
 - 6.1.3 Members are not authorised to speak or issue press releases on behalf of the Group or Council unless authorised by the General Manager
 - 6.1.4 Members are bound by the Council's Code of Conduct in particular where it pertains to supplier and staff interactions.

- 6.2 The General Manager is authorised to make amendment or vary the provision of these Terms of Reference.

7. Meeting Protocol

- 7.1 As primary representative of the Economic Development Team, the CBD Activation Officer will:
- 7.1.1 Organise Group meetings and communications, providing sufficient time for members to review materials before meeting and distributing notes after meeting within seven (7) days of meeting
 - 7.1.2 Follow a standard Working Group Agenda
 - 7.1.3 Arrive before the meeting start time, and start the meeting on time
 - 7.1.4 Stay on topic and keep the meeting as brief as possible
 - 7.1.5 Be respectful of other people's views and allow everyone to participate.
- 7.2 Should a virtual meeting be required, Members must be available on video and audio to ensure a collaborative meeting experience.
- 7.3 Mobile phones and other electronic devices shall be switched to silent.

8. Meeting Frequency

- 8.1 The Group will meet quarterly. Meetings will be undertaken face to face or virtually, utilising Microsoft Teams or similar applications.

9. Group Minutes

- 9.1 Minutes will be taken at each meeting. The minutes will contain a list of members present, member's apologies, confirmation of previous minutes, disclosure of interest, and any recommendations and actions. Council's standard format for meeting minutes will be adopted. Staff may record the meeting using audio devices for minute taking purposes.
- 9.2 Minutes will be distributed to all group members within seven (7) days of the meeting.

10. Conflict of interest

- 10.1 All Group members are required to declare any potential conflict of interest in exercising their role and appropriately manage that conflict.

Report

Subject	Rates & Charges Hardship Policy
TRIM Record No	BP22/274:EF19/13-4
Prepared by	Manager Finance
Reason	To place the amended Rates & Charges Hardship Policy on public exhibition
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

The current natural disaster has had significant financial impact on our ratepayers and community. Council has indicated an intention to explore all possible avenues for rate relief and support within its financial capacity. However, it is noted that Council has very limited resources to subsidise rate relief, especially considering the significant impact of the natural disaster on Council's own assets and resources.

Advice was sought from the Office of Local Government (OLG) on Council obligations regarding rates and rates relief, the following is a summary:

- Council has no legal ability to not charge rates; rates need to be levied.
- Council has no legal ability to write off rates across rating categories, or holistically for segments of the population.
- Relief on rates and charges needs to be on a case-by-case basis and applied through an appropriate mechanism.

Council has also received legal advice that supports the advice from the Office of Local Government.

After consideration of the advice received it is deemed the most appropriate mechanism to provide relief to ratepayers suffering hardship is through Council's Hardship Policy 1.5.11. Under the current Rates Hardship Policy, Council can enter a payment arrangement, but has limited scope to waive interest on overdue rates. Therefore, it is considered that the current policy does not provide wide enough flexibility to address the current issues adequately.

Council can either develop a new policy or amend the existing policy to address these events. After consultation and receiving feedback from stakeholders, it is considered that an amendment to the existing policy would be the most appropriate and allow for ongoing flexibility for Council.

The policy is required to be placed on public display and will be brought back to Council at the June meeting for consideration. Council needs to resolve to put the updated policy on public exhibition.

Recommendation

That:

1. Council place the amended Rates & Charges Hardship Policy on public exhibition for a period of 28 days and receive and consider submissions from the public
2. Council amends its 2022 Operational Plan and set the interest rate on overdue rates to zero (0%) from 1 March 2022 until 30 June 2022
3. water charges – where excess water usage is identified for affected properties the charge should be based on previous daily usage patterns. Hardship applications to be considered in line with the amended Rates Hardship Policy.

Background

The current natural disaster has had significant financial impact on our ratepayers and community. Council has indicated an intention to explore all possible avenues for rate relief and support within its financial capacity. However, it is noted that Council has very limited resources to subsidise rate relief, especially considering the significant impact of the natural disaster on Council's own assets and resources

Advice was sought from the Office of Local Government (OLG) on Council obligations regarding rates and rates relief, the following is a summary:

- Council has no legal ability to not charge rates; rates need to be levied.
- Council has no legal ability to write off rates across rating categories, or holistically for segments of the population.
- Relief on rates and charges needs to be on a case-by-case basis and applied through an appropriate mechanism.

Council has also received legal advice that supports the advice from the Office of Local Government

Generally, there are no legislative provisions available to Council to write off rates and charges based on hardship (the Local Government Regulation (s131) sets out the limited reasons this can occur). This is consistent with the approach that the Act takes for provision of individual support to individual ratepayers.

Council must levy the rates as per normal and then apply appropriate mechanisms under the Act to address ratepayers impacted by the floods. The appropriate mechanism is through Council's hardship policies and procedures. OLG has issued Debt Management and Hardship Guidelines to assist.

Some of the options available to assist ratepayers experiencing financial hardship, under the Act and Regulation, include:

- A payment plan or agreement
- Interest may be waived or reduced for a set period

Relief under Council's Hardship Policy applies to individuals who are required to pay rates and charges. Council notes that in some circumstances these payments flow through to tenants and leases as part of their commercial arrangements. It is beyond the scope of Council to offer relief to non-ratepayers; the expectation should be that relief should be passed through by landlords if it is available.

Council staff will facilitate a process to make it easy for people to both apply for relief, and evidence their eligibility. This may involve reliance on third party referral (welfare case workers, financial counsellors) to streamline the approval process.

Communication of this policy with the community will be a key component of successful execution; the most significantly impacted individuals may no longer have postal addresses. Council will work with key stakeholders to ensure clarity on the process.

Council's Hardship Policy will need to be amended to reflect a new category of "Natural Disaster Impact".

This will allow for a streamlined application process in the current circumstances.

This will need to go on public exhibition and return to Council's June meeting.

Comments

Finance

Council has very limited resources to subsidise rate relief, especially considering the significant impact of the natural disaster on Council's own assets, incomes, and the resources Council needs. The overall impact on Council is still being assessed as are the funding sources available to address these impacts.

Any relief provided needs to be considered regarding Council's cashflow and ongoing ability to deliver services to the community. Where possible Council will leverage State and Federal Governments to fill revenue gaps created via application of the Rates & Charges Hardship Policy.

Under the current Rates Hardship Policy, Council can enter a payment arrangement under its existing Rates Hardship Policy but has limited scope to waive interest on overdue rates. Therefore, it is considered that the current policy does not provide enough flexibility to address the current issues adequately.

Public consultation

To be placed on public exhibition for 28 days and seek public submissions.

Conclusion

Based on advice received from the Office of Local Government and confirmed through legal advice, Council has no legal ability to not charge rates; rates need to be levied. In addition, Council has no legal ability to write off rates across rating categories, or holistically for segments of the population.

Relief on rates and charges needs to be on a case-by-case basis and applied through an appropriate mechanism. The most appropriate mechanism is through Council's Hardship Policy 1.5.11.

The current policy does not provide enough flexibility to address the issues adequately.

A revised policy has been developed to allow more flexibility to Council, the policy is required to be placed on public display and will be brought back to Council at the June Ordinary meeting for consideration.

Council needs to resolve to put the updated policy on public exhibition.

Attachment/s

1. [Rates and Hardship Policy](#)



POLICY MANUAL

Policy title:	RATES & CHARGES HARDSHIP
Policy number:	1.5.11
Objective:	To provide assistance to those ratepayers who are experiencing genuine financial hardship with the payment of rates and charges.
Link to community vision/service:	Civic Leadership/Management
Program Area:	Finance
Policy created: 12/05/09	Council reviewed: 13/04/2022
Last reviewed by staff: <u>06/04/2022</u>	TRIM Ref: ED10/15841, ED12/283, ED16/33033 & ED22/9029

Background:

The *Local Government Act 1993* (LGA) provides for councils to make concessions to ratepayers experiencing genuine financial hardship. It also provides for concessions to pensioners.

The purpose of this policy is to provide guidance as to how Council will respond to ratepayer requests for assistance because the payment of rates and charges would cause genuine financial hardship.

Financial Hardship Provisions:

The LGA provides for the following options:-

- a) **Section 564** – Council may accept an arrangement for the periodical payment of rates or charges. Council may also write off or reduce interest accrued on rates and charges if the person complies with the arrangement.
- b) **Section 567** – Council may write off accrued interest on rates and charges payable if in Council's opinion the reasons that the person was unable to pay the rates and charges when they became payable were beyond the person's control, or; that the person is unable to pay the accrued interest for reasons beyond that person's control, or; that the payment of the accrued interest would cause the person hardship.
- c) **Section 577** – Council may extend the pension concession to a ratepayer (subject to conditions) to avoid hardship and permits Council to issue an order specifying a person who is not an eligible pensioner to be deemed an eligible pensioner and therefore qualify for the full pensioner reduction.
- d) **Section 601** – Provides for ratepayers who incur a rate increase in the first year following a general revaluation of land values to apply to Council for rate relief if the increase in the amount of rates payable will cause them substantial financial hardship. Council may waive, reduce or defer

the payment of the whole or any part of the increase in the amount of the rate payable by the ratepayer in such circumstances, for such period and subject to such conditions as it thinks fit.

In addition to financial hardship provisions, the LGA provides the following pensioner concession provisions:-

- e) **Section 575** – *The rates and charges for an eligible pensioner (subject to conditions) are to be reduced by up to 50% or a maximum of \$250 for ordinary rates and domestic waste management charges, \$87.50 for water supply charges and \$87.50 for sewerage charges.*
- f) **Section 582** – Council may waive or reduce rates, charges and interest due by any person prescribed by the regulations who is in receipt of a pension, benefit or allowance under the Social Security Act 1991 of the Commonwealth.

Application of Financial Hardship and Pensioner Concessions Provisions:

a) Section 564 – Payment Arrangement

- The applicant/s will be required to enter into and maintain a payment arrangement which will pay all rates or charges including future interest charges, as they fall due or accrue, and/or, significantly reduce any arrears at the end of the payment arrangement period.
- In the event that a payment in full under an arrangement is not made and Council is not notified of any financial difficulties, the total amount outstanding becomes payable and is subject to Council's normal debt recovery procedures.
- Where an applicant/s requests the write off or reduction of accrued interest charges applicable to a payment arrangement, "b) Section 567 – Write off Accrued Interest" Charges, is to apply.
- The General Manager has delegated authority to enter into an agreement which is acceptable to Council with applicant/s for this purpose.

b) Section 567 – Write off Accrued Interest Charges

- The applicant/s is suffering financial hardship as a result of having to pay the rates and charges as and when they fall due.
- The applicant/s must be the owner/spouse or part owner of the property and be liable for the payment of rates on the property.
- The property for which the hardship application applies must be the sole or principal place of residency of the applicant/s.
- The property for which the hardship application applies must be categorised as residential for rating purposes.
- The applicant/s must complete and submit a Rates & Charges Hardship Application Form*. It must be accompanied by supporting documentation which may include but not limited to:-
 - Reasons why the rates and charges were not paid when they became due and payable
 - Reasons why future interest charges cannot be paid when they become due and payable
 - Letter from a recognised financial counsellor or advisor confirming financial hardship
 - Recent bank statements for all accounts
- The submission of an application does not guarantee it will be approved.
- The General Manager has delegated authority up to the delegated amount to assess and determine an application for this purpose.

- Eligible applications that are more than the General Manager's delegated amount are to be reported to Council for determination. The report will be considered in Closed Council to protect the applicant/s privacy in accordance with Section 10A(2)(b) of the LGA.

c) Section 577 – Extension of Pension Concession

- Council may consider it proper to extending a part pension concession to a full pension concession, to avoid hardship, for an eligible person:-
 - i. who occupies a dwelling as his or her sole or principal place of living, which dwelling is the sole or principal place of living of an eligible pensioner, and
 - ii. who is jointly liable with that eligible pensioner or with that eligible pensioner and one or more other persons in respect of the land on which that dwelling is situated, and
 - iii. in respect of whom a reduction of rates or charges would not, if that person were solely liable in respect of that land, be required to be made under Part 8 Division 1 of the LGA.
- The applicant/s must complete and submit a Rates & Charges Hardship Application Form*. It must be accompanied by supporting documentation which may include but not limited to:-
 - Reasons why the rates and charges were not paid when they became due and payable
 - Reasons why future interest charges cannot be paid when they become due and payable
 - Letter from a recognised financial counsellor or advisor confirming financial hardship
 - Recent bank statements for all accounts
- The submission of an application does not guarantee it will be approved.
- The General Manager has delegated authority up to the delegated amount to assess and determine an application for this purpose.

d) Section 601 – Hardship resulting from a General Revaluation

- The applicant/s would suffer substantial financial hardship if required to pay the rates when they fall due.
- The applicant/s must complete and submit a Rates & Charges Hardship Application Form*. It must be accompanied by supporting documentation which may include but not limited to:-
 - Reasons why the rates and charges were not paid when they became due and payable
 - Reasons why future interest charges cannot be paid when they become due and payable
 - Letter from a recognised financial counsellor or advisor confirming financial hardship
 - Recent bank statements for all accounts
- An application must be submitted within 6 months of the posting date of the rates notice in the first year of the general revaluation.
- The property must be categorised as residential for rating purposes.
- The applicant must occupy the property as their sole or principal place of residence.
- Rate relief will only be considered if the rates payable exceed 5% of the gross household income.
- The amount of the rate relief will be the difference between the Ordinary Residential Rate payable on the property for the previous year with the allowable rate percentage increase applied for the current year (i.e. the rate pegging increase allowable under Section 506 of the LGA) and the Ordinary Residential Rates payable on the property in the rating year that General Revaluations are being used for the first time.

- The maximum amount of rate relief will be \$250.
- Payment of the difference calculated of up to \$250 may be deferred to the following rating year. One quarter of the amount deferred may be added to each of the quarterly instalments. Interest may be written off on the deferred amount unless it is not paid by the quarterly instalment due date.
- The submission of an application does not guarantee it will be approved.
- The General Manager has delegated authority to assess and determine an application for this purpose.

e) Section 575 – Pensioners Concessions

- To be eligible for a pensioner concession, the ratepayer must be an eligible pensioner as defined by Clause 134 of the *Local Government (General) Regulation 2005*.
- As a guide, the ratepayer must hold at least either a valid Pensioner Concession Card or valid Gold Care (TPI or EDA) issued by the Commonwealth. As other conditions apply, an Application for a Pensioner Concession* must be completed and submitted to allow eligibility and concession entitlement to be fully assessed.
- The pensioner must own and occupy the property as his or her sole or principal place of living. If the property is owned by more than one eligible pensioner, they are to be treated as a solely eligible pensioner.
- If the property is owned by one pensioner and one non pensioner, provided that the non-pensioner is the spouse of the eligible pensioner, they are to be treated as a solely eligible pensioner. If the other person is not the spouse of the eligible pensioner and does not hold a Pensioner Concession card, the reduction is divided by the number of owners and granted to the eligible pensioner.
- If a person becomes an eligible pensioner after the day on which a rate or charge is made and levied, the person is entitled to a reduction of the rate or charge proportionate to the number of full quarters remaining after the day on which the person becomes an eligible pensioner in the year in which the rate or charge is made.
- Council will provide a pensioner concession to an eligible pensioner on their rates and charges based on meeting all the requirements of Section 575 of the LGA of 50% or up to the State Government set maximum rebate amount of \$250 for ordinary rates and domestic waste management charges, \$87.50 for water supply charges and \$87.50 for sewerage charges.

f) Section 582 – Reductions for Eligible Pensioners

- The applicant/s must be a person prescribed by the regulations who is in receipt of a pension, benefit or allowance under the *Social Security Act 1991* of the Commonwealth.
- The applicant/s is suffering financial hardship as a result of having to pay the rates and charges as and when they fall due.
- The applicant/s must be the owner/spouse or part owner of the property and be liable for the payment of rates on the property.
- The property for which the hardship application applies must be the sole or principal place of residency of the applicant/s.
- The property for which the application to waive or reduce rates, charges and interest must be categorised as residential for rating purposes.

- The applicant/s must complete and submit a Rates & Charges Hardship Application Form*. It must be accompanied by supporting documentation which may include but not limited to:-
 - Reasons why the rates and charges were not paid when they became due and payable
 - Reasons why future interest charges cannot be paid when they become due and payable
 - Letter from a recognised financial counsellor or advisor confirming financial hardship
 - Recent bank statements for all accounts
- The submission of an application does not guarantee it will be approved.
- The General Manager has delegated authority up to the delegated amount to assess and determine an application for this purpose.

Natural Disaster Event:

In the event of a Natural Disaster (as declared by the Federal Government) the following additional provisions will apply at the discretion of Council:

- Council may agree and publish a short form Rates & Charges Hardship Application Form (Natural Disaster) and may amend the requirements relating to provision of supporting documentation at its discretion.
- In the case of rates and charges notices issued in the six months following a Natural Disaster (or such other period at the discretion of the General Manager), the following provisions limiting eligibility to apply for the write off of Accrued Interest Charges under s567 of the LGA will not apply:
 - The property for which the hardship application applies must be the sole or principal place of residency of the applicant/s.
 - The property for which the hardship application applies must be categorised as residential for rating purposes.
- Council may, in its discretion, agree to relief in the form of adjusting water charges where excess water use could reasonably be considered as relating to the Natural Disaster event.

Confidentiality and privacy:

Council staff will conduct themselves with courtesy and respect when dealing with ratepayers and shall maintain the confidentiality and privacy of all ratepayers' personal circumstances.

Evaluation and review:

The policy will be evaluated and reviewed during the term of every Council.

*The Rates & Charges Hardship Application Form and Application for a Pensioner Concession can be downloaded from Council's website www.lismore.nsw.gov.au.

Report

Subject	Councillors Expenses & Facilities Policy
TRIM Record No	BP22/237:EF16/286
Prepared by	Executive Assistant - General Manager and Mayor & Councillors
Reason	Review the policy in accordance with Section 252 of the Local Government Act 1993
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

The *Local Government Act 1993* (s252) requires the adoption of a Councillor Expenses and Facilities Policy within 12 months of the commencement of a new council term.

The current policy was adopted in November 2017 and was based on the Office of Local Government's (OLG) best practice model policy.

The attached policy as no amendments and is the same as the current policy. The policy should go on public exhibition before final consideration for adoption by Council.

Recommendation

That the Councillors Expenses & Facilities Policy be placed on public exhibition for 28 days and be reported back to Council for consideration with any submissions received.

Background

The *Local Government Act 1993* (s252) requires the adoption of a Councillor Expenses and Facilities Policy within 12 months of the commencement of a new council term.

Section 253 of the Act states:

253 Requirements before policy concerning expenses and facilities can be adopted or amended

- (1) A council must give **public notice** of its intention to adopt or amend a policy for the payment of expenses or provision of facilities allowing at least 28 days for the making of public submissions.
- (2) Before adopting or amending the policy, the council must consider any submissions made within the time allowed for submissions and make any appropriate changes to the draft policy or amendment.

Public consultation

The public notice period for submissions is 28 days. The Council must consider any submission made during this period prior to adopting or amending the policy.

Conclusion

The Councillors Expenses & Facilities Policy be placed on public exhibition for 28 days and be reported back to Council for consideration with any submission received.

Attachment/s

1. [↓](#) 1.2.23 Councillor Expenses and Facilities Policy



POLICY MANUAL

Policy title:	COUNCILLORS EXPENSES AND FACILITIES
Policy number:	1.2.23
Objective:	Provide for the reasonable and appropriate reimbursement of expenses incurred and standard of facilities provided to Councillors to support them in undertaking their civic duties
Link to community vision/service:	Imagine Lismore Delivery Program, Leadership and participation – Our decisions and actions are open, transparent, effective and in the interest of all
Program Area:	Finance
Policy created: 14/11/06	Council reviewed: 25/8/18, 11/11/08, 10/7/12, 14/6/16, 12/9/17, 14/11/17 & 10/5/2022
Last reviewed by staff: 2/5/2022	TRIM Ref: ED17/23098

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Appendix I – Related legislation, guidance and policies

Appendix II – Definitions

Part A – Introduction

1. Introduction

- 1.1. The provision of expenses and facilities enables councillors to fulfil their civic duties as the elected representatives of Lismore City Council.
- 1.2. The community is entitled to know the extent of expenses paid to councillors, as well as the facilities provided.
- 1.3. The purpose of this policy is to clearly state the facilities and support that are available to councillors to assist them in fulfilling their civic duties.
- 1.4. Council staff are empowered to question or refuse a request for payment from a councillor when it does not accord with this policy.
- 1.5. Expenses and facilities provided by this policy are in addition to fees paid to councillors. The minimum and maximum fees a Council may pay each councillor are set by the Local Government Remuneration Tribunal as per Section 241 of the Act and reviewed annually. Council must adopt its annual fees within this set range.

2. Policy objectives

- 2.1. The objectives of this policy are to:
 - enable the reasonable and appropriate reimbursement of expenses incurred by councillors while undertaking their civic duties
 - enable facilities of a reasonable and appropriate standard to be provided to councillors to support them in undertaking their civic duties
 - ensure accountability and transparency in reimbursement of expenses and provision of facilities to councillors
 - ensure facilities and expenses provided to councillors meet community expectations
 - support a diversity of representation
 - fulfil the Council's statutory responsibilities.

3. Principles

3.1. Council commits to the following principles:

- **Proper conduct:** councillors acting lawfully and honestly, exercising care and diligence in carrying out their functions
- **Reasonable expenses:** providing for councillors to be reimbursed for expenses reasonably incurred as part of their role as councillor
- **Participation and access:** enabling people from diverse backgrounds, underrepresented groups, those in carer roles and those with special needs to serve as a councillor
- **Equity:** there must be equitable access to expenses and facilities for all councillors
- **Appropriate use of resources:** providing clear direction on the appropriate use of Council resources in accordance with legal requirements and community expectations
- **Accountability and transparency:** clearly stating and reporting on the expenses and facilities provided to Councillors.

4. Private or political benefit

- 4.1. Councillors must not obtain private or political benefit from any expense or facility provided under this policy.
- 4.2. Private use of Council equipment and facilities by councillors may occur from time to time. For example, telephoning home to advise that a Council meeting will run later than expected.
- 4.3. Such incidental private use does not require a compensatory payment back to Council.
- 4.4. Councillors should avoid obtaining any greater private benefit from Council than an incidental benefit. Where there are unavoidable circumstances and more substantial private use of Council facilities does occur, councillors must reimburse the Council.
- 4.5. Campaigns for re-election are considered to be a political benefit. The following are examples of what is considered to be a political interest during a re-election campaign:
 - production of election material
 - use of Council resources and equipment for campaigning
 - use of official Council letterhead, publications, websites or services for political benefit
 - fundraising activities of political parties or individuals, including political fundraising events.

Part B – Expenses

5. General expenses

- 5.1. All expenses provided under this policy will be for a purpose specific to the functions of holding civic office. Allowances for general expenses are not permitted under this policy.
- 5.2. Expenses not explicitly addressed in this policy will not be paid or reimbursed.

6. Specific expenses

General travel arrangements and expenses

- 6.1. All travel by councillors should be undertaken using the most direct route and the most practicable and economical mode of transport.

- 6.2. Each councillor may be reimbursed or incur travel expenses while undertaking official business or attending approved conferences, seminars or professional development within NSW. This includes expenses:
- for public transport fares
 - for the use of a private vehicle or hire car
 - for airfares
 - for parking costs for Council and other meetings
 - for tolls
 - by Cabcharge card or equivalent
 - for documented ride-share programs, such as Uber, where tax invoices can be issued.
- 6.3. Allowances for the use of a private vehicle will be reimbursed by kilometre at the rate contained in the Local Government (State) Award.
- 6.4. Councillors seeking to be reimbursed for use of a private vehicle must keep a log book recording the date, distance and purpose of travel being claimed. Copies of the relevant log book contents must be provided with the claim.

Interstate and overseas travel expenses

- 6.5. Council considers travel to South East Queensland (area bounded by Coolangatta / Wallangarra / Toowoomba / Noosa Heads) and the ACT will be considered as general travel. Arrangements and expenses for this travel will be governed by Clauses 6.1-6.4.
- 6.6. In accordance with Section 4, Council will scrutinise the value and need for councillors to undertake interstate and overseas travel. Councillors should avoid interstate and overseas travel unless direct and tangible benefits can be established for the Council and the local community. This includes travel to sister and friendship cities.
- 6.7. Councillors seeking approval for any interstate travel must submit a case to, and obtain the approval of, the General Manager prior to travel.
- 6.8. Councillors seeking approval for any overseas travel must submit a case to, and obtain the approval of, a full Council meeting prior to travel.
- 6.9. The case should include:
- objectives to be achieved in travel, including an explanation of how the travel aligns with current Council priorities and business, the community benefits which will accrue as a result, and its relevance to the exercise of the councillor's civic duties
 - who is to take part in the travel
 - duration and itinerary of travel
 - a detailed budget including a statement of any amounts expected to be reimbursed by the participant/s.
- 6.10. Total overseas travel expenses for councillors must be included in the Council's annual budget.
- 6.11. For interstate journeys by air of less than three hours, the class of air travel is to be economy class.
- 6.12. For interstate journeys by air of more than three hours, the class of air travel may be premium economy.
- 6.13. For international travel, the class of air travel is to be premium economy if available. Otherwise, the class of travel is to be economy.
- 6.14. Bookings for approved air travel are to be made through the General Manager's office.
- 6.15. For air travel that is reimbursed as Council business, councillors will not accrue points from the airline's frequent flyer program. This is considered a private benefit.

Travel expenses not paid by Council

- 6.16. Council will not pay any traffic or parking fines or administrative charges for road toll accounts.

Accommodation and meals

- 6.17. In circumstances where it would introduce undue risk for a councillor to travel to or from official business in the late evening or early morning, costs for accommodation and meals on the night before or after the meeting may be approved by the General Manager. This includes where a meeting finishes later than 9.00pm or starts earlier than 7.00am and the councillor lives more than 50 kilometres from the meeting location.
- 6.18. Council will pay for costs for accommodation and meals while councillors are undertaking approved conferences, seminars or professional development outside the Northern Rivers.
- 6.19. The daily limit for accommodation within Australia is to be consistent with the amount charged at the conference, seminar or professional development venue. If accommodation is not provided, the daily limit is to be no more than the cost for NRMA 4 Star rating or equivalent accommodation in the vicinity. The limit for meals is to be consistent with the Australian Taxation Office's Tax Determination – Reasonable Travel Allowances, as adjusted annually.
- 6.20. The daily limits for accommodation and meal expenses outside Australia are to be determined in advance by the General Manager, being mindful of Clause 6.19.
- 6.21. Councillors will not be reimbursed for alcoholic beverages.

Refreshments for Council related meetings

- 6.22. Appropriate refreshments will be available for Council meetings, Council committee meetings, councillor briefings, approved meetings and engagements, and official Council functions as approved by the General Manager.
- 6.23. As an indicative guide for the standard of refreshments to be provided at council related meetings, the General Manager must be mindful of Clause 6.19.

Conferences, seminars and professional development

- 6.24. Council is committed to ensuring its councillors are up to date with contemporary issues facing Council and the community, and local government in NSW.
- 6.25. In the first year of a new Council term, Council will provide a comprehensive induction program for all councillors which considers any guidelines issued by the Office of Local Government (OLG). The cost of the induction program will be in addition to the recurrent conference, seminar and professional development funding.
- 6.26. Approval to attend a conference, seminar or professional development is subject to a written request to the General Manager. In assessing a councillor request, the General Manager must consider factors including the:
- relevance of the topics and presenters to current Council priorities and business and the exercise of the councillor's civic duties
 - the cost in relation to the total remaining budget.
- 6.27. Council will meet the reasonable cost of registration fees, transportation and accommodation associated with attendance at a conference, seminar or professional development approved by the General Manager. Council will also meet the reasonable cost of meals when they are not included in the registration fees. Accommodation and meals costs not included in the registration fees will be subject to Clauses 6.17-6.21.
- 6.28. At least one councillor shall write or present a report on any conference, seminar or professional development attended by one or more councillors.
- 6.29. Council will set aside a total amount of \$22,000 annually in its budget, indexed annually by the rate peg percentage, to facilitate councillor attendance at conferences, seminars and professional development. This allocation is for all councillors. The General Manager will ensure that access to the budget is distributed equitably.

Expenses for spouse, partner and accompanying persons

- 6.30. Where the Mayor is required to attend a conference or seminar function on behalf of Council, and the nature of the function is such that the Mayor's spouse, partner or accompanying person could reasonably be expected to attend, Council will meet their reasonable expenses e.g. ticket, meal and direct cost of attending the function.
- 6.31. Where the Mayor requests a councillor to attend a conference or seminar function on behalf of Council in their stead, and the nature of the function is such that the councillor's spouse, partner or accompanying person could reasonably be expected to attend, Council will meet their reasonable expenses eg. ticket, meal and direct cost of attending the function.
- 6.32. For attendance at the Local Government NSW Annual Conference official conference dinner, or another relevant local government conference, a councillor's spouse, partner or accompanying person may attend and the Council will meet their reasonable expenses eg. ticket and meal. This is limited to one conference per financial year.
- 6.33. Council will meet the reasonable costs of travel and childcare at conferences, seminars and professional development for a child under 16 where a councillor is the principal carer.

Information and communications technology (ICT) expenses

- 6.34. Council will reimburse councillors for expenses associated with appropriate ICT devices and services up to a limit of \$860 per annum for each councillor. This may include mobile phone and tablet services and data, and home internet costs.
- 6.35. Reimbursements will be made only for communications devices and services used for councillors to undertake their civic duties, such as:
- receiving and reading council business papers
 - relevant phone calls and correspondence
 - diary and appointment management.
- 6.36. Councillors may seek reimbursement for applications on their mobile electronic communication device that are directly related to their duties as a councillor, within the maximum limit.

Special requirement and carer expenses

- 6.37. Council encourages wide participation and interest in civic office. It will seek to ensure Council premises and associated facilities are accessible, including provision for sight or hearing impaired councillors and those with other disabilities.
- 6.38. Transportation provisions outlined in this policy will also assist councillors who may be unable to drive a vehicle.
- 6.39. In addition to the provisions above, the General Manager may authorise the provision of reasonable additional facilities and expenses in order to allow a councillor with a disability to perform their civic duties.
- 6.40. Councillors who are the principal carer of a child or other elderly, disabled and/or sick immediate family member will be entitled to reimbursement of reasonable carer's expenses for attendance at official business, plus reasonable travel from the principal place of residence.
- 6.41. Child care expenses may be claimed for children up to and including the age of 16 years where the carer is not a relative.
- 6.42. In the event of caring for an adult person, councillors will need to provide suitable evidence to the General Manager that reimbursement is applicable. This may take the form of advice from a medical practitioner.

Home office expenses

- 6.43. Each councillor may be provided with goods or reimbursed for reasonable costs associated with the maintenance of a home office, such as minor items of consumable stationery and printer ink cartridges.

7. Insurances

- 7.1. In accordance with Section 382 of the Act, Council is insured against public liability and professional indemnity claims. Councillors are included as a named insured on this Policy.
- 7.2. Insurance protection is only provided if a claim arises out of or in connection with the councillor's performance of his or her civic duties, or exercise of his or her functions as a councillor. All insurances are subject to any limitations or conditions set out in the policies of insurance.
- 7.3. Council shall pay the insurance policy excess in respect of any claim accepted by Council's insurers, whether defended or not.
- 7.4. Appropriate travel insurances will be provided for any councillors travelling on approved interstate and overseas travel on Council business.

8. Legal assistance

- 8.1. Council may, if requested, indemnify or reimburse the reasonable legal expenses of:
 - a councillor defending an action arising from the performance in good faith of a function under the Act provided that the outcome of the legal proceedings is favourable to the councillor
 - a councillor defending an action in defamation, provided the statements complained of were made in good faith in the course of exercising a function under the Act and the outcome of the legal proceedings is favourable to the councillor
 - a councillor for proceedings before an appropriate investigative or review body, provided the subject of the proceedings arises from the performance in good faith of a function under the Act and the matter has proceeded past any initial assessment phase to a formal investigation or review and the investigative or review body makes a finding substantially favourable to the councillor
- 8.2. In the case of a code of conduct complaint made against a councillor, legal costs will only be made available where the matter has been referred by the General Manager to a conduct reviewer and the conduct reviewer has commenced a formal investigation of the matter and makes a finding substantially favourable to the councillor.
- 8.3. Legal expenses incurred in relation to proceedings arising out of the performance by a councillor of his or her functions under the Act are distinguished from expenses incurred in relation to proceedings arising merely from something that a councillor has done during his or her term in office. For example, expenses arising from an investigation as to whether a councillor acted corruptly would not be covered by this section.
- 8.4. Council will not meet the legal costs:
 - of legal proceedings initiated by a councillor under any circumstances
 - of a councillor seeking advice in respect of possible defamation, or in seeking a non-litigious remedy for possible defamation
 - for legal proceedings that do not involve a councillor performing their role as a councillor
- 8.5. Reimbursement of expenses for reasonable legal expenses must have Council approval by way of a resolution at a Council meeting prior to costs being incurred.

Part C – Facilities

9. General facilities for all councillors

Facilities

- 9.1. Council will provide the following facilities to councillors to assist them to effectively discharge their civic duties:
- a Councillor common room appropriately furnished to include access to pigeon holes and appropriate refreshments
 - iPad or equivalent device, and a personal computer, printer and modem
 - filling cabinet up to four drawers or alternative storage facilities to equivalent cost
 - at home ICT set up and maintenance services
 - access to shared car parking spaces while attending council offices on official business
 - personal protective equipment for use during site visits
 - a name badge which may be worn at official functions, indicating that the wearer holds the office of a councillor and/or mayor or deputy mayor
- 9.2. Councillors may book meeting rooms for official business in a specified council building at no cost. Rooms may be booked through a specified officer in the Mayor's office or other specified staff member.
- 9.3. The provision of facilities will be of a standard deemed by the General Manager as appropriate for the purpose.

Stationery

- 9.4. Council will provide the following stationery to councillors each year:
- Letterhead to the Mayor to be used only for correspondence associated with civic duties
 - business cards
 - Christmas or festive cards

Administrative support

- 9.5. Council will provide administrative support to councillors to assist them with their civic duties only. Administrative support may be provided by staff in the Mayor's office or by a member of Council's administrative staff as arranged by the General Manager.
- 9.6. As per Section 4, Council staff are expected to assist councillors with civic duties only, and not assist with matters of personal or political interest, including campaigning.

10. Additional facilities for the Mayor

- 10.1. Council will provide to the Mayor a maintained vehicle to a similar standard of other Council vehicles, with a fuel card. The vehicle will be supplied for business use.
- 10.2. The Mayor must keep a log book setting out the date, distance and purpose of all travel. This must include any travel for private benefit. The log book must be submitted to Council on a monthly basis.
- 10.3. The Mayoral allowance will be reduced to cover the cost of any private travel recorded in the log book, calculated on a per kilometre basis by the rate set by the Local Government (State) Award.
- 10.4. A parking space at Council's offices will be reserved for the Mayor's council-issued vehicle for use on official business.
- 10.5. Council will provide the Mayor with a furnished office incorporating a computer configured to Council's standard operating environment, telephone and meeting space.
- 10.6. Council may provide the Mayor with a mobile phone and pay for all mobile phone services and data costs.

- 10.7. In performing his or her civic duties, the Mayor will be assisted by staff providing administrative and secretarial support, as determined by the General Manager.
- 10.8. As per Section 4, staff in the Mayor's office are expected to work on official business only, and not for matters of personal or political interest, including campaigning.

Part D – Processes

11. Approval, payment and reimbursement arrangements

- 11.1. Expenses should only be incurred by councillors in accordance with the provisions of this policy.
- 11.2. Approval for incurring expenses, or for the reimbursement of such expenses, should be obtained before the expense is incurred.
- 11.3. Up to the maximum limits specified in this policy, approval for the following may be sought after the expense is incurred:
- local travel relating to the conduct of official business
 - carer costs
 - ICT expenditure \$860
- 11.4. Final approval for payments made under this policy will be granted by the General Manager

Direct payment

- 11.5. Council may approve and directly pay expenses. Requests for direct payment must be submitted to the General Manager for assessment against this policy using the prescribed form, with sufficient information and time to allow for the claim to be assessed and processed.

Reimbursement

- 11.6. All claims for reimbursement of expenses incurred must be made on the prescribed form, supported by appropriate receipts and/or tax invoices and be submitted to the General Manager

Advance payment

- 11.7. Council may pay a cash advance for councillors attending approved conferences, seminars or professional development.
- 11.8. Requests for advance payment must be submitted to the General Manager for assessment against this policy using the prescribed form with sufficient information and time to allow for the claim to be assessed and processed.
- 11.9. Councillors must fully reconcile all expenses against the cost of the advance within one month of incurring the cost and/or returning home. This includes providing to council:
- a full reconciliation of all expenses including appropriate receipts and/or tax invoices
 - reimbursement of any amount of the advance payment not spent in attending to official business or professional development

Notification

- 11.10. If a claim is approved, Council will make payment directly or reimburse the councillor through accounts payable.
- 11.11. If a claim is refused, Council will inform the councillor in writing that the claim has been refused and the reason for the refusal.

Reimbursement to council

- 11.12. If Council has incurred an expense on behalf of a councillor that exceeds a maximum limit, exceeds reasonable incidental private use or is not provided for in this policy:
- Council will invoice the councillor for the expense
 - the councillor will reimburse Council for that expense within 14 days of the invoice date

- 11.13. If the councillor cannot reimburse Council within 14 days of the invoice date, they are to submit a written explanation to the General Manager. The General Manager may elect to deduct the amount from the councillor's allowance.

Timeframe for reimbursement

- 11.14. Unless otherwise specified in this policy, councillors must provide all claims for reimbursement within six months of an expense being incurred and by 31 July each year for the preceding financial year. Claims made after this time cannot be approved.

12. Disputes

- 12.1. If a councillor disputes a determination under this policy, the councillor should discuss the matter with the General Manager.
- 12.2. If the councillor and the General Manager cannot resolve the dispute, the councillor may submit a notice of motion or the General Manager report to a Council meeting seeking to have the dispute resolved.

13. Return or retention of facilities

- 13.1. All unexpended facilities or equipment supplied under this policy are to be relinquished immediately upon a councillor or Mayor ceasing to hold office or at the cessation of their civic duties.
- 13.2. Should a councillor desire to keep any equipment allocated by Council, then this policy enables the councillor to make application to the General Manager to purchase any such equipment. The General Manager will determine an agreed fair market price or written down value for the item of equipment.
- 13.3. The prices for all equipment purchased by councillors under Clause 13.2 will be recorded in Council's annual report.

14. Publication

- 14.1. This policy will be published on Council's website.

15. Reporting

- 15.1. Council will report on the provision of expenses and facilities to councillors as required in the Act and Regulations.
- 15.2. Detailed reports on the provision of expenses and facilities to councillors will be publicly tabled at a Council meeting every six months and published in full on Council's website. These reports will include expenditure summarised for each councillor.

16. Auditing

- 16.1. The operation of this policy, including claims made under the policy, will be included in Council's audit program and an audit undertaken at least every two years.

17. Breaches

- 17.1. Suspected breaches of this policy are to be reported to the General Manager.
- 17.2. Alleged breaches of this policy shall be dealt with by following the processes outlined for breaches of the Code of Conduct, as detailed in the Code and in the Procedures for the Administration of the Code.

18. Review

- 18.1. In accordance with section 252, *Local Government Act 1993*, the policy must be adopted by the Council within twelve months of the commencement of a new council term.

PART E – Appendices

Appendix I: Related legislation, guidance and policies

Relevant legislation and guidance:

- *Local Government Act 1993*, Sections 252 and 253
- *Local Government (General) Regulation 2005*, Clauses 217 and 403
- Guidelines for the payment of expenses and the provision of facilities for Mayors and Councillors in NSW, 2009
- Local Government Circular 09-36 Guidelines for Payment of Expenses and Facilities
- Local Government Circular 05-08 legal assistance for Councillors and Council Employees.

Related Council policies:

- Code of Conduct

Appendix II: Definitions

The following definitions apply throughout this policy.

Term	Definition
accompanying person	Means a spouse, partner or de facto or other person who has a close personal relationship with or provides carer support to a Councillor
appropriate refreshments	Means food and beverages, provided by Council to support Councillors undertaking official business
Act	Means the <i>Local Government Act 1993</i> (NSW)
clause	Unless stated otherwise, a reference to a clause is a reference to a clause of this policy
Code of Conduct	Means the Code of Conduct adopted by Council or the Model Code if none is adopted
Councillor	Means a person elected or appointed to civic office as a member of the governing body of Council who is not suspended, including the Mayor
General Manager	Means the General Manager of Council and includes their delegate or authorised representative
incidental personal use	Means use that is infrequent and brief and use that does not breach this policy or the Code of Conduct
maximum limit	Means the maximum limit for an expense or facility provided in the text and summarised in Appendix 1
NSW	New South Wales
official business	Means functions that the Mayor or Councillors are required or invited to attend to fulfil their legislated role and responsibilities for Council or result in a direct benefit for Council and/or for the local government area, and includes: • meetings of Council and committees of the whole • meetings of committees facilitated by Council • civic receptions hosted or sponsored by Council • meetings, functions, workshops and other events to which attendance by a Councillor has been requested or approved by Council
professional development	Means a seminar, conference, training course or other development opportunity relevant to the role of a Councillor or the Mayor
Regulation	Means the <i>Local Government (General) Regulation 2005</i> (NSW)
Year	Means the financial year, that is the 12 month period commencing on 1 July each year

Report

Subject	Draft Councillor and Staff Interaction Policy
TRIM Record No	BP22/284:EF19/493-4
Prepared by	Governance & Customer Service Manager
Reason	Update of policy following release of Model Councillor and Staff Interaction Policy from Office Local Government

Executive Summary

The Office of Local Government (OLG) is developing a suite of best practice governance policies. These model policies use a “best of breed” approach to existing council policies and reflect what the OLG see as best practice for councils.

The OLG has issued a best practice Model Councillor and Staff Interaction Policy. If adopted the policy will compliment Council’s adopted Code of Conduct. In December 2018 the OLG released a new Model Code of Meeting Practice.

Recommendation

That Council:

1. adopt the draft Councillor and Staff Interaction Policy.
2. Policy 1.2.24 Councillor/Staff Communication Policy and Councillor/Staff Communication Guidelines be revoked.

Background

Council adopted the Councillor/Staff Communication Policy and Councillor/Staff Communication Guidelines in February 2015. They have not been reviewed since adopted.

The OLG has now finalised and issued a Model Councillor and Staff Interaction Policy. The model policy is not mandatory however it has been developed following two rounds of consultation with the local government sector and represent a “best practice” approach. The model policy is also informed by advice provided by key NSW Government agencies including:

- the Independent Commission Against Corruption
- the Information and Privacy Commission
- the State Archives and Records Authority.

Adoption of the policy is recommended as there is no reason why Council should not be working with best practice policies that have been developed and endorsed by the OLG.

Attachment/s

1. [Draft LCC Councillor and Staff Interaction Policy](#)



Lismore City Council

COUNCILLOR AND STAFF INTERACTION POLICY

Date of Adoption:

[illegible]

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DRAFT

1 - INTRODUCTION

- 1.1 *The Councillor and Staff Interaction Policy* (the Policy) provides a framework for councillors when exercising their civic functions by specifically addressing their ability to interact with, and receive advice from, authorised staff.
- 1.2 The Policy complements and should be read in conjunction with **Lismore City Council's Code of Conduct** (the Code of Conduct).
- 1.3 The aim of the Policy is to facilitate a positive working relationship between councillors, as the community's elected representatives, and staff, who are employed to administer the operations of the Council. The Policy provides direction on interactions between councillors and staff to assist both parties in carrying out their day-to-day duties professionally, ethically and respectfully.
- 1.4 It is important to have an effective working relationship that recognises the important but differing contribution both parties bring to their complementary roles.

2 - APPLICATION

- 2.1 This Policy applies to all councillors and council staff.
- 2.2 This Policy applies to all interactions between councillors and staff, whether face-to-face, online (including social media and virtual meeting platforms), by phone, text message or in writing.
- 2.3 This Policy applies whenever interactions between councillors and staff occur, including inside or outside of work hours, and at both council and non-council venues and events.
- 2.4 This Policy does not confer any delegated authority upon any person. All delegations to staff are made by the General Manager.
- 2.5 The Code of Conduct provides that council officials must not conduct themselves in a manner that is contrary to the Council's policies. A breach of this Policy will be a breach of the Code of Conduct.

3 - POLICY OBJECTIVES

- 3.1 The objectives of the Policy are to:
 - a) establish positive, effective and professional working relationships between councillors and staff defined by mutual respect and courtesy
 - b) enable councillors and staff to work together appropriately and effectively to support each other in their respective roles
 - c) ensure that councillors receive advice in an orderly, courteous and appropriate manner to assist them in the performance of their civic duties
 - d) ensure councillors have adequate access to information to exercise their statutory roles
 - e) provide direction on, and guide councillor interactions with, staff for both obtaining information and in general situations

- f) maintain transparent decision making and good governance arrangements
- g) ensure the reputation of Council is enhanced by councillors and staff interacting consistently, professionally and positively in their day-to-day duties
- h) provide a clear and consistent framework through which breaches of the Policy will be managed in accordance with the Code of Conduct.

4 - PRINCIPLES, ROLES AND RESPONSIBILITIES

- 4.1 Several factors contribute to a good relationship between councillors and staff. These include goodwill, understanding of roles, communication, protocols, and a good understanding of legislative requirements.
- 4.2 The Council's governing body and its administration (being staff within the organisation) must have a clear and sophisticated understanding of their different roles, and the fact that these operate within a hierarchy. The administration is accountable to the General Manager, who in turn, is accountable to the Council's governing body.
- 4.3 Section 232 of the *Local Government Act 1993* (the LGA) states that the role of a councillor is as follows:
 - a) to be an active and contributing member of the governing body
 - b) to make considered and well-informed decisions as a member of the governing body
 - c) to participate in the development of the integrated planning and reporting framework
 - d) to represent the collective interests of residents, ratepayers and the local community
 - e) to facilitate communication between the local community and the governing body
 - f) to uphold and represent accurately the policies and decisions of the governing body
 - g) to make all reasonable efforts to acquire and maintain the skills necessary to perform the role of a councillor.
- 4.4 The administration's role is to advise the governing body, implement Council's decisions and to oversee service delivery.
- 4.5 It is beneficial if the administration recognises the complex political environments in which elected members operate and acknowledge that they work within a system that is based on democratic governance. Councillors similarly need to understand that it is a highly complex task to prepare information and provide quality advice on the very wide range of issues that Council operations cover.
- 4.6 Council commits to the following principles to guide interactions between councillors and staff:

<u>Principle</u>	<u>Achieved by</u>
Equitable and consistent	Ensuring appropriate, consistent and equitable access to information for all councillors within established service levels
Considerate and respectful	Councillors and staff working supportively together in the interests of the whole community, based on mutual respect and consideration of their respective positions
Ethical, open and transparent	Ensuring that interactions between councillors and staff are ethical, open, transparent, honest and display the highest standards of professional conduct
Fit for purpose	Ensuring that the provision of equipment and information to councillors is done in a way that is suitable, practical and of an appropriate size, scale and cost for a client group of eleven people.
Accountable and measurable	Providing support to councillors in the performance of their role in a way that can be measured, reviewed and improved based on qualitative and quantitative data

- 4.7 Councillors are members of the Council's governing body, which is responsible for directing and controlling the affairs of the Council in accordance with the LGA. Councillors need to accept that:
- a) responses to requests for information from councillors may take time and consultation to prepare and be approved prior to responding
 - b) staff are not accountable to them individually
 - c) they must not direct staff except by giving appropriate direction to the General Manager by way of a council or committee resolution, or by the mayor exercising their functions under section 226 of the LGA
 - d) they must not, in any public or private forum, direct or influence, or attempt to direct or influence, a member of staff in the exercise of their functions
 - e) they must not contact a member of staff on council-related business unless in accordance with this Policy
 - f) they must not use their position to attempt to receive favourable treatment for themselves or others.
- 4.8 The General Manager is responsible for the efficient and effective day-to-day operation of the Council and for ensuring that the lawful decisions of the Council are implemented without undue delay. Council staff need to understand:
- a) they are not accountable to individual councillors and do not take direction from them. They are accountable to the General Manager, who is in turn accountable to the Council's governing body
 - b) they should not provide advice to councillors unless it has been approved by the General Manager or a staff member with a delegation to approve advice to councillors

- c) they must carry out reasonable and lawful directions given by any person having the authority to give such directions in an efficient and effective manner
- d) they must ensure that participation in political activities outside the service of the Council does not interfere with the performance of their official duties
- e) they must provide full and timely information to councillors sufficient to enable them to exercise their civic functions in accordance with this Policy.

5 - THE COUNCILLOR REQUESTS SYSTEM

- 5.1 Councillors have a right to request information provided it is relevant to councillor's exercise of their civic functions. This right does not extend to matters about which a councillor is merely curious.
- 5.2 Councillors do not have a right to request information about matters that they are prevented from participating in decision-making on because of a conflict of interest, unless the information is otherwise publicly available.
- 5.3 The General Manager may identify Council support staff, **Executive Assistant – General Manager and Mayor & Councillors** under this Policy for the management of requests from councillors.
- 5.4 Councillors can use the councillor requests system to:
 - a) request information or ask questions that relate to the strategic position, performance or operation of the Council
 - b) bring concerns that have been raised by members of the public to the attention of staff
 - c) request ICT or other support from the Council administration
 - d) **request that a staff member be present at a meeting (other than a meeting of the council) for the purpose of providing advice to the meeting.**
- 5.5 Councillors must, to the best of their knowledge, be specific about what information they are requesting, and make their requests respectfully. Where a councillor's request lacks specificity, the General Manager or staff member authorised to manage the matter is entitled to ask the councillor to clarify their request and the reason(s) why they are seeking the information.
- 5.6 Staff must make every reasonable effort to assist councillors with their requests and do so in a respectful manner.
- 5.7 The General Manager or the staff member authorised to manage a councillor request will provide a response within **5 working days**. Where a response cannot be provided within that timeframe, the councillor will be advised, and the information will be provided as soon as practicable.

5.8 Requests under clause 5.4 (d) must be made **5 working days** before the meeting. The General Manager, or members of staff that are listed at Schedule 1 of this Policy, are responsible for determining:

- a) whether a staff member can attend the meeting; and
- b) which staff member will attend the meeting.

Staff members who attend such meetings must be appropriately senior and be subject matter experts on the issues to be discussed at the meeting.

5.9 Councillors are required to treat all information provided by staff appropriately and to observe any confidentiality requirements.

5.10 Staff will inform councillors of any confidentiality requirements for information they provide so councillors can handle the information appropriately.

5.11 Where a councillor is unsure of confidentiality requirements, they should contact the General Manager, or the staff member authorised to manage their request.

5.12 The General Manager may refuse access to information requested by a councillor if:

- a) the information is not necessary for the performance of the councillor's civic functions, or
- b) if responding to the request would, in the General Manager's opinion, result in an unreasonable diversion of staff time and resources, or
- c) the councillor has previously declared a conflict of interest in the matter and removed themselves from decision-making on it, or
- d) the General Manager is prevented by law from disclosing the information.

5.13 Where the General Manager refuses to provide information requested by a councillor, they must act reasonably. The General Manager must advise a councillor in writing of their reasons for refusing access to the information requested.

5.14 Where a councillor's request for information is refused by the General Manager on the grounds referred to under clause 5.12 (a) or (b), the councillor may instead request the information through a resolution of the council by way of a notice of motion. This clause does not apply where the General Manager refuses a councillor's request for information under clause 5.12 (c) or (d).

5.15 Nothing in clauses 5.12, 5.13, and 5.14 prevents a councillor from requesting the information in accordance with the *Government Information (Public Access) Act 2009*.

5.16 Where a councillor persistently makes requests for information which, in the General Manager's opinion, result in a significant and unreasonable diversion of staff time and resources the council may, on the advice of the General Manager, resolve to limit the number of requests the councillor may make.

5.17 Councillor requests are state records and must be managed in accordance with the *State Records Act 1998*.

5.18 A report will be provided to **Council quarterly** regarding the performance and efficiency of the councillor requests system against established key performance indicators.

6 - ACCESS TO COUNCIL STAFF

- 6.1 Councillors may directly contact members of staff that are listed in Schedule 1 of this Policy. The General Manager may amend this list at any time and will advise councillors promptly of any changes.
- 6.2 Councillors can contact staff listed in Schedule 1 about matters that relate to the staff member's area of responsibility.
- 6.3 Councillors should as far as practicable, only contact staff during normal business hours.
- 6.4 If councillors would like to contact a member of staff not listed in Schedule 1, they must receive permission from the General Manager.
- 6.5 If a councillor is unsure which authorised staff member can help with their enquiry, they can contact the General Manager or Executive Assistant – General Manager and Mayor & Councillors who will provide advice about which authorised staff member to contact.
- 6.6 The General Manager or a member of the Council's executive leadership team may direct any staff member to contact councillors to provide specific information or clarification relating to a specific matter.
- 6.7 A councillor or member of staff must not take advantage of their official position to improperly influence other councillors or members of staff in the performance of their civic or professional duties for the purposes of securing a private benefit for themselves or for another person. Such conduct should be immediately reported to the General Manager or Mayor in the first instance, or alternatively to the Office of Local Government, NSW Ombudsman, or the NSW Independent Commission Against Corruption.

7 - COUNCILLOR ACCESS TO COUNCIL BUILDINGS

- 7.1 Councillors are entitled to have access to the council chamber, committee room, mayor's office (subject to availability), councillors' rooms, and public areas of Council's buildings during normal business hours for meetings. Councillors needing access to these facilities at other times must obtain approval from the General Manager.
- 7.2 Councillors must not enter staff-only areas of Council buildings without the approval of the General Manager.

8 - APPROPRIATE AND INAPPROPRIATE INTERACTIONS

- 8.1 Examples of appropriate interactions between councillors and staff include, but are not limited to, the following:
 - a) councillors and council staff are courteous and display a positive and professional attitude towards one another
 - b) council staff ensure that information necessary for councillors to exercise their civic functions is made equally available to all councillors, in accordance with this Policy and any other relevant Council policies
 - c) council staff record the advice they give to councillors in the same way they would if it was provided to members of the public

- d) council staff, including Council's executive team members, document councillor requests via the councillor requests system
 - e) council meetings and councillor briefings are used to establish positive working relationships and help councillors to gain an understanding of the complex issues related to their civic duties
 - f) councillors and council staff feel supported when seeking and providing clarification about council related business
 - g) councillors forward requests through the councillor requests system and staff respond in accordance with the timeframes stipulated in this Policy
- 8.2 Examples of inappropriate interactions between councillors and staff include, but are not limited to, the following:
- a) councillors and council staff conducting themselves in a manner which:
 - i) is contrary to their duties under the *Work Health and Safety Act 2011* and their responsibilities under any policies or procedures adopted by the Council to ensure workplace health and safety
 - ii) constitutes harassment and/or bullying within the meaning of the Code of Conduct, or is unlawfully discriminatory
 - b) councillors approaching staff and staff organisations to discuss individual or operational staff matters (other than matters relating to broader workforce policy such as, but not limited to, organisational restructures or outsourcing decisions), grievances, workplace investigations and disciplinary matters
 - c) staff approaching councillors to discuss individual or operational staff matters (other than matters relating to broader workforce policy such as, but not limited to, organisational restructures or outsourcing decisions), grievances, workplace investigations and disciplinary matters
 - d) subject to clause 5.12, staff refusing to give information that is available to other councillors to a particular councillor
 - e) councillors who have lodged an application with the council, discussing the matter with staff in staff-only areas of the council
 - f) councillors being overbearing or threatening to staff
 - g) staff being overbearing or threatening to councillors
 - h) councillors making personal attacks on staff or engaging in conduct towards staff that would be contrary to the general conduct provisions in Part 3 of the Code of Conduct in public forums including social media
 - i) councillors directing or pressuring staff in the performance of their work, or recommendations they should make
 - j) staff providing ad hoc advice to councillors without recording or documenting the interaction as they would if the advice was provided to a member of the community

- 8.3 Where a councillor engages in conduct that, in the opinion of the General Manager, puts the health, safety or welfare of staff at risk, the General Manager may restrict the councillor's access to staff.
- 8.4 Any concerns relating to the conduct of staff under this Policy should be raised with the General Manager.

9 - COMPLAINTS

- 9.1 Complaints about a breach of this policy should be made to the General Manager (if the complaint is about a councillor or member of council staff), or the Mayor (if the complaint is about the General Manager).
- 9.2 Clause 9.1 does not operate to prevent matters being reported to OLG, the NSW Ombudsman, the NSW Independent Commission Against Corruption or any other external agency.

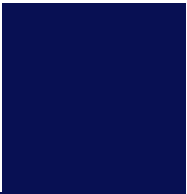
DRAFT

Schedule 1 – Authorised staff contacts for councillors

1. Clause 6.1 of this Policy provides that councillors may directly contact members of staff that are listed below. The General Manager may amend this list at any time.
2. Councillors can contact staff listed below about matters that relate to the staff member's area of responsibility.
3. Councillors should as far as practicable, only contact staff during normal business hours.
4. If councillors would like to contact a member of staff not listed below, they must receive permission from the General Manager or their delegate.
5. If a councillor is unsure which authorised staff member can help with their enquiry, they can contact the General Manager or **Executive Assistant – General Manager and Mayor & Councillors** who will provide advice about which authorised staff member to contact.
6. In some instances, the General Manager or a member of the Council's executive leadership team may direct a council staff member to contact councillors to provide specific information or clarification relating to a specific matter.

Authorised staff members name	Position
<i>Eber Butron</i>	<i>Director Partnerships, Planning and Engagement</i>
<i>Kate Webber</i>	<i>Director Corporate Services</i>
<i>Peter Jeuken</i>	<i>Director Infrastructure Services</i>
<i>Tony Duffy</i>	<i>Manager Liveable & Active Communities</i>
<i>Chris Watts</i>	<i>Manager Built Environment</i>
<i>Lucy Kinsley</i>	<i>Acting Manager RTRL</i>
<i>Luke Shaw</i>	<i>Manager Technology and Innovation</i>
<i>Rino Santin</i>	<i>Manager Investment & Commerce</i>
<i>Steve Klaassen</i>	<i>Acting Manager People & Safety</i>
<i>David Hanna</i>	<i>Manager Commercial Services (Resource Recovery)</i>
<i>Ashley Wing</i>	<i>Acting Manager Commercial Services</i>
<i>Darren Patch</i>	<i>Manager Civic Services</i>
<i>Jonathan Hook</i>	<i>Manager Water & Wastewater</i>
<i>Scott Turner</i>	<i>Manager Assets</i>
<i>John Hartley</i>	<i>Manager Finance</i>
<i>Christine Cotterill</i>	<i>Governance & Customer Service Manager</i>
<i>Peter Weekes</i>	<i>Media & Community Relations Coordinator</i>
<i>Bronwyn Mitchell</i>	<i>Executive Assistant – General Manager and Mayor & Councillors</i>

Committee Recommendations



Committee Recommendation

Traffic Advisory Committee Minutes - Meeting of 13 April 2022

Recommendation

That the minutes be received and adopted and the recommendations contained therein be adopted.

Attachment/s

1. [↓](#) Traffic Advisory Committee Minutes - Meeting of 13 April 2022

Traffic Advisory Committee Minutes 13 April 2022

MINUTES OF THE TRAFFIC ADVISORY COMMITTEE HELD IN COUNCIL CHAMBERS ON WEDNESDAY, 13 APRIL 2022 AT 10.15AM

Please note: These minutes are subject to confirmation at the next Council meeting.

Present

Cr Jeri Hall (Chairperson), Caleisse Dunston (Transport for NSW), Elisa Thompson (on behalf of Janelle Saffin, MP) and Sgt Clint Williams (Lismore Police)

In Attendance

Cr Big Rob, Greg Aitken (Transport for NSW), Barry Goodwin (Design Services Engineer) and Maddison Spencer (minutes).

Apologies

Apologies for non-attendance were received on behalf of Janelle Saffin, MP (Member for Lismore).

Confirmation of Minutes

- TAC31/22 The Committee was advised that the Traffic Advisory Committee minutes of:
- 24 November 2021 and 19 January 2022 were received and adopted by Council at Council's ordinary meeting (continuation) on 16 February 2022.
 - 16 February 2022 were received and adopted by Council at its ordinary meeting of 22 March 2022 with the exclusion of item TAC20/22 .

Disclosure of Interest

Nil.

Part 'A' – Committee Recommendations

4.4 Request to Extend Bus Zone Time - Walker Street, Clunes

A request has been received from a local bus company to extend the existing bus zone times at the Clunes School Interchange.

A request has been received from a representative from Beaumont Buses and on behalf of Bulzomi's bus. The request is to extend the existing bus zone times for the bus zone located in Walker Street at the School Interchange for the afternoons until 4.30pm (currently 4.00pm) to provide a safer turning manoeuvre in Main Street.

The writer advises that if a vehicle is parked in the bus zone, it is difficult to undertake the right turn back into Main Street.

The school interchange is in Walker Street, with access to the Clunes Primary School off James Gibson Road.

A geometric review of the matter supports the writer's concerns by the use of Computer Aided Vehicle movements.

Traffic Advisory Committee Minutes 13 April 2022

TAC32/22 **RECOMMENDED** that:

1. Council support the request to extend the existing bus zone times at the Clunes School Interchange for afternoons until 4.30pm.
2. A request be sent to Council's Civic Services Section to update existing signage to extend bus zone times until 4.30pm.
3. The writer be advised of the outcome.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Elisa Thompson.
Voting against: Nil.

4.5 Traffic Safety Issues - Boatharbour Road, Boatharbour

A request has been received from a resident of Boatharbour Road in relation to traffic safety issues at the intersection with Cameron Road.

The intersection is a Y intersection with a Give Way sign managing vehicles heading north along Cameron Road with Boatharbour Road being the through road.

(Note: the existing line marking does not meet standard pavement markings for a Give Way controlled intersection.)

The intersection is located on a crest with non-compliant sight distance on the Boatharbour Road approaches.

The existing speed zones are 80km per hour for both roads approaching the intersection.

There are several subdivisions to the south of the intersection when fully developed could yield a daily increase of several hundred vehicle movements.

TAC33/22 **RECOMMENDED** that:

1. Council's Design Services team prepare concept plans to realign the existing intersection of Cameron and Boatharbour Roads and investigate installation of concealed driveway signage along Boatharbour Road.
2. A request be sent to Council's Civic Services Section to undertake installation of standard pavement markings for the Give Way controlled intersection of Cameron and Boatharbour Roads.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Elisa Thompson.
Voting against: Nil.

4.6 Request for Barrier Linemarking - Fredericks Road, Caniaba

A request from a bus driver from a local company for the installation of a double barrier line on a curve along Fredericks Road, Caniaba.

A request has been received from a local Bus Company for the installation of double barrier lines on a curve 100m north of Caniaba Road along Fredericks Road as a safety device due to several reported near misses with vehicles crossing onto the incorrect side of the road to negotiate the curve.

The curve is located within an 80kph speed zone transitioning to 60kph for the Caniaba Village.

It is the only access to several rural residential allotments in the Caniaba Village in addition to approximately 80 rural properties and businesses that access this road.

There have been two (2) recorded accidents at the site, one on the corner in question and one from the side access off Rifle Range Road.

Traffic Advisory Committee Minutes 13 April 2022

TAC34/22 **RECOMMENDED** that Council's Design Services Team provide an installation plan to the Civic Services Section for double barrier lines to be installed on a curve 100m north of Caniaba Road along Fredericks Road.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Elisa Thompson.
Voting against: Nil.

Items for Discussion

5.2 Request for Change to Parking Restrictions Opposite Police Station, Molesworth Street, Lismore

Request received from NSW Police for parking spaces opposite 40 Molesworth Street, to be converted to unrestricted parking to allow NSW Police staff long term parking for safety reasons.

This matter has been partly raised previously in conjunction with a request considered by the Committee and Council in October 2020 (refer TAC67/20). NSW Police has requested reconsideration of their proposal for the area opposite 40 Molesworth Street to be dedicated for Police and Emergency Services staff.

The previous decision was dependent upon a CBD Traffic Study being conducted, which has not been completed to date. Feedback received from Council's Compliance Team recommends the area be signposted as 'No Stopping – Police & Authorised Vehicles Exempt' and it be self-regulated by NSW Police. As a self-regulated zone Council would not be required to have the operational impacts of incorporating changing vehicle number plates into the License Plate Recognition (LPR) System.

The matter was raised at Council's ordinary meeting of 22 March 2022 with recommendation TAC20/22 not being endorsed and therefore returned to the Traffic Advisory Committee for further review:

RECOMMENDED that:

1. The car parking area located opposite 40 Molesworth Street be signposted as 'No Stopping – Police & Authorised Vehicles Exempt, with the area to be self-regulated by NSW Police.
2. Council's Design Services Team arrange for signage installation by Civic Services staff.

Note: the recommendation should have been amended to read:

"No Stopping - Authorised Vehicles Only"

TAC35/22 **RECOMMENDED** that:

1. Council permit unrestricted parking of vehicles owned by NSW Police Force, Corrective Services NSW Staff and NSW Court Staff in the Lismore Legal Precinct Parking Area, where the vehicle number plate details of those vehicles to be permitted are provided to Council by the NSW Police Force, Corrective Services NSW Staff and NSW Court Staff, with the details of vehicles to be permitted to be updated from time to time as required, for inclusion in Council's number plate recognition system to reduce the chance of permitted vehicles receiving parking infringement notices for parking too long while their owners are working.
2. Council establish a Lismore Legal Precinct Parking Area, comprising all road and parking areas bordered by the north side of Woodlark Street, the south side of Orion Street, spanning from Molesworth Street to Keen Street in Lismore, where permitted vehicles can park unrestricted.

Voting for: Councillor Jeri Hall, Caleisse Dunston and Elisa Thompson.
Voting against: Nil.

Traffic Advisory Committee Minutes 13 April 2022

Part 'B' – Determined by Committee

4.1 Request for No Stopping Zone - 752 Ballina Road, Goonellabah

A request has been received from a resident of Ballina Road (B60), Goonellabah requesting a No Stopping zone be installed in the vicinity of No 752.

The writer has claimed that vehicles are parking across their driveway, creating safety issues in addition to vehicles damaging the unsealed shoulder in this area.

The writer also claims that motorists park in this area to access the service station across the road for goods and take away items. They have provided site photos where the gravel section has deteriorated and holds water due to the parking of vehicles.

TAC36/22 **AGREED** that:

1. The writer be advised Council does not support the request for installation of a No Stopping zone within the vicinity of 752 Ballina Road, Goonellabah.
2. A request be sent to Council's Civic Services Section to contact Transport for NSW in relation to a suitable treatment for the area in the vicinity of 752 Ballina Road, Goonellabah.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Elisa Thompson.
Voting against: Nil.

4.2 Request for Signage - Safety for Pedestrians - Allen Street, Girards Hill

A request has been received for traffic calming signage in Allen Street due to vehicle speeds observed in the street creating safety issues for pedestrians.

A request for "Slow Down – Children Playing Sign" has been recommended.

Allen Street is a local access road under Council's road hierarchy and connects with Parkes Street to the north. It is a No Through Road which provides access for approximately 16 residences.

Council has in the past installed signage to alert drivers of elderly pedestrians potentially within the area and for drivers to be aware.

TAC37/22 **AGREED** that the writer be advised Council does not support the request for installation of "Slow Down – Children Playing" sign at Allen Street, Girards Hill.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Elisa Thompson.
Voting against: Nil.

4.3 Traffic Safety Issues - Conte Street, East Lismore

A request has been received from a resident of Conte Street requesting traffic calming devices be installed to calm traffic speeds near their residence.

The writer has requested that a speed hump be installed near a Koala sign at the northern end, claiming vehicles travel fast past their residence.

Conte Street provides access for local residents and visitors. It is assumed that there is no bus service provided.

The disadvantages of road humps include:

- Traffic noise levels may increase just before and after the road humps due to braking, acceleration and the vertical displacement of vehicles.

Traffic Advisory Committee Minutes 13 April 2022

- Discomfort for vehicle passengers and cyclists.
- They may adversely affect emergency and commercial vehicles.
- They can impact on passenger comfort when used on bus routes.

The installation of speed humps will also include loss of onstreet parking in the vicinity of the speed hump and generally residents do not like the loss of parking adjacent to their residence.

TAC38/22 **AGREED** that the writer be advised Council does not support the request for installation of traffic calming devices at Conte Street, East Lismore (near the existing Koala sign).

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Elisa Thompson.
Voting against: Nil.

4.7 Request for Larkin Lane (East), Lismore to be Converted to a Shared zone

Request received from Council's Community Recreation Planner for consideration for Larkin Lane Central Business District (CBD) to be converted to a shared zone.

Council staff are currently reviewing the Lismore area and surrounding villages for the potential opportunity to increase shared paths and on-street and off-street cycle lanes.

Larkin Lane is a two way local access road under Council's road hierarchy and provides connectivity between Dawson Street (HW62) and Keen Street within the CBD. The road is a nominal 5.0m wide with some bays provided for on-street parking on the northern side of Larkin Lane and no stopping on the southern side between Keen Street and east to King Street.

Note: Transport for NSW is the approving authority of Shared zones.

TAC39/22 **AGREED** that:

1. The request for Larkin Lane (East), Lismore to be converted to a Shared zone has been noted and discussed by the Committee.
2. The Committee supports the request in principle, pending a site inspection and review of the concept plan.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Elisa Thompson.
Voting against: Nil.

Items for Discussion

5.1 Pedestrian Safety & Traffic Issues - Bangalow Road, Clunes

Council and Transport for NSW have received several reports of traffic safety concerns at the northern end of Main Street (B62), Clunes.

Several requests have been received by Council and Transport for NSW from Clunes residents about safety concerns at the northern end of Clunes which includes a pedestrian refuge, bus pick up zone and also customer parking area for a new take away coffee shop (old nursery).

The coffee shop property is located within the Byron Shire LGA where approval for a coffee shop is managed by that Council.

With the introduction of additional motorists accessing the pull off area just south of the pedestrian refuge to purchase take away beverages, this has created traffic safety issues at peak times with the bus pick up area.

Traffic Advisory Committee Minutes 13 April 2022

Transport for NSW has been in contact with the shop owner and a site inspection was agreed by the Committee. Council staff will provide site images for the Committee for further discussion.

TAC40/22 **AGREED** that:

1. Further investigation and consultation be undertaken between Council, Buslines, Transport for NSW and Byron Shire Council regarding the appropriate treatment of traffic safety concerns.
2. The Committee defer the matter to a future meeting pending further investigations and a site inspection.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Elisa Thompson.

Voting against: Nil.

5.3 Traffic Guidance Scheme - Anzac Day

A request has been received from the organisers of the Anzac Day Celebrations to discuss the approved Traffic Guidance Scheme following recent flood events in the Lismore Central Business District.

A representative from the organising committee raised concerns with Council staff in relation to implementing the original approved Traffic Guidance Scheme (TAC23/22) due to lack of heavy vehicles to meet an approved Hostile Vehicle event situation.

Following further consultation with Council's Civic Services Section, the concerns were resolved and the approved TGS is able to be implemented.

TAC41/22 **AGREED** that the Anzac Day organising committee be advised the original approved Traffic Guidance Scheme (TAC23/22) be implemented.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Elisa Thompson.

Voting against: Nil.

5.4 Lismore Benefit Concert – Lismore Showgrounds

A late item was received from Council's Event's Officer regarding use of previously approved Traffic Management Plan for events at the Lismore Showgrounds.

Lismore has gone through two of Australia's worst Natural Disasters over February and March 2022. The Lismore Benefit Concert is proposed for Sunday, 15 May 2022 from 12pm to 9.30pm. It will be an event to bring the Lismore community together to help them heal and share their stories.

A Traffic Management Plan (TMP) was previously approved for major events held at the Lismore Showground - *reference TAC59/20 to Council's Design Services Plan, 7083 signed 4/11/2020.*

TAC42/22 **AGREED** that the Traffic Management Plan previously approved by TAC59/20 be implemented for the Lismore Benefit Concert held at the Lismore Showground on 15 May 2022.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Elisa Thompson.

Voting against: Nil.

Traffic Advisory Committee Minutes 13 April 2022

5.5 Speeding Vehicles – Avondale Avenue, East Lismore

A late item was received from Cr Cook regarding speeding vehicles along Avondale Avenue, East Lismore.

TAC43/22 **AGREED** that Council's Design Services team install traffic counters along Avondale Avenue, East Lismore and results be tabled at a future meeting.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Elisa Thompson.
Voting against: Nil.

5.6 Federal Stimulus Submissions

Federal Stimulus submissions received by Transport for NSW from Council's Design Services Engineer.

Transport for NSW acknowledged the high quality and amount of work provided in submissions prepared by Barry Goodwin and the Design Services team.

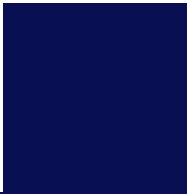
TAC44/22 **AGREED** that Barry Goodwin be congratulated on his efforts.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Elisa Thompson.
Voting against: Nil.

Closure

This concluded the business and the meeting terminated at 12.12pm.

Documents for Signing and Sealing



Document for Signing and Sealing

The following documents have been prepared in accordance with previous resolutions of the Council and/or the provisions of the *Local Government Act 1993* and other relevant statutes.

The report does not recommend the Council seal be affixed to documents inconsistent with:

- a) Council Corporate Procedure 1.1.36, which purpose is to limit use of the Council seal to documents required by law to be signed under seal; and
- b) The General Manager's delegations to grant leases and licenses at the time these agreements were negotiated, which avoids commercial disadvantage to Council and the proposed occupiers that could suffer if agreements were required to be reported to Council prior to being agreed.

Executive Summary

The attached Annexure provides details of the renewal lease over the Roy Waddell Community Centre.

Recommendation

That Council note the following document to be executed as negotiated under delegated authority by the General Manager:

- A. Lease to occupy Roy Waddell Community Centre** located at 149 Richmond Hill Road, Richmond Hill (Lot 2, DP 558729) to Roy Waddell Community Centre Association Incorporated (ABN 35 786 520 199) for five years for the permitted use of a community centre and other ancillary uses thereto (including preschool). (ref: AF19/4347)

Attachment/s

1. [Document Details for Signing and Sealing](#)

Annexure Page**Documents for Signing and Sealing – Council meeting 10 May 2022**

The documents for Signing and Sealing recommends the following occupancy agreement be signed by the General Manager under existing delegations.

Agreement**Item A: AF19/4347 Lease to occupy Roy Waddell Community Centre**

Crown Land Manager	Lismore City Council
Crown Reserve No.	91411
Crown Reserve Purpose	Community Centre
Property	149 Richmond Hill Road, Richmond Hill (Lot 2 DP 558729)
Land Classification	Community
Lessee	Roy Waddell Community Centre Association Incorporated (ABN 35 786 520 199)
Rent	Crown land minimum annual rent (currently \$520.00 + GST)
Outgoings	100% of all charges appurtenant to the land
Term	5 years
Permitted Use	Community centre and other ancillary uses thereto (including preschool)

MINUTES OF THE ORDINARY MEETING OF THE COUNCIL OF THE CITY OF LISMORE HELD IN COUNCIL CHAMBERS ON TUESDAY 12 APRIL 2022 AT 6.00PM

Please note: These minutes are subject to confirmation at the next Council meeting. Decisions recorded in the draft minutes are subject to the Council's Code of Meeting Practice in relation to rescinding decisions.

Present

Mayor, Councillor Krieg; Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Rob, together with the Acting General Manager, Director Corporate Services, Director Infrastructure Services, Director Partnerships, Planning & Engagement, Manager Finance, Technology Support Officers, Governance & Customer Service Manager and Executive Assistant to the General Manager & Mayor and Councillors.

Apologies and Leave of Absence

A leave of absence was sought from:

Councillor Rob from 16 to 20 May 2022 to attend the Floodplain Management Conference in Toowoomba.

Councillor Ekins from 17 to 20 May 2022 to attend the Floodplain Management Conference in Toowoomba.

Councillor Jensen from 16 to 20 May 2022 to attend the Floodplain Management Conference in Toowoomba.

Confirmation of Minutes of Previous Meeting

87/22 **RESOLVED** that the minutes of the 22 March 2022 meeting be confirmed.

(Councillors Rob/Jensen)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Disclosure of Interest

Clr Rob declared a Non-Pecuniary, Significant Conflict of Interest for the following item: 10.3 Advisory Groups & 14.9 Aboriginal Advisory Group Membership Recommendation

Nature: I was recently involved in an altercation with one of the individuals recommended for appointment in item 14.9. Item 10.3 is linked to item 14.9. I intend to withdraw item 10.3 and leave the Chamber for item 14.9.

Clr Cook declared a Non-Pecuniary, Non-Significant Conflict of Interest for the following item: 14.1 2022 and 2023 Lismore Cup Part Day Public Holiday Application

Nature: My partner submitted a response to the public exhibition.

Clr Bird declared a Significant Conflict of Interest for the following item: 14.7 Lismore City Council Flood Fund Committee

Nature: I am the Chair of Resilient Lismore, a community organisation actively participating in recovery in Lismore.

Clr Guise declared a Pecuniary, Significant Conflict of Interest for the following item: 13.1 Lismore Base Hospital Precinct – Parking Controls and COVID-19

Nature: I work for NSW Health

Public Access Session on Agenda Items

Prior to dealing with the circulated reports and associated information, a Public Access Session was held at which Council was addressed by the following:

Notices of Motion

10.1 Floodplain Management Committee

FOR	Simon Clough
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Matters Arising

13.4 Deferral of Peace Park Reclassification Report

FOR	Natalie Meyer, Nimbin Neighbourhood & Information Centre Inc
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Reports of the General Manager

14.4 Transfer of Part Crown Road to Council to facilitate all weather access to property at Boundary Creek Road, Bentley

FOR	David Page-Dhu
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Mayoral Minute(s) and Condolence Motions

Notice of Rescission Motions

9.1 Notice of Rescission - Floodplain Management Committee Minutes

88/22 **RESOLVED** that Council rescind its decision on Item 15.2 from 22 March 2022 meeting.
(Councillors Bird/Guise) (BP22/173)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Matter of Urgency

89/22 **MOTION** moved that the following issue be considered as a matter of urgency that Council:

1. acknowledges that Council, our residents, our businesses and farming communities are increasingly traumatised by the struggle to deal with multiple state and federal agencies and complicated red tape in order to access financial assistance to help recovery from the flood disaster.
2. acknowledges that the size and scale of this disaster is beyond the capacity of a single government department, or a council, or our charity and community organisations, to oversee and coordinate the entire response that is required to rebuild our city.
3. notes that history has demonstrated, in Darwin in 1974, Victoria in 2009, and Christchurch in 2011, for example, that the most beneficial outcomes for the affected communities were achieved by the timely establishment and funding of a dedicated centralised authority such as a Recovery and Reconstruction Commission.
4. calls on the Commonwealth and NSW Governments to commit to providing multi million dollar funding packages, similar to that recently provided for QLD, to enable the recovery and reconstruction effort in the Northern Rivers to proceed.
5. calls on the NSW Premier to urgently establish a Northern Rivers Recovery and Reconstruction Commission, reporting to the Premier, with one central chain of command inclusive of all levels of government, stakeholders and community to oversee the implementation of funded recovery and reconstruction programs.
6. the Commission must have clear outcomes and commitments, with wide ranging powers to take charge of the entire recovery and reconstruction process, and must have the authority to fast track decisions on issues such as voluntary house

buybacks, acquisition of lands for relocation of residents, planning approvals, infrastructure repairs and road reconstruction.

7. the terms of reference for the Commission must include a community led response to recovery and reconstruction and that the set-up budget of the Commission be adequate to ensure such community consultation.

(Councillors Cook/Bird)

At this time the Mayor ruled that this is a matter of urgency.

90/22

On submission to the meeting the motion was **RESOLVED** that Council:

1. acknowledges that Council, our residents, our businesses and farming communities are increasingly traumatised by the struggle to deal with multiple state and federal agencies and complicated red tape in order to access financial assistance to help recovery from the flood disaster.
2. acknowledges that the size and scale of this disaster is beyond the capacity of a single government department, or a council, or our charity and community organisations, to oversee and coordinate the entire response that is required to rebuild our city.
3. notes that history has demonstrated, in Darwin in 1974, Victoria in 2009, and Christchurch in 2011, for example, that the most beneficial outcomes for the affected communities were achieved by the timely establishment and funding of a dedicated centralised authority such as a Recovery and Reconstruction Commission.
4. calls on the Commonwealth and NSW Governments to commit to providing multi million dollar funding packages, similar to that recently provided for QLD, to enable the recovery and reconstruction effort in the Northern Rivers to proceed.
5. calls on the NSW Premier to urgently establish a Northern Rivers Recovery and Reconstruction Commission, reporting to the Premier, with one central chain of command inclusive of all levels of government, stakeholders and community to oversee the implementation of funded recovery and reconstruction programs.
6. the Commission must have clear outcomes and commitments, with wide ranging powers to take charge of the entire recovery and reconstruction process, and must have the authority to fast track decisions on issues such as voluntary house buybacks, acquisition of lands for relocation of residents, planning approvals, infrastructure repairs and road reconstruction.
7. the terms of reference for the Commission must include a community led response to recovery and reconstruction and that the set-up budget of the Commission be adequate to ensure such community consultation.

(Councillors Cook/Bird)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen and Krieg

Voting against: Councillor Rob

Councillor Jeri Hall left the meeting, the time being 7:07PM

Councillor Jeri Hall returned to the meeting, the time being 7:12PM

Notice of Motions

10.1 Floodplain Management Committee

MOTION moved that:

1. the minutes of the Floodplain Management Committee be received
2. the Floodplain Management Committee meet to determine a new terms of reference
3. Council request the draft terms of reference for the CSIRO study into floodplain management, prior to their finalisation, in order to provide input into their development
4. Council request that a technical representative from the Floodplain Management Committee sit on any committees or reference groups that are established in regard to the CSIRO study in order to provide direct input from and reporting back to the Floodplain Management Committee.

(Councillors Bird/Guise)

91/22

AMENDMENT moved and motion **DEFEATED** that:

1. the minutes of the Lismore Floodplain Management Committee meeting held on 17 February 2022 be received
2. following the Federal Government's announcement to support flood affected communities, by committing funding of \$10.4 million over two years to the CSIRO to identify options and opportunities for mitigating risk and building resilience in the Northern Rivers Region, Council delay the next phase of the Lismore Floodplain Risk Management Study and Plan process until the terms of reference relating to the CSIRO study are made publicly available
3. the Floodplain Management Committee continue meeting, while awaiting the terms of reference relating to the CSIRO study, inviting the community to attend each meeting as the Committee considers flood related issues and identifies previously unknown flood problems to be addressed, objectives of the Committee provided for in points 1 and 2 of the Committee's Scope outlined in the Committee's terms of reference.

(Councillors Rob/Gordon) (BP22/219)

Voting for: Councillors Gordon, Hall, Jensen and Rob

Voting against: Councillors Bing, Bird, Colby, Cook, Ekins, Guise and Krieg

92/22

On submission to the meeting the motion was **RESOLVED** that:

1. the minutes of the Floodplain Management Committee be received
2. the Floodplain Management Committee meet to determine a new terms of reference
3. Council request the draft terms of reference for the CSIRO study into floodplain management, prior to their finalisation, in order to provide input into their development
4. Council request that a technical representative from the Floodplain Management Committee sit on any committees or reference groups that are established in regard to the CSIRO study in order to provide direct input from and reporting back to the Floodplain Management Committee.

(Councillors Bird/Guise) (BP22/219)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen and Krieg

Voting against: Councillor Rob

10.2 Reserves Policy

93/22

RESOLVED that Council hold a workshop relating to Reserves Policy, policy number 1.5.10, to review the purpose, operating guidelines and management of reserve funds.

(Councillors Rob/Krieg) (BP22/177)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

10.3 Advisory Groups

That:

1. the Business Activation Working Group be renamed as the Business Activation Working Committee;
2. the Koala Implementation Group be renamed as the Koala Advisory Group;
3. excluding the Nimbin Advisory Group, all councillors are immediately removed as appointed members of Council's Advisory Groups;
4. all councillors are permitted to attend meetings of Advisory Groups as observers with no voting rights, but can ask questions through the Chair of those Advisory Groups as permitted by the Chair.

Councillor Rob withdrew the motion.

10.4 BOM Infrastructure

94/22

RESOLVED that Council:

1. contacts the Australia Bureau of Meteorology (BOM), WaterNSW and the Environment and Heritage Group of the Department of Planning and Environment (DPE), to formally request the prioritisation of upgrading, replacing and/or repairing infrastructure used to provide rain and river data across the Northern Rivers where required, and requests the installation of additional infrastructure be considered by the BOM, WaterNSW and the DPE, to provide reliable, more accurate and detailed publicly accessible data which may better assist with forecasting flood levels
2. prioritises the replacing and/or repairing of infrastructure used to provide rain and river data across the local government area
3. installs additional infrastructure to provide reliable, more accurate and detailed publicly accessible data which may better assist with forecasting flood levels, once funding becomes available.
4. Council apply for funding through the Floodplain Management Program which is currently open and closes on 5 May 2022.

(Councillors Rob/Gordon) (BP22/195)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

10.5 Browns Creek Catchment

95/22

RESOLVED that Council be provided with an update by Council staff on options available for increasing the capacity, reliability, and resilience of the Browns Creek Pump Station. The update should include information relating to:

1. when hydrological modelling of the Browns Creek catchment was last carried out, which version of the Australian Rainfall and Runoff (ARR) was used, and whether an update is required.
2. specification details relating to the existing pumps including type, manufacturer, flow rates, power, age, uptime, etc.
3. level of service the pumps offer in terms of maintaining a water level in the Browns Creek basin, expressed as an Annual Exceedance Probability (AEP)?
4. the operating rules for the pumps when the river is flooding, when flash-flooding is occurring in the basin and overtopping is not expected, and whether the operating rules adequately manage the risk of damage to structures in the

floodway prior to and in the event of the levee being overtopped, such as allowing the basin to flood slowly prior to overtopping, in the hope of reducing the velocity of the water and the likelihood of infrastructure damage, when overtopping is expected to occur.

5. Rous County Council be requested to provide:
- additional works which could be undertaken to ensure the pumps are not damaged or blocked during operation.
 - specific actions available to Council including estimated costs to increase pump capacity, options to improve pump reliability during and after a flood when electricity supply is often unavailable, and options to improve pump availability for regular service particularly following flood events.
 - whether Rous County Council can offer recommendations or assistance to assist Council to increase the capacity, reliability, and resilience of the Browns Creek Pump Station.
 - whether opportunities exist to seek immediate grant funding, in conjunction with Rous County Council, through our Federal MP or State MP, grant funding through the next round of the National Recovery and Resilience Agency (NRRRA) Preparing Australian Communities –Local Stream, or through other grant funding options, to increase the capacity, reliability, and resilience of the Browns Creek Pump Station.

(Councillors Rob/Jensen) (BP22/213)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Questions with Notice

11.1 Recovery Committee

Can the General Manager please provide details relating to:

- existing emergency management, disaster and/or recovery plans Council has specifically related to any part of the Lismore City Council local government area;
- existing plans Council has which may progress recovery following the February 2022 Lismore Flood;
- Committees, Subcommittees or Working Groups, including any Terms of Reference, currently in place to manage and progress the various emergency management stages of prevention, preparation, response, and recovery on an ongoing basis.

At this time the General Manager gave a verbal response to the questions.

Altering Order of Business (Consideration of altering the order of business to debate matters raised during Public Access Session)

96/22 **RESOLVED** that the order of business be altered to debate the following matters raised during Public Access:

- 13.4 Deferral of Peace Park reclassification report
- 14.4 Transfer of Part Crown Road to Council to facilitate all weather access to property at Boundary Creek Road, Bentley

(Councillors Cook/Bird)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Councillor Jeri Hall left the meeting, the time being 8:22PM

Councillor Electra Jensen left the meeting, the time being 8:24PM

Councillor Jeri Hall returned to the meeting, the time being 8:24PM

Councillor Electra Jensen returned to the meeting, the time being 8:26PM

Councillor Adam Guise left the meeting, the time being 8:27PM

Councillor Adam Guise returned to the meeting, the time being 8:28PM

13.4 Deferral of Peace Park reclassification report

The MOTION lapsed due to want of a seconder, that:

1. Council takes no further action in relation to its decision of 9 November 2021 (Item BP21/779) to reclassify and transfer Council owned community land at 9 Sibley Street, Nimbin (Peace Park - Lot 1 DP 305607) to Nimbin Neighbourhood & Information Centre;
2. staff prepare suitable information and budget estimates for consideration in the upcoming Operational Plan and Budget process to prepare a Plan of Management relating to the Peace Park, Nimbin area; and
3. staff consider leasing, licensing and other estate options in relation to the request from the Nimbin Neighbourhood & Information Centre and prepare a report to be brought back to Council for consideration.

(Councillor Rob) (BP22/212)

97/22 **RESOLVED** that Council defers any further consideration of the proposed reclassification of Peace Park until such time as a new site concept plan can be provided by the Nimbin Neighbourhood & Information Centre.

(Councillors Bird/Ekins) (BP22/212)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen and Krieg

Voting against: Councillor Rob

14.4 Transfer of Part Crown Road to Council to facilitate all weather access to property at Boundary Creek Road, Bentley

98/22 **RESOLVED** that:

1. Council submit an application to NSW Department of Industry requesting part of the Crown Road at Bentley, as described in this report, be transferred to Lismore City Council.
2. to meet the criteria of NSW Department of Industry, the General Manager submits a letter with the application giving consent to the transfer of Crown Road as described in this report.
3. Council acknowledge the transferred road will not be maintained by Council. In accordance with Council's Maintenance of Rural Roads Policy 1.8.14, the Crown Road (once transferred) will not be named and will not be detailed on Council's road register.

(Councillors Gordon/Bing) (BP22/104)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Councillor Elly Bird left the meeting, the time being 8:33PM

Councillor Adam Guise left the meeting, the time being 8:33PM

Councillor Elly Bird returned to the meeting, the time being 8:35PM

Matters Arising

13.1 Lismore Base Hospital Precinct - Parking Controls and COVID - 19

MOTION moved that:

1. parking controls within the Lismore Base Hospital precinct be re-instated from Monday 2 May 2022, and
2. a minimum 14-day period be committed to community consultation and operational preparedness prior to the nominated re-instatement date.

(Councillors Gordon/Ekins)

99/22

AMENDMENT moved that Council:

1. acknowledges the valuable contribution of our frontline workers at our hospitals and their efforts to keep our community safe during the COVID-19 pandemic.
2. also acknowledges that many of our hospital staff have lost their homes and possessions and are very traumatised by the recent floods, yet they have turned up every day for their shifts to ensure that our community has the best nursing care during this catastrophe.
3. continues the free parking on Hunter St and Dalziel St in the Hospital precinct and waives restrictions on parking on Weaver St, Laurel Ave, and McKenzie St.
4. writes to the Premier, the Minister for Health, and the Member for Lismore, requesting financial reimbursement for Council's loss of revenue incurred by our support for state employees, and requests immediate implementation of the Stage 2 development of NSW Health's parking station.
5. brings this matter back to Council at the October 2022 meeting for a further decision.

(Councillors Cook/Rob) (BP22/72)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

100/22

On submission to the meeting the amendment became the motion and was **RESOLVED** that Council:

1. acknowledges the valuable contribution of our frontline workers at our hospitals and their efforts to keep our community safe during the COVID-19 pandemic.
2. also acknowledges that many of our hospital staff have lost their homes and possessions and are very traumatised by the recent floods, yet they

have turned up every day for their shifts to ensure that our community has the best nursing care during this catastrophe.

3. continues the free parking on Hunter St and Dalziel St in the Hospital precinct and waives restrictions on parking on Weaver St, Laurel Ave, and McKenzie St.
4. writes to the Premier, the Minister for Health, and the Member for Lismore, requesting financial reimbursement for Council's loss of revenue incurred by our support for state employees, and requests immediate implementation of the Stage 2 development of NSW Health's parking station.
5. brings this matter back to Council at the October 2022 meeting for a further decision.

(Councillors Cook/Rob) (BP22/72)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Councillor Adam Guise returned to the meeting, the time being 8:40PM

101/22 **RESOLVED** that the recommendations set out in items 13.2 and 13.3 be adopted by exception.

(Councillors Gordon/Bing)

Voting for: Councillors Bing, Bird, Colby, Cook, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillors Ekins and Guise

13.2 Planning Proposal - Sixth Round of General Amendments LEP 2012

102/22 **RESOLVED** that Council:

1. adopts the planning proposal as outlined in Table 1 of this report and detailed in Attachment 1.
2. submits the draft Local Environmental Plan to the Department of Planning and Environment with a request to finalise the proposal in accordance with section 3.36 of the *Environmental Planning and Assessment Act 1979*.

(Councillors Gordon/Bing) (BP22/158)

Voting for:	Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob
Voting against:	Councillor Guise

13.3 Acquisition of Easements for Nimbin Rainbow Road Walking Track

103/22

RESOLVED that the:

1. General Manager be authorised to conduct and finalise all easement negotiations with affected property owners, for the completion of the Nimbin Rainbow Road Walking Track, including payment of any compensation.
2. landowners' costs associated with the easement acquisitions be borne by Council including but not limited to survey, Council fees, reasonable legal, valuation and plan of registration fees.
3. seal of Council be affixed to the following documents:
 - a) Deed of Acquisition
 - b) Administration Sheet and Plan of Proposed Easements
 - c) Transfer Granting Easementand any other documents necessary to finalise the acquisition of easements.

(Councillors Gordon/Bing) (BP22/162)

Voting for:	Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob
Voting against:	Councillor Guise

Councillor Elly Bird left the meeting, the time being 8:52PM

Councillor Elly Bird returned to the meeting, the time being 8:56PM

Councillor Electra Jensen left the meeting, the time being 8:57PM

Councillor Electra Jensen returned to the meeting, the time being 8:58PM

Reports of the General Manager

104/22 **RESOLVED** that the recommendations set out in items 14.3, 14.5, 14.8, 14.10, 14.11 and 14.13 be adopted by exception.

(Councillors Gordon/Bing)

Voting for: Councillors Bing, Bird, Colby, Cook, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillors Ekins and Guise

14.3 Investments - March 2022

105/22 **RESOLVED** that the report be received and noted.

(Councillors Gordon/Bing) (BP22/34)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

14.5 Transfer of Part Crown Road to Council adjoining 123 Taylor Road, Chilcotts Grass

106/22 **RESOLVED** that:

1. Council submit an application to NSW Department of Industry requesting part of the Crown Road, as described in this report, be transferred to Lismore City Council.
2. to meet the criteria of NSW the Department of Industry, the General Manager submits a letter with the application giving consent to the transfer of Crown Road as described in this report.
3. Council staff coordinate the timing of the Crown Road transfer with a Subdivision Works Certificate for the proposed access road.

(Councillors Gordon/Bing) (BP22/171)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

14.8 Nimbin Advisory Group Membership Recommendation

107/22 **RESOLVED** that Council approve the appointment of the following individuals to the Nimbin Advisory Group (in alphabetical order):

1. Amy-Kate Dillon
2. Diana Roberts
3. Doug Pinch
4. Gwen Trimble
5. Megan James
6. Michael Balderstone
7. Natalie Meyer
8. Nicolas Lindner
9. Sue Edmonds
10. Susan Stock

(Councillors Gordon/Bing) (BP22/174)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

14.10 Access and Inclusion Advisory Group Membership Recommendation

108/22 **RESOLVED** that Council approve the appointment of the following individuals to the Access and Inclusion Advisory Group (in alphabetical order):

1. Begona Pretorius
2. Brad Lancaster
3. Dan Trestrail
4. Eden St James
5. Jenny London
6. John Zambelli
7. Julie-Anne Allen
8. Lisa Rea
9. Louise Frare
10. Micheal Daniel Lynch
11. Sam Brhaspati Stott

(Councillors Gordon/Bing) (BP22/176)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob
Voting against: Councillor Guise

14.11 Sister City Advisory Panel Membership Recommendation

- 109/22 **RESOLVED** that Council:
1. approve the appointment of the following individuals to the Sister City Advisory Panel:
 - Dr Ros Derrett OAM
 - Daniel Gubby
 - Tazuko McLaren OAM
 - Patricia Anderson
 - Joanne Cooper
 - Brandon Yee
 2. thank the unsuccessful applicants for their applications.

(Councillors Gordon/Bing) (BP22/200)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob
Voting against: Councillor Guise

14.13 Pecuniary Interest Returns

- 110/22 **RESOLVED** that the report be received, and the tabled Pecuniary Interest Returns be acknowledged.

(Councillors Gordon/Bing) (BP22/193)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob
Voting against: Councillor Guise

14.1 2022 and 2023 Lismore Cup Part Day Public Holiday Application

- 111/22 **DEFEATED** that Council make application to the Minister for Employee Relations for gazettal of a part day public holiday for part of the Lismore local government area from 12.00pm to 6.00pm on Thursday 22 September 2022.

(Councillors Gordon/Bing) (BP22/112)

Voting for: Councillors Bing, Gordon, Hall and Krieg

Voting against: Councillors Bird, Colby, Cook, Ekins, Guise, Jensen and Rob

14.2 Rates & Charges Hardship Policy

MOTION moved that:

1. the 'Natural Disaster Event' provisions included in the amended Rates & Charges Hardship Policy (policy number 1.5.11) appearing as Attachment 1 be removed and replaced with the following 'Natural Disaster Provisions':

Natural Disaster Provisions

In the event of a natural disaster (as declared by the Federal Government), the following provisions may apply at the discretion of Council:

Section 607 - Council may write off rates and charges and interest accrued on unpaid rates and charges if there is an error in the assessment, or if the amount is not lawfully recoverable, or as a result of a decision of a court, or if the council or the general manager believes on reasonable grounds that an attempt to recover the amount would not be cost effective.

Section 610E - Council may waive payment of, or reduce, a fee (whether expressed as an actual or a maximum amount) in a particular case if the council is satisfied that the case falls within a category of hardship or any other category in respect of which the council has determined payment should be so waived or reduced.

- Council may publish a short form Rates, Charges & Fees Hardship Application Form (Natural Disaster) and may amend the requirements relating to provision of supporting documentation at its discretion.
 - In relation to rates, charges and fees notices issued in the six months following a natural disaster (or such longer period determined by the General Manager), restrictions relating to sole or principal place of residence and property categorisation as residential for rating purposes do not apply.
2. Council resolves to place the amended Rates & Charges Hardship Policy on public exhibition for a period of 28 days, and receives and considers submissions from the public prior to further considering the Policy
 3. the interest rate on overdue rates be set at 0% from 1 March 2022 until 30 September 2022

4. where properties were impacted by the major floods in February and March 2022, accounts for water usage charges be prepared based on average daily usage patterns recorded prior to the major floods, with the Rates & Charges Hardship Policy provisions also available
5. any natural disaster hardship applications are managed in line with the guidelines provided in the Office of Local Government Debt Management and Hardship Guidelines (November 2018).

(Councillors Rob/Bird)

At this point in time the Mayor ruled the motion out of order according to Section 10.6 of the Code of Meeting Practice.

112/22 **RESOLVED** that determination of the Rates & Charges Hardship Policy be deferred to Council's May 2022 meeting and legal advice received be provided to councillors before the meeting.

(Councillors Rob/Jensen) (BP22/214)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Councillor Andrew Gordon left the meeting, the time being 9:48PM

Councillor Andrew Gordon returned to the meeting, the time being 9:50PM

Councillor Darlene Cook left the meeting, the time being 9:53PM

Councillor Darlene Cook returned to the meeting, the time being 9:54PM

14.6 Application to close Public Road - part Uralba Street and Rotary Drive, Lismore

113/22 **DEFEATED** that:

1. in accordance with Section 38D of the *Roads Act*, 1993 Council support the application to close the unused road which adjoins 96 Uralba Street, Lismore (being Lot 342 in DP 755718), as shown on the plan included in the report referred to as Excess Road.
2. upon closure of the Excess Road, Council sell the land as per the proposal.
3. the General Manager be delegated authority to negotiate the final boundaries of the proposed closure and/or easement in favour of Rous County Council to ensure their ongoing access to infrastructure is available.
4. the General Manager be delegated authority to negotiate the sale price in accordance with a current valuation prepared by a registered valuer and finalise the settlement.

5. all costs associated with the road closure and sale be met by the applicant. This includes valuation, survey and plan registration fees, legal and Council fees.
6. the applicant be required to consolidate the land with their adjoining lot (being Lot 342 in DP 755718), at the earliest opportunity and bear all costs of the consolidation.
7. the General Manager be delegated authority to sign the following documents:
 - Subdivision Certificate
 - Road Closure Plan and s88B Instrument
 - Contract for Sale of Land
 - Memorandum of Transfer
 - Statement of Title Particulars
 - and any other documents necessary to implement this resolution.

(Councillors Bird/Cook) (BP22/172)

Voting for: Councillors Bing, Cook and Gordon

Voting against: Councillors Bird, Colby, Ekins, Guise, Hall, Jensen, Krieg and Rob

Councillor Elly Bird left the meeting, the time being 10:04PM

14.7 Lismore City Council Flood Fund Committee

114/22

RESOLVED that:

1. the Flood Fund Public Rules be endorsed for signature by the Mayor
2. a list of the committee members be provided to the Australian Taxation Office once the committee is established

(Councillors Rob/Cook) (BP22/197)

Voting for: Councillors Bing, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Absent: Councillor Bird

Councillor Elly Bird returned to the meeting, the time being 10:06PM

Councillor Big Rob left the meeting, the time being 10:06PM

14.9 Aboriginal Advisory Group Membership Recommendation

115/22 **RESOLVED** that Council approve the appointment of the following individuals to the Aboriginal Advisory Group:

1. Brad Walker
2. Brandan Harrington
3. Denzel Dangerfield
4. Gerty Walker
5. Jaklyn Hensley
6. Jennifer Smith
7. Jessie Mullard
8. Marie Delbridge
9. Mark Tirris
10. Naomi Moran
11. Natasha Mercy
12. Patrick John Anderson
13. Tracy King
14. Ros Sten

(Councillors Krieg/Ekins) (BP22/175)

Voting for: Councillors Bird, Colby, Cook, Ekins, Gordon, Guise, Hall and Krieg
Voting against: Councillors Bing and Jensen
Absent: Councillor Rob

Councillor Big Rob returned to the meeting, the time being 10:10PM

14.12 Councillor Representative - Nimbin Advisory Group

116/22 **RESOLVED** that Council determine the councillor representatives to the Nimbin Advisory Group be Councillors Bird, Cook and Rob.

(Councillors Bird/Rob) (BP22/215)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob
Voting against: Nil

14.14 Councillor Superannuation Contributions

117/22 **RESOLVED** that Council resolve to pay the superannuation contribution payment from 1 July 2022 in accordance with Section 254B of the *Local Government Act 1993*.

(Councillors Cook/Bird) (BP22/221)

Voting for: Councillors Bird, Colby, Cook, Ekins, Guise and Krieg

Voting against: Councillors Bing, Gordon, Hall, Jensen and Rob

Committee Recommendations

Documents for Signing and Sealing

16.1 Documents for Signing

118/22 **RESOLVED** that Council note the following occupancy agreements be executed as negotiated under delegated authority by the General Manager:

- A. **Lease to Occupy Lismore Saleyards** located at 185 and 201 Lake Street, North Lismore (Lot 1 DP 395451 and Lot 3 DP864899) to Lismore Saleyards Pty Limited (ABN 86 077 202 861) for 5 years with a 5 year option for the permitted use of livestock saleyard and any use ancillary thereto (including impounded stock). (ref: AF12/3760)
- B. **Lease to Occupy Gingerbread House Occasional Childcare Centre** located at 35 Uralba Street, Lismore (Lot 1 DP 795661) to Northern Rivers Children's Services Ltd (ABN 47 209 262 418) for 5 years with a 5 year option for the permitted use of occasional childcare centre and other childcare and family support services. (ref: AF15/2115)
- C. **License to Occupy part of Weston Park** located at 5 Reserve Street, Goonellabah (Lot 2 DP 814012) to Johns Lyng Group Limited (ABN 86 620 466 248) with terms and fees to be negotiated by the General Manager. The General Manager to also use delegated authority to enter and vary ancillary agreements (if required) to facilitate this project, including but not limited with the Goonellabah Soccer Club, the Roman Catholic Church, adjoining landowners, government agencies and contractors. (ref: AF22/842)
- D. **Renegotiation of Rents in accordance with the *Retail and Other Commercial Leases (COVID-19) Regulation (as amended)*** upon application by impacted lessees. (ref: CDR20/363)

(Councillors Gordon/Cook) (BP22/93)

Voting for:	Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob
Voting against:	Councillor Guise

Financial Assistance – Section 356

Closure

This concluded the business and the meeting terminated at 10.28pm.

CONFIRMED this > > 2022 at which meeting the signature herein was subscribed.

MAYOR